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DEPARTMENTS OF COMMERCE AND JUSTICE, AND SCIENCE, AND RELATED AGENCIES APPROPRIATIONS BILL, 2015

JUNE 5, 2014.—Ordered to be printed

Ms. MIKULSKI, from the Committee on Appropriations,
submitted the following

REPORT

[To accompany S. 2437]

The Committee on Appropriations reports the bill (S. 2437) making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes, reports favorably thereon and recommends that the bill do pass.

Total obligational authority, fiscal year 2015

Total of bill as reported to the Senate ¹	\$62,167,092,000
Amount of 2014 appropriations	61,403,600,000
Amount of 2015 budget estimate	61,928,166,000
Bill as recommended to Senate compared to—	
2014 appropriations	+ 763,492,000
2015 budget estimate	+ 238,926,000

¹ This level does not include –\$10,628,092,000 in adjustments that the Congressional Budget Office [CBO] scores to the bill. With these scorekeeping adjustments, the bill totals \$51,202,000,000 in discretionary budget authority.

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PURPOSE OF THE BILL

The bill provides funding for: (1) the Department of Commerce [DOC]; (2) the Department of Justice [DOJ]; (3) several independent science agencies: the Office of Science and Technology Policy [OSTP], the National Aeronautics and Space Administration [NASA], and the National Science Foundation [NSF]; and (4) several related commissions and agencies: the Commission on Civil Rights, the Equal Employment Opportunity Commission [EEOC], the International Trade Commission [ITC], the Legal Services Corporation [LSC], the Marine Mammal Commission, the U.S. Trade Representative [USTR], and the State Justice Institute [SJI].

SUMMARY OF THE BILL

The bill is presented in the context of continued fiscal constraint. The sustained national debate on Federal spending, revenues, and the public debt continues to put pressure on discretionary spending. While the Murray-Ryan budget agreement provides an overall level of discretionary spending, Government-wide non-defense discretionary spending will rise less than one-tenth of 1 percent from fiscal year 2014 to fiscal year 2015. Yet the demands on non-defense discretionary spending continue to grow. This bill prioritizes the Committee's longstanding commitment to funding activities that keep America safe from terrorism and violent crime, save lives, and promote innovation and job creation.

Keeping America safe begins with State and local law enforcement, and the Committee's recommendation provides funding to fight crime and violence in America's neighborhoods. The bill provides resources that assist State and local law enforcement in preventing, investigating, and prosecuting crime. The Committee's recommendation also provides resources for Federal law enforcement agents, correctional officers, investigators, and prosecutors who thwart terrorists, disrupt gangs and drug dealers, dismantle human trafficking rings, shut down cyber criminals, and bring fraudsters to justice. The bill also prioritizes resources throughout the departments and agencies it funds for cybersecurity, including funding for the Department of Justice to catch and prosecute cyber criminals; for the National Institute of Standards and Technology to develop standards and measurements to protect dot-mil, dot-gov, and dot-com; for the National Science Foundation to conduct basic cybersecurity research; and for all departments and agencies to improve the security of their own computer networks.

Weather forecasting does more than tell people if an umbrella is needed. Severe weather warnings save lives by telling us when to seek shelter or evacuate from serious storms, tornadoes, and hurricanes. In 2013, there were seven major weather and climate disasters that are estimated to cost more than \$1,000,000,000 each. While warning times for severe weather continue to improve, more

can be done to give Americans time to get out of harm's way. Weather forecasts do not originate from local TV stations or a smartphone app. Forecasts are generated using satellite and radar data, ocean monitoring, modeling, and human expertise provided by the National Oceanic and Atmospheric Administration [NOAA]. The Committee continues to prioritize resources to ensure NOAA has the staff and technology to provide timely and accurate warnings and lengthen the amount of time before a storm that the public receives these warnings.

On April 29, 2014, the Senate Appropriations Committee held a hearing on "Driving Innovation Through Federal Investment." Witnesses and expert testimony for the record highlighted how scientific research and technology development foster job creation and economic growth in the private sector. The bill supports scientific research and development at Government labs, at colleges and universities, in the ocean, and across the solar system. This fundamental research generates ideas that become new products and foster job growth. The bill also ensures Americans profit from their innovations by funding patent protection and trade promotion.

The bill continues to face the pressure of funding programs whose costs are rising outside of the control of the Committee. While not mandatory for budget purposes, these programs are not truly discretionary either. In fiscal year 2015, NOAA's flagship weather satellite programs, the incarceration of prisoners through the Bureau of Prisons [BOP] and U.S. Marshals Service's Federal Prisoner Detention, and the taking of the census are not optional and amount to more than \$11,000,000,000, an increase of more than \$410,000,000 above the fiscal year 2014 level.

NOAA satellites are essential to saving lives with accurate warnings, but the cost of those satellites is staggering. NOAA's new polar satellites alone will cost approximately \$11,300,000,000.

The costs of incarceration continue to rise, and the bill must provide adequate funding to ensure that prison staff and communities are safe and that prisoners are securely housed, resulting in an average increase of \$192,000,000 each year to the BOP's budget. According to the President's most recent budget submission, the total cost of Federal correctional activities will continue to rise through at least fiscal year 2018. By that time, according to the DOJ Inspector General, if the BOP's budget increases at the same rate projected for all Federal correctional activities and the Department's budget remains flat, the BOP's budget will consume over 28 percent of the Department's discretionary budget.

The decennial census is mandated by the Constitution. To provide essential personnel, and develop the methodology and technology, the annual cost of the census will rise each year until the count is complete. Fiscal year 2015 is a critical year for research and planning activities designed to lower the total cost of the 2020 census.

The Committee has taken action and provided strong oversight to rein in growing satellite costs, to align Department of Justice policies related to the growing prison population with re-entry and rehabilitation efforts, and to ensure the 2020 census costs less than the 2010 census. The Committee appreciates the recommendations and oversight of the Inspectors General on these key programs.

Nonetheless, these programs threaten to crowd out other important activities supported by the bill as downward pressure on discretionary spending continues.

FIGHTING WASTE, FRAUD, AND ABUSE

The departments, agencies, boards, and commissions funded in this bill can and should continue to reduce operating expenses by placing greater scrutiny on overhead costs. Savings can and should be achieved by reducing non-essential travel, office supply, rent, and utility costs. The Committee also calls on departments, agencies, boards, and commissions funded in this bill to continue to achieve savings by lowering travel contractor costs related to air fares, as directed in fiscal year 2014.

The Committee is outraged that some departments, agencies, boards, and commissions have made widespread errors in travel disclosures to the General Services Administration regarding premium travel. Some agencies have failed to meet disclosure requirements altogether. The Committee continues longstanding restrictions on first class travel and includes provisions to improve travel reporting.

The Committee has also reduced official reception and representation funds by 25 percent since fiscal year 2011. Modest representation funds are included for agency executives to provide necessary courtesies to our diplomatic partners and hold events to honor fallen officers, or to mark historic occasions such as space exploration missions or stunning discoveries. However, savings can and should be achieved by reducing the costs of executive meetings, receptions, ceremonies, and conferences, and purchasing fewer promotional items such as t-shirts, hats, mugs, key chains, and other similar items.

The Committee is extremely concerned about the persistent pattern of cost overruns and schedule slippages on major projects and missions carried out by the agencies within this bill. In addition, reports have exposed a culture within many agencies that exhibits a lack of accountability and oversight of grant funding. Therefore, the Committee has continued four bill-wide provisions to ensure greater oversight and fiscal responsibility of taxpayer dollars.

First, the bill requires each agency to notify the Committee immediately upon identification of program cost overruns greater than 10 percent.

Second, the bill requires the Inspectors General of the Departments of Commerce and Justice, NASA, NSF, and the Legal Services Corporation to conduct reviews of grant and contract funds to ensure funds are being spent appropriately.

Third, the bill requires each department, agency, board, and commission funded in this act to report spending on large conferences, with costs in excess of \$100,000 each, to the Inspectors General for audit.

Fourth, the bill prohibits each department, agency, board, and commission funded in this act from awarding grants and cooperative agreements to tax cheats and felons.

Finally, the Committee intends to continue to work with the Government Accountability Office [GAO] to review selected large-scale acquisition and construction projects. Specifically, the Committee

directs ongoing GAO reviews of large NASA projects and separate reviews of the James Webb Space Telescope, with reports to the Committee on a biannual basis. Agencies shall provide access to all necessary data, as determined by the GAO, in order for the reviews to be completed and provided in a timely manner to the Committee. The Committee believes that these project status reports are valuable in identifying cost overrun and schedule slippage problems early, so they can be addressed immediately.

REPROGRAMMINGS, REORGANIZATIONS, AND RELOCATIONS

Section 505 contained in the “General Provisions” of title V provides procedures for the reprogramming of funds. To reprogram is to change the use of funds from the specific purposes provided for in the act and the accompanying report or, in the absence of direction from the Committee, from the specific purposes provided for in the administration’s budget request. Each title of the bill has also traditionally included separate provisions that define permissible transfers of resources between appropriation accounts. These transfer authority provisions are also pursuant to section 505, and were initiated in the early 1990s to provide additional flexibility to the agencies under the subcommittee’s jurisdiction.

The Committee expects each department and agency closely to follow the reprogramming procedures listed in section 505. These procedures apply to funds provided under this act, or provided under previous appropriations acts that remain available for obligation or expenditure in fiscal year 2015, or provided from any accounts in the Treasury available to the agencies funded by this act. Section 505 requires that the Committee on Appropriations be notified by letter, at least 15 days prior to reprogramming of funds, whether permanent or temporary, in excess of \$500,000 or 10 percent, whichever is less, between programs, projects or activities. This provision is also applicable in cases where several activities are involved with each receiving less than \$500,000. In addition, the Committee is to be notified of reprogramming actions which are less than these amounts if such actions would have the effect of: committing the agency to significant funding requirements in future years; increasing funds or personnel by any means for any project or activity for which funds have been previously denied or restricted by Congress; creating new programs, offices, agencies or commissions or substantially augmenting existing programs, offices, agencies or commissions; relocating offices or employees; or reorganizing offices, programs, or activities.

The Committee also expects that any items that are subject to interpretation will be reported. The Committee is concerned that, in some instances, the departments or agencies funded within this appropriations act are not adhering to the Committee’s reprogramming guidelines that are clearly set forth in this report and in section 505 of the accompanying bill. The Committee expects that each department and agency funded in the bill will follow these notification policies precisely and will not reallocate resources or reorganize activities prior to submitting the required notifications to the Committee.

The reprogramming process is based on comity between the Appropriations Committee and the administration. The Commerce,

Justice, and Science, and Related Agencies appropriations bill provides specific program guidance throughout this report and tables accompanying the bill. The process is intended to provide flexibility to meet changing circumstances and emergency requirements of agencies, if there is agreement between the executive branch and the Congress that such a change is warranted. Reprogramming procedures provide a means to agree on adjustments, if necessary, during a fiscal year, and to ensure that the Committee is kept apprised of instances where nonappropriated resources are used to meet program requirements, such as fee collections and unobligated balances that were not considered in the development of the appropriations legislation.

In the absence of comity and respect for the prerogatives of the Appropriations Committees and Congress in general, the Committee will have no choice but to include specific program limitations and details legislatively. Under these circumstances, programs, projects, and activities become absolutes and the executive branch shall lose the ability to propose changes in the use of appropriated funds through the reprogramming process between programs, projects, and activities without seeking some form of legislative action.

The Committee expects each executive branch department and agency to manage its programs, projects and activities within the levels appropriated. Reprogramming or transfer requests shall be submitted only in the case of an unforeseen emergency or situation that could not have been anticipated when formulating the budget request for the current fiscal year.

CONGRESSIONAL BUDGET JUSTIFICATIONS

The Committee directs that all departments and agencies funded within this bill shall submit all of their fiscal year 2016 budget justifications concurrently with the official submission of the administration's budget to Congress. Further, all departments and agencies with classified programs funded within this act are directed to submit their classified budget justification documents to the Committee, through appropriate means, at the same time the unclassified budget justifications are transmitted.

These justifications shall include a sufficient level of detailed data, exhibits, and explanatory statements to support the appropriations requests, including tables that outline each agency's programs, projects, and activities for fiscal years 2015 and 2016. For example, when requesting an enhancement of resources, the justification should detail the existing program and what the new resources would buy. The Committee directs the chief financial officer of each department or agency funded in this act's jurisdiction to ensure that adequate justification is given to each increase, decrease, staffing and function change proposed in the fiscal year 2016 budget, particularly within the departmental operations and management accounts.

The Committee is concerned that many of the budget submissions are inadequate and necessitate multiple requests for additional information. At times, conflicting information is provided in justifications and other budget briefing documents. This process is inefficient and unnecessarily delays access to information that is

fundamental to the work of the Committee. The Committee expects that the fiscal year 2016 submissions will include sufficient detail to justify all programs, projects, and activities contained in each department, agency, or commission budget request. Budget justifications are prepared not for the use of the agencies but are the primary tool of the Committee to evaluate the resource requirements and proposals requested by the administration. Each budget justification shall include a detailed description of cybersecurity resources requested by the department or agency categorized according to resources that (1) prevent malicious cyber activity, including the protection of Federal systems; (2) detect, analyze, and mitigate intrusions, including investigating and prosecuting cyber criminals; and (3) shape the cybersecurity landscape, including research and development.

REPORTING REQUIREMENTS

The Committee is frustrated by the inability of departments and agencies funded in this bill to complete and submit congressionally mandated reports on time. Reports are frequently submitted late, incomplete, or not at all. The Committee directs the departments and agencies funded in this bill to submit reports by their deadlines or to provide advance notification if there is sufficient reason why deadlines cannot be met, along with the expected date of submission.

The Committee also recognizes that some reporting requirements from previous Appropriations bills may no longer be necessary for Committee oversight purposes. In the interest of reducing government waste and expediting responses to current report mandates, each departments or agencies is invited to submit a list of reporting requirements that it considers outdated or no longer relevant for the review of the Committees on Appropriations. Any such list submitted for review shall be limited to reports required under Appropriations bills, and shall cite the original authority as well as a justification for eliminating each reporting requirement.

REDUCTIONS-IN-FORCE

The Committee directs departments or agencies funded in the accompanying bill that are planning to conduct a reduction-in-force [RIF] to notify the Committee in writing 30 days in advance of the date of the proposed personnel action.

APPROPRIATIONS LIAISONS

The Committee prefers to channel the majority of its inquiries and requests for information and assistance through the budget offices or comptroller offices of the departments and agencies which it oversees, but reserves the right to call upon any individual or organization in any agency under its jurisdiction.

TITLE I

DEPARTMENT OF COMMERCE

The Committee recommends a total of \$8,555,875,000 for the Department of Commerce [DOC]. The recommendation is \$375,258,000 above the fiscal year 2014 enacted level and \$190,596,000 below the budget request.

The Department of Commerce is a major innovation engine for the Nation. Few departments in the U.S. Government have the opportunity to so strongly influence and protect America's businesses and competitiveness in this volatile economy. DOC's science and innovation programs strive to find new ways to solve today's problems and anticipate tomorrow's challenges. New research inspires new technology, and DOC's development of new standards allows the Department to partner with industry to keep citizens safe and manufacturers on the right track. These new technologies and ideas deserve protection, and the Department also preserves intellectual property for our Nation's creative thinkers—small and big businesses alike. Once products and services are ready for the global market, DOC promotes export of U.S. goods and enforces trade agreements, sending new ideas into the marketplace while protecting our workers and helping businesses create jobs at home. The Department monitors progress and prosperity through statistical analysis, economic monitoring, and periodic censuses.

The Secretary of Commerce is the chief spokesperson for American business, but the Secretary is also the chief manager in charge of addressing major management challenges at the Department. Persistent problems need strong oversight, and accountability remains a top concern for the Committee.

Controlling costs for the 2020 decennial census remains a top oversight concern for the Inspector General, the Government Accountability Office, and this Committee. Cost overruns became a major problem during the 2010 decennial census, and the Department cannot afford cost increases for the 2020 census. The budget request suggests that the Census Bureau intends to reduce the 2020 census costs to 2010 census levels by finding ways to reduce door-to-door operations, using the Internet to solicit responses, and using scalable technology such as elastic agency-wide IT systems that can expand for the 2020 census and then contract back to normal operations. While this indicates improved direction at the Census Bureau, the Committee needs assurances that the Bureau will remain on a reliable path for achieving real cost savings.

When it comes to protecting American intellectual property [IP], DOC needs to be cyber-obsessed and create ways to protect its own dot-gov systems while working with the private sector to better protect dot-com. The National Institute of Standards and Technology [NIST], DOC's outstanding science and research agency,

helps the private sector find new ways to solve today's cybersecurity problems. This bill advances cybersecurity activities at NIST to protect online consumers and the private sector from cyber attacks.

When it comes to saving lives and livelihoods, this bill provides balanced funding to allow all of the National Oceanic and Atmospheric Administration's [NOAA] services to function. Operational readiness is important to the scientists and forecasters who depend on NOAA to do their jobs. Information and forecasts from NOAA are vital to our communities—from the coastal States that depend on accurate hurricane forecasts to the interior States that depend on timely tornado and severe storm warnings. Commerce's budget request maintains reforms to NOAA's satellite programs in response to direction made by this Committee and to critical recommendations made by outside experts. The Committee welcomes these changes but remains guarded that these important missions retain financial and management stability, especially as downward pressure on non-defense discretionary spending continues.

Spending Plans.—Under section 534 of this act, the Department is required to submit a spending plan within 45 days of the enactment of this act. That plan should describe the programs, projects, and activities of the Department so that the Committee receives detailed descriptions of how the Department intends to operationalize the funding provided in annual appropriations bills. The Committee expects a detailed accounting of each bureau's spending, including reimbursable, fee-funded, or Working Capital Fund spending, particularly with regard to specific programs, projects, and activities described in the bill and accompanying report. However, with the exception of NOAA, the Department provides little detail about how it intends to execute its base activities. As a result, the Committee must make repeated inquiries about spending on specific activities and often receives inconsistent, confusing, and conflicting answers. The Department shall work with the Committees on Appropriations to ensure that its spending plans provide adequate information for continued oversight of the Department.

The Committee looks forward to working with the Department of Commerce to promote innovation, stimulate economic growth, and protect American citizens and businesses during the 2015 fiscal year and beyond.

INTERNATIONAL TRADE ADMINISTRATION

OPERATIONS AND ADMINISTRATION

Appropriations, 2014	\$470,000,000
Budget estimate, 2015	506,731,000
Committee recommendation	480,000,000

The Committee's recommendation provides \$480,000,000 for the International Trade Administration [ITA]. The recommendation is \$10,000,000 above the fiscal year 2014 enacted level and \$26,731,000 below the budget request.

The Committee recommendations, by function, are displayed in the following table:

INTERNATIONAL TRADE ADMINISTRATION FUNDING

[In thousands of dollars]

	Committee recommendation
Industry and Analysis	55,000
Enforcement and Compliance	74,500
Global Markets	327,000
Executive Direction/Administration	23,500
Total	480,000

Offsetting Fee Collections.—The Committee is disappointed to learn that ITA has consistently and significantly underestimated its fee collections in recent budget submissions to Congress. While ITA requested a fee offset of \$9,439,000 for fiscal year 2015, the agency has actually collected more than this amount for each of the last 6 fiscal years. The Committee rejects the fee estimate in the congressional budget submission, and the funding recommendation shall be offset by fee collections of \$10,000,000.

ITA shall brief the Committee on its revised fee estimation process no later than 60 days after enactment of this act. ITA shall also identify and include expected fee collections and corresponding expenditures in the fiscal year 2015 spend plan and all future spend plans.

SelectUSA.—The Committee supports the SelectUSA Initiative and provides up to \$15,000,000 to facilitate foreign direct investment in the United States. ITA shall develop and share with the Committee a protocol to ensure that SelectUSA activities do not encourage investment in the United States by state-owned entities.

Trade Enforcement.—The Committee provides up to \$12,000,000 for the Interagency Trade Enforcement Center [ITEC] in partnership with the U.S. Trade Representative. ITA is directed to provide a detailed funding profile for ITEC as part of its fiscal year 2015 spending plan. Further direction for ITEC is provided under the heading “Office of the United States Trade Representative”.

Global Markets.—The Committee recognizes the important role that ITA’s Global Markets division plays in promoting U.S. exports and attracting foreign investment, including through the U.S. and Foreign Commercial Service [CS] and the activities previously housed in the Market Access and Compliance division. The Committee urges Global Markets to deploy resources in a manner that maximizes economic potential for U.S. workers and businesses.

National Export Initiative.—The Committee notes with interest that ITA and other Federal partners on the National Export Initiative are pursuing an increasingly customer service-driven strategy of export promotion. ITA shall report to the Committee no later than 90 days after enactment of this act on: how this strategy will affect the existing level of market-access and industry-based export assistance; how the strategy will affect CS fees and collections; and how ITA will examine return on investments for trade promotion service offerings to ensure that resources are spent where they can have the greatest impact on the U.S. economy.

Commercial Service Resource Allocation.—The Committee supports ITA’s increased attention to developing and emerging markets, including those in Asia and Africa. The Committee directs

ITA to fund CS at the highest possible level in fiscal year 2015 while still preserving other essential functions within Global Markets. ITA should place particular emphasis on maintaining and expanding the number of CS officers and support staff overseas and on providing them with adequate resources to operate fully and effectively in their regions.

The Committee has not yet received the report mandated by the fiscal year 2014 appropriations act regarding the factors used to determine how CS resources are allocated, including how these variables account for developing and emerging markets where U.S. exports may currently be low, but the potential for an increase in trade is high. ITA shall deliver this overdue report to the Committee no less than 30 days after enactment of this act. Additionally, ITA is directed to continue to notify the Committee within 30 days when changes are made to domestic or overseas Commercial Service posts or State Department Partner Posts.

Staff Retention Overseas.—No later than 180 days after enactment of this act, ITA shall report to the Committee on ways to improve retention of valuable Locally Engaged Staff [LES] working with Foreign Commercial Service Officers and other Department of Commerce staff overseas, including opportunities for professional development.

China Anti-dumping and Countervailing Duty Activities.—The Committee provides no less than \$16,400,000 for China anti-dumping and countervailing duty enforcement and compliance activities.

Domestic Trade Coordination.—The Committee recognizes the important role that State and local governments play in promoting exports and urges ITA and the Trade Promotion Coordinating Committee [TPCC] to support the application of best practices among Federal, State, and local governments in promoting exports. Additionally, the Committee encourages the TPCC to continue collaborating with State trade partners to identify ways to reduce overlap and improve coordination between Federal and State agencies. This effort may include establishment of a working group including regionally equitable and diverse representatives of State international trade resource centers and Federal agencies involved in export promotion.

Antidumping and Countervailing Duty Investigations.—The Committee recognizes the importance of ITA's efforts to promote trade and investment while ensuring fair trade through the enforcement of trade laws. In particular, the Committee recognizes the work of the Enforcement and Compliance unit, which verifies the accuracy and completeness of questionnaire responses provided to the Department of Commerce during antidumping [AD] and countervailing duty [CVD] investigations. The Committee encourages ITA to evaluate its procedures with respect to the number of on-site verifications it conducts and the number of respondents it investigates from each country in new trade cases. ITA shall provide a report to the Committee no later than 90 days after enactment of this act that assesses its AD/CVD investigations, including any additional steps that can be taken to improve the process or additional resources needed to ensure that a thorough investigation can be made to promote fair trade and investment.

Foreign Subsidies.—ITA’s Enforcement and Compliance division shall examine direct and indirect subsidies in countries that are thought to administer large amounts of subsidies in violation of World Trade Organization rules, particularly in those countries that have been major destinations for outsourced U.S. manufacturing jobs. ITA shall examine legal authorities and resources used by U.S. trade enforcement agencies to analyze foreign subsidies and is requested to coordinate its analysis with other Federal agencies. A report on such subsidies shall be provided to the Committee within 180 days of enactment of this act.

Foreign Trade Zone Board.—Recently, the Foreign Trade Zone [FTZ] Board provided inaccurate and misleading information pursuant to a request from the Committee. Moreover, the Committee has learned that the Board, rather than correct the erroneous information as soon as it learned of its error, instead made a deliberative decision to allow the Committee to continue to operate with inaccurate information. These facts are troubling and unacceptable. The Department is reminded that the Committee plays a crucial oversight role for all activities funded under this title, including activities of the FTZ Board, and it is paramount that the Committee receives timely and accurate information. The Department is directed to work with the FTZ Board to ensure that it has the appropriate procedures in place to prevent similar problems from occurring in the future such that the Committee may perform necessary and appropriate oversight.

BUREAU OF INDUSTRY AND SECURITY

OPERATIONS AND ADMINISTRATION

Appropriations, 2014	\$101,450,000
Budget estimate, 2015	110,549,000
Committee recommendation	105,549,000

The Committee’s recommendation provides \$105,549,000 for the Bureau of Industry and Security [BIS]. The recommendation is \$4,099,000 above the fiscal year 2014 enacted level and \$5,000,000 below the budget request.

BIS is the principal agency involved in the development, implementation, and enforcement of export controls for commercial technologies and for many military technologies as a result of the President’s export control reform initiative. The Export Enforcement Division detects, prevents, investigates, and assists in the sanctioning of illegal exports of such items.

Export Control Reform.—The Committee directs BIS to continue its exporter outreach program to educate companies of all sizes on the new regulatory requirements resulting from export control reform. The Committee encourages BIS to target small- and medium-sized businesses and to work with State and local trade and export associations in addition to working with national industry groups.

ECONOMIC DEVELOPMENT ADMINISTRATION

Appropriations, 2014	\$246,500,000
Budget estimate, 2015	248,182,000
Committee recommendation	232,000,000

The Committee's recommendation provides \$232,000,000 for the Economic Development Administration [EDA]. The recommendation is \$14,500,000 below the fiscal year 2014 enacted level and \$16,182,000 below the budget request. The bill also provides access to \$40,000,000 in prior-year recoveries and unobligated balances.

EDA provides grants to local governments and nonprofit agencies for public works, planning, and other projects designed to facilitate economic development. Funding amounts for the two appropriations accounts under this heading are displayed below.

ECONOMIC DEVELOPMENT ASSISTANCE PROGRAMS

Appropriations, 2014	\$209,500,000
Budget estimate, 2015	210,000,000
Committee recommendation	195,000,000

The Committee's recommendation provides \$195,000,000 for Economic Development Assistance Programs. The bill also includes \$40,000,000 in unobligated and deobligated funds from prior year appropriations for EDA's use in fiscal year 2015. The recommendation is \$14,500,000 below the fiscal year 2014 level and \$15,000,000 below the budget request. The Committee expects EDA to use all available carryover and prior year recoveries to the maximum extent possible. EDA shall consider geographic equity in making all award decisions and shall ensure that rural projects are adequately represented among those selected for funding. Of the amounts provided, funds are to be distributed as follows. Any deviation of funds shall be subject to the procedures set forth in section 505 of this act:

ECONOMIC DEVELOPMENT ASSISTANCE PROGRAMS

[In thousands of dollars]

	Committee recommendation
Public Works	114,000
Economic Adjustment Assistance	42,000
Trade Adjustment Assistance for Firms	15,000
Regional Innovation Program and Science Parks Loan Guarantees	20,000
Partnership Planning	30,500
Technical Assistance	12,000
Research and Evaluation	1,500
Prior-year recoveries	— 40,000
Total	195,000

The Committee encourages the administration to focus on generating financial investment, job creation, and sustained economic growth in manufacturing, exports, innovation, and other areas of growth through EDA's existing grant programs, including Public Works, Economic Adjustment Assistance, Trade Adjustment Assistance, and the Regional Innovation Program. The Committee encourages EDA to identify ways to make strong investments in these areas while preserving the successful and national reach of existing grant programs, avoiding overlap in the mission or execution of such programs, and meeting the need for improved infrastructure across the country.

Innovative Energy Efficiency Grants.—Within the amounts provided for Economic Adjustment Assistance, the Committee provides up to \$5,000,000 to continue innovative energy efficiency finance programs that benefit small businesses. EDA shall report to the Committee within 90 days of enactment of this act on energy efficiency grants made with fiscal year 2013 and 2014 funding.

Regional Innovation Program.—The Committee maintains support for EDA's Regional Innovation Program, which awards competitive grants to regional entities in support of innovation and entrepreneurship, including investments in science parks, regional innovation clusters, and the i6 Challenge program. The Committee provides \$20,000,000 for grants and loan guarantees as authorized under the America COMPETES Reauthorization Act of 2010, of which no less than \$5,000,000 shall be for loan guarantees for science park infrastructure. EDA shall make Regional Innovation Program awards to multiple grantees and in multiple and diverse geographic areas.

Within funds provided for the Regional Innovation Program, \$2,000,000 shall be for cluster grants to support nonprofit, job-creating, revolving, equity-based seed capital funds. EDA shall report to the Committee when these funds and similar funds from fiscal year 2014 are awarded, including the purposes of each grant.

The Committee encourages EDA to support university-based, high-tech business incubators to encourage entrepreneurship and promote technology commercialization through business startups.

Loan Guarantees.—In fiscal years 2012, 2013, and 2014, the Committee provided a cumulative total of \$25,000,000 dedicated to loan guarantee programs for science parks and for innovative manufacturing. The Committee acknowledges the challenges in establishing loan guarantee programs but is dissatisfied with EDA's pace, progress, and effort put forth to accomplish this task. EDA is directed to work expediently to establish both programs as soon as possible.

EDA shall provide to the Committees on Appropriations the report required in the fiscal year 2014 appropriations act on the status of loan guarantees as soon as possible. The report shall include a plan to establish, implement, and oversee loan guarantee programs including details on any necessary staff hiring, external expertise sought and utilized, and steps to ensure the programs remain solvent in the out years. EDA is directed to move forward with implementation of the loan guarantee programs expeditiously, and preparation of this report should not delay progress. EDA shall report to the Committee the status of the loan guarantee programs every 180 days following the initial report until both loan guarantee programs are fully operational.

Inconsistencies in Grant Review Process.—In a February 2014 report titled: "Economic Development Administration: Documentation of Award Selection Decisions Could Be Improved," GAO found significant inconsistencies in EDA's grant review process. In particular, the report called into question methods used by EDA's regional offices to award grants to distressed communities. The Committee finds this unacceptable and directs EDA to immediately implement GAO's recommendations to resolve these issues. Furthermore, EDA shall report to the Committee, within 90 days of enact-

ment of this act, on specific actions taken to implement GAO's recommendations to ensure the grants award process remains fair and transparent across EDA's regional offices.

Trade Adjustment Assistance for Firms.—The Committee again rejects the administration's proposal to cut funding for Trade Adjustment Assistance Centers [TAACs]. Trade Adjustment Assistance for Firms is a small but effective program. The Committee agrees that there is room for improvement in the management and administration of the program and centers, but notes that eliminating a significant portion of the program does not solve these institutional problems.

The Committee appreciates EDA's efforts to improve its metrics across all programs and directs the agency to continue developing and implementing a success-based model of performance measurement for TAACs and other EDA grantees. However, the Committee is also concerned about issues raised in the GAO report titled "Trade Adjustment Assistance: Commerce Program Has Helped Manufacturing and Services Firms, but Measures, Data, and Funding Formula Could Improve." GAO found inconsistencies in EDA's data collection across TAACs. The Committee believes that EDA should systematically maintain data collected by TAACs about assisted firms in an easily accessible format, such as a database, that can be used by regions and headquarters. EDA shall also provide appropriate guidance regarding specific measures TAACs should be tracking, including metrics that assess program outcomes. Additionally, the Committee directs EDA to address the GAO recommendations regarding improvements to the current funding formula for TAACs and to brief or report to the Committee on the results. The Committee believes that EDA should do more to ensure that allocations of funding provided by this act for TAACs better reflect the varied need for assistance among firms and regions.

Job Losses From Nuclear Power Plant Closures.—The Committee notes that recent closures of nuclear power plants throughout the United States have had a negative impact on the economic foundations of surrounding communities, and there is potential for additional plant closures in coming years. Research shows that the long-term economic impacts and job losses from nuclear power plant closures are substantial and difficult to address. The Committee believes that the EDA should help identify and develop best practices to aid communities facing nuclear power plant closures, including the coordination of economic development efforts across multiple States or Economic Development Districts.

Investing in Manufacturing Communities Partnership Program [IMCP].—The Committee acknowledges the administration's recent announcement designating 12 regions as "manufacturing communities" through EDA's Investing in Manufacturing Communities Partnership [IMCP] program. The Committee remains disappointed that the Department proceeded with IMCP activities in spite of the Committee's rejection of proposed funding for such purposes in fiscal year 2014. No funding has been provided for the IMCP program in fiscal year 2015.

It is the view of the Committee that IMCP, as proposed, does not constitute a coherent, well-designed program that meets the needs of the varied and diverse communities traditionally served by EDA.

Moreover, in developing the proposal, the administration overlooked and even cut funding for existing EDA programs that accomplish similar goals in an effort to create a new economic development program. The Committee believes that the administration should have worked within EDA's existing structure to develop a comprehensive strategy to share and integrate best practices for economic planning while aiding communities across the country to maintain consistency with EDA's core mission and authorization.

The Committee remains concerned with the underlying premise of IMCP, which selects a limited number of communities for special assistance through an incentive structure that affects grant programs across the Federal Government. This new structure awards "extra credit" to a select number of chosen communities applying for Federal grants, rather than putting all distressed communities on equal footing. In addition, the Committee is concerned that distressed regions not chosen for the IMCP program could be further disadvantaged through the IMCP incentive structure that provides favored treatment for designated communities.

EDA shall provide a report to the Committee not later than 90 days after the enactment of this act detailing a plan to better utilize existing programs to assist various types of distressed communities across the country using a bottom-up, demand-driven approach to manufacturing investment. Additionally, the report shall include a comprehensive strategy to share and integrate best practices for economic development planning to attract new manufacturing investments to distressed communities across the country.

Coordinated Environmental Reviews.—A March 2014 GAO report titled "Additional Actions Needed to Better Support Tribal Efforts" raised concerns about the multiple environmental reviews required by Federal agencies that fund development projects. The Committee encourages EDA to work with the Department of Housing and Urban Development to reduce duplication in the environmental review process.

SALARIES AND EXPENSES

Appropriations, 2014	\$37,000,000
Budget estimate, 2015	38,182,000
Committee recommendation	37,000,000

The Committee's recommendation provides \$37,000,000 for salaries and expenses. The recommendation is the same as the fiscal year 2014 enacted level and \$1,182,000 below the budget request.

Staffing Decisions.—The Committee directs EDA to provide a report to the Committee within 30 days of enactment of this act detailing the geographic distribution of mission-critical staff vacancies in regional offices and geographic areas in need of additional staffing due to the size and location of respective jurisdictions. The report shall specifically address the wide geographic coverage areas for some Economic Development Representatives and Economic Development Specialists and any increasing demands for services in areas with vast distances between jurisdictions. EDA shall report to the Committees on Appropriations every 180 days thereafter on mission-critical vacancies in regional offices, including the specific location of each vacancy; a description of each vacant position and

its associated responsibilities and geographic coverage, if applicable; and the amount of time the position has been vacant.

The Committee notes that the information submitted in response to the fiscal year 2014 reporting requirement on mission-critical vacancies was submitted several months late and did not contain all of the requested information. EDA is directed to submit this report on time and to include all information listed above.

MINORITY BUSINESS DEVELOPMENT AGENCY

MINORITY BUSINESS DEVELOPMENT

Appropriations, 2014	\$28,000,000
Budget estimate, 2015	28,286,000
Committee recommendation	28,286,000

The Committee's recommendation provides \$28,286,000 for the Minority Business Development Agency [MBDA]. The recommendation is \$286,000 above the fiscal year 2014 enacted level and is the same as the budget request. MBDA is the only Federal agency dedicated to promoting the growth of minority-owned firms and assists small, medium, and large minority business enterprises increase revenues and create jobs.

New MBDA Centers.—The Committee commends MBDA for its efforts to reduce administrative expenses. MBDA used these savings to award funding for seven new MBDA Business Centers in fiscal year 2013.

Export Opportunities for Minority-Owned Businesses.—The Committee recognizes the important services that MBDA provides to minority-owned businesses in every State and encourages MBDA to continue working with the International Trade Administration in pursuit of increased export opportunities and export-related jobs for minority-owned businesses, including small- and medium-sized enterprises.

ECONOMIC AND STATISTICAL ANALYSIS

SALARIES AND EXPENSES

Appropriations, 2014	\$99,000,000
Budget estimate, 2015	111,033,000
Committee recommendation	106,000,000

The Committee's recommendation provides \$106,000,000 for Economic and Statistical Analysis [ESA]. The recommendation is \$7,000,000 above the fiscal year 2014 enacted level and \$5,033,000 below the budget request. ESA conducts research to provide a better understanding of the U.S. economy, which helps Government make more informed policy decisions.

Lease Negotiation.—The Committee recognizes the significant cost of the Bureau of Economic Analysis's [BEA] upcoming lease negotiation and directs BEA to work with the General Services Administration to find the most cost-effective move or renovation option without precluding the possibility of a future move into the Herbert C. Hoover Building, which is currently under renovation. BEA is directed to brief the Committee on the status of the lease negotiation, reconfiguration requirements, and moving costs within

60 days of enactment of this act and every 180 days thereafter until BEA is housed in the newly leased space.

Propane Pricing Analysis.—The Committee is aware of difficulties encountered in the analysis of propane pricing data pursuant to the requirements of 15 U.S.C. 6408(a). The Committee encourages ESA to identify other sources of data that may be available to enable the Secretary to carry out the responsibilities of 15 U.S.C. 6408(a) and, using any statutory or other authorities available, restart the annual analysis of propane prices. Further, the Committee directs the Secretary to provide a report detailing the Department's progress on this effort not later than 120 days after the date of enactment of this act, including any recommended legislative changes to the authorizing statute.

BUREAU OF THE CENSUS

Appropriations, 2014	\$945,000,000
Budget estimate, 2015	1,211,428,000
Committee recommendation	1,148,944,000

The Committee's recommendation provides \$1,148,944,000 for the Census Bureau. The recommendation is \$203,944,000 above the fiscal year 2014 enacted level and \$62,484,000 below the budget request.

SALARIES AND EXPENSES

Appropriations, 2014	\$252,000,000
Budget estimate, 2015	248,000,000
Committee recommendation	252,200,000

The Committee's recommendation provides \$252,200,000 for salaries and expenses. The recommendation is \$200,000 above the fiscal year 2014 enacted level and \$4,200,000 above the budget request. This account provides for the salaries and expenses associated with the statistical programs of the Bureau of the Census, including measurement of the Nation's economy and the demographic characteristics of the population.

The increase above the request shall be used to expand the sample of the Current Population Survey's Annual Social and Economic Supplement, which shall compare health insurance statistics to baseline data from 2010 and 2013. In collecting additional health insurance data, the Census Bureau is directed to ensure that it maintains sufficient comparative data points to allow for data collected from 2010 to 2013 in the interest of preserving statistical rigor.

PERIODIC CENSUSES AND PROGRAMS

Appropriations, 2014	\$693,000,000
Budget estimate, 2015	963,428,000
Committee recommendation	896,744,000

The Committee's recommendation provides \$896,744,000 for periodic censuses and programs. The recommendation is \$203,744,000 above the fiscal year 2014 enacted level and \$66,684,000 below the budget request.

This account provides for the constitutionally mandated decennial census as well as other programs that are cyclical in nature.

Additionally, individual surveys are conducted for other Federal agencies on a reimbursable basis.

Oversight of Periodic Census Programs.—The Committee’s recommendation provides \$1,551,000 for the Office of Inspector General [OIG] to continue oversight and audits of periodic censuses and to provide the Bureau and Congress with independent recommendations for improving operations, which will be useful for oversight of the 2020 decennial census. The Committee directs the Bureau to continue to incorporate all of the OIG’s recommendations as it transitions into the 2020 decennial, including: a thorough review of the training process; better communication of Census’ various enumeration practices; increased transparency and accuracy of budget formulations; and the development of a realistic research and testing schedule leading up to major 2020 design decisions.

Monthly Status Reports.—Census is directed to continue its dashboard monthly status reports to the Committee as it transitions into preparations for the 2020 decennial.

Working Capital Fund [WCF].—The Committee expects the Bureau to execute the funding to the fullest extent possible without any carryover balances. The Committee directs the Bureau to continue to use the WCF only as a repository for reimbursable funds from other agencies and to obligate and execute that funding expeditiously. The Census Bureau shall provide a report to the Committee within 30 days after enactment of this act regarding balances in the Working Capital Fund including carryover funds, the intended uses of those funds, and a spending plan. The spending plan shall include collections and obligations for both reimbursable and appropriated funding.

2020 Decennial Census.—Controlling costs for the 2020 decennial census remains a top oversight concern for the Committee. The Bureau shall continue to bring down the cost of the 2020 decennial census to a level less than the 2010 census and to work toward spending less than the 2000 census, not adjusting for inflation. The Committee has not yet received the report mandated in the fiscal year 2014 appropriations act regarding the Bureau’s plan to reduce spending compared to the 2010 decennial census and descriptions of any challenges the Bureau anticipates could prevent it from achieving the budgetary goal. The Census Bureau is directed to prioritize spending for activities that have the greatest potential to reduce cost and reduce risk for the 2020 census.

Administrative Records.—One way the Census Bureau plans to save money during the 2020 decennial census cycle is by using existing records and data to reduce unnecessary and costly duplication, including using administrative records to update the Master Address File and to conduct more efficient non-response follow up. However, the Committee is concerned that the Census Bureau is counting on these cost savings without adequately or accurately assessing the steps that need to be taken in order to secure access to this data. The Bureau is directed to work expeditiously with Federal, State, tribal, local, and other partners to obtain the necessary records. The Bureau shall report to the Committee and to the Office of Inspector General within 90 days of enactment of this act on its need for, and access to, specific administrative records for the 2020 census.

Census Enterprise Data Collection and Processing.—The Committee recognizes the Bureau’s need to develop a more efficient and secure data processing system well in advance of the 2020 census and supports the request level for the Census Enterprise Data Collection and Processing [CEDCaP] initiative. This initiative will create a single enterprise data system that can be scaled up for the decennial census and scaled down during years that require less data processing capacity. The long-term maintenance, operation, and security costs of the new CEDCaP system are expected to be lower than the cost of maintaining, operating, and securing the current series of redundant, single-use systems.

The Committee also directs the Census Bureau to take appropriate steps to ensure that cost estimates and implementation timelines are accurate and that the new system is fully secured against cyber attack or intrusion before it becomes operational. The Bureau is directed to cooperate with the Office of Inspector General on all oversight activities for this system and shall brief the Committee on the development and implementation schedule for CEDCaP no less than 60 days after enactment of this act.

Web-based Questionnaires.—The Committee directs the Bureau to continue to incorporate a Web-based version of its census forms, including the American Community Survey, when planning for the 2020 decennial census. Such digital tools will likely ensure a more complete initial response and reduce the need for nonresponse follow-up work, which is the most expensive phase of census operations. In planning and creating such a tool, Census is further directed to use the best cybersecurity practices and protocols to ensure personal information remains secure and confidential.

American Community Survey [ACS].—The Committee directs the Bureau to continue using the ACS as a test bed for innovative survey and data processing techniques that will help to save money and reduce risk during the 2020 census cycle. Additionally, the Committee directs the Census Bureau to continue to provide an updated report to the Committee no later than 120 days after enactment of this act on efforts to evaluate questions included in the ACS, and the steps being taken by the ombudsman position established by the Census Bureau in fiscal year 2013 to ensure that the ACS is conducted as efficiently and unobtrusively as possible.

NATIONAL TELECOMMUNICATIONS AND INFORMATION ADMINISTRATION

SALARIES AND EXPENSES

Appropriations, 2014	\$46,000,000
Budget estimate, 2015	51,000,000
Committee recommendation	48,500,000

The Committee’s recommendation provides \$48,500,000 for the National Telecommunications and Information Administration [NTIA] salaries and expenses. The recommendation is \$2,500,000 above the fiscal year 2014 enacted level and \$2,500,000 below the budget request.

The Committee retains language from previous years allowing the Secretary of Commerce to collect reimbursements from other Federal agencies for a portion of the cost resulting from the coordi-

nation of spectrum management, analysis, and operations. NTIA shall submit a report to the Committee no later than June 1, 2015, detailing the collection of reimbursements from other agencies. The Committee directs NTIA to continue monitoring broadband grants to ensure that funds are used appropriately by recipients.

Broadband.—The Committee supports the request to continue monitoring existing broadband grants and directs NTIA to ensure that funds are used appropriately by recipients.

Spectrum Management.—The Committee directs NTIA to continue to evaluate options for repurposing spectrum for broadband use in support of the President’s goal of making 500 MHz of spectrum available for wireless broadband use. The Committee directs NTIA to provide the Committee with a status update of making 500 MHz of spectrum available for commercial mobile use including: how much spectrum has been freed up from Federal agencies for exclusive commercial mobile use to date; how much revenue has been generated from spectrum freed up to date; and the strategy for freeing up additional spectrum from Federal agencies for exclusive commercial mobile use in order to meet the National Broadband Plan’s goal of making all 500 MHz available for commercial mobile use by 2020, including costs to Federal agencies for relocation and associated reserve potential.

Internet Policy Center.—The Committee is concerned with the proposed creation of the Internet Policy Center [IPC], which would require an additional \$7,500,000 and 11 employees to coordinate policy development within the Government related to the Internet and telecommunications infrastructure, technology, and services. As the lead agency for the Federal Government representing the Nation’s interests in the governance and operations of the Internet, such activities should already be undertaken by NTIA as part of that responsibility. Should NTIA choose to initiate the IPC, or parts of the IPC, the agency may only do so from within funds provided and shall identify such activities in the agency’s spending plan to the Committee.

Internet Corporation for Assigned Names and Numbers [ICANN].—The Committee remains concerned that the Department of Commerce, through NTIA, has not been a strong advocate for American companies and consumers and urges greater participation and advocacy within the Governmental Advisory Committee [GAC] and any other mechanisms within ICANN in which NTIA is a participant. The Committee strongly encourages NTIA to be an active supporter for the interests of the Nation within ICANN and to ensure that the principles of accountability, transparency, security, and stability of the Internet are maintained for consumers, business, and the Government. The Committee awaits the past due report on NTIA’s plans for greater involvement in the GAC and the efforts it is undertaking to protect U.S. consumers, companies, and intellectual property.

Internet Assigned Numbers Authority.—The Committee understands NTIA’s plans to transition the agency’s technical stewardship of the Internet Assigned Numbers Authority [IANA] and is asking ICANN to convene a multi-stakeholder process to develop a transition plan that will maintain an open, transparent, and internationally supported process. However, the Committee is concerned

that NTIA's move could lead to other government or inter-governmental control over IANA and subsequently the Internet. While NTIA has stated that it will not accept a proposal that includes government-led or intergovernmental control over ICANN, the Committee directs NTIA to conduct a thorough review and analysis of any proposed transition of the IANA contract. This review shall ensure that ICANN has in place a NTIA approved multi-stakeholder oversight plan that is insulated from foreign government and inter-governmental control. Further, the Committee directs NTIA to report quarterly to the Committee on all aspects of the privatization process and further directs NTIA to inform the Committee, as well as the Committee on Commerce, Science, and Transportation, not less than 7 days in advance of any decision with respect to a successor contract.

FirstNet.—The Committee supports the transfer of \$1,400,000 from FirstNet to the Department of Commerce's Inspector General for the purposes of oversight and accountability of FirstNet. The Committee encourages FirstNet to report on the cost efficiencies of using deployable and self-contained architectures that operate with and without backhaul capabilities which include fiber, microwave, and satellite services in FirstNet deployment.

PUBLIC TELECOMMUNICATIONS FACILITIES, PLANNING, AND CONSTRUCTION

The Committee provides bill language allowing the NTIA to continue oversight and administration of previously awarded grants. NTIA shall not use unobligated balances to award new grants.

UNITED STATES PATENT AND TRADEMARK OFFICE SALARIES AND EXPENSES

Appropriations, 2014	\$3,024,000,000
Budget estimate, 2015	3,458,000,000
Committee recommendation	3,458,000,000

The Committee's recommendation provides \$3,458,000,000 for the United States Patent and Trademark Office [USPTO], which is \$434,000,000 above the fiscal year 2014 enacted level and equal to the budget request, to be derived from offsetting fee collections.

USPTO is the central hub of an innovation-friendly Government. USPTO examines patent applications, grants patent protection for qualified inventions, and disseminates technological information disclosed in patents. USPTO also examines trademark applications and provides Federal registration to owners of qualified trademarks.

Budget Execution.—The Committee continues to allow USPTO full access to patent and trademark fees and provides language allowing USPTO to retain any revenue in excess of appropriated levels.

Transfer to Office of Inspector General.—The Committee provides \$2,000,000 for the Office of Inspector General [OIG] to continue oversight and audits of USPTO operations and budget transparency, and USPTO is directed to work with the Department of Commerce to implement all OIG recommendations.

Fee Collections Projections.—The Committee directs the USPTO to continue to provide quarterly reports on its projected fee collections, and to notify the Committee during any month when significant changes in such projections prompt serious concern or require drastic budgetary responses. It is imperative that USPTO balance sustainable operations with realistic revenue and judicious reserve spending.

Reprogramming and Spend Plan.—USPTO is required to continue to follow the reprogramming procedures outlined in section 505 of this act before using excess fee collections to forward fund expenses beyond fiscal year 2015. Any deviations from the funding distribution provided for, including carryover balances, are subject to the standard reprogramming procedures set forth in section 505 of this act. USPTO is directed to provide, as part of the spending plan required in section 534 of this act, all carryover balances from previous fiscal years, and a description of any changes to the patent or trademark fee structure. Any changes from the spending plan shall also be subject to section 505 of this act. USPTO is directed to submit all reprogramming requests, spending plans and budget justifications to the Committee through the Department of Commerce.

Hiring.—The Committee supports USPTO's plan to hire 1,000 new patent examiners in each of fiscal years 2014 and 2015. This hiring will keep USPTO on track to reach its target pendency goals for patent decisions of 10 months for first action and 20 months for final action in fiscal year 2019.

Patent Reviews.—The Committee urges USPTO to increase the quality of patent reviews by continuing to increase the level of industry expertise the agency retains on staff, including exploring innovative solutions such as engaging and employing retired industry experts on a part-time basis. The Committee also strongly encourages USPTO to reduce ambiguity in patent decisions by increasing examiner training regarding the appropriate use of rejections under 35 U.S.C. 112 (a) and (b), which dictate that the patent applicant more thoroughly defend the invention by describing it as fully, clearly, and exactly as possible, and by distinctly delineating its bounds at the time of application submission to USPTO.

Satellite Offices.—The Committee maintains support for USPTO's nationwide workforce program and the establishment of satellite offices. The Committee's recommendation will support allowing existing satellite offices to occupy permanent facilities. Additionally, the Committee recognizes the value of creating additional satellite offices in regions with a high volume of patents filed and issued to provide increased access to patent seekers. When selecting locations for additional satellite offices, the Committee directs USPTO to consider the regional volume of patent activity, geographic distribution of existing satellite offices, availability of donated space for satellite offices within a geographic area not currently served by USPTO, access to transportation options, and proximity to universities and patent experts.

Reducing Patent Application Fees.—The Committee supports USPTO's decision to pursue lower application fees for patent applications submitted online. This will reduce costs for inventors and

businesses applying for patent protections and increase overall efficiency at USPTO.

Intellectual Property Rights Attachés.—In addition to granting patents and registering trademarks, USPTO works to protect and promote the protection of American intellectual property domestically and overseas. USPTO advises the White House and all Federal agencies on national and international intellectual property policy issues and is authorized to provide guidance, conduct programs and studies, and otherwise interact with foreign intellectual property offices and international intergovernmental organizations on matters involving the protection of intellectual property.

An important component of USPTO's international efforts is the Intellectual Property Rights [IPR] Attaché Program. IPR Attachés, stationed in eight countries, promote U.S. Government IPR policy internationally, help secure strong and balanced IP protections in international agreements and host country laws, and otherwise encourage strong and balanced IPR protection and enforcement by U.S. trading partners for the benefit of U.S. stakeholders. The Committee encourages efforts within the Department of Commerce and the administration to strengthen the IPR Attaché Program by, among other actions, elevating the diplomatic rank of the individuals serving as Attachés and ensuring sufficient funding to support their efforts.

NATIONAL INSTITUTE OF STANDARDS AND TECHNOLOGY

Appropriations, 2014	\$850,000,000
Budget estimate, 2015	900,000,000
Committee recommendation	900,000,000

The Committee's recommendation provides \$900,000,000 for the National Institute of Standards and Technology [NIST]. The recommendation is \$50,000,000 above the fiscal year 2014 enacted level and the same as the budget request. Up to \$9,000,000 may be transferred from the Scientific and Technical Research and Services account to the Working Capital Fund.

NIST's mission is to promote U.S. innovation and industrial competitiveness by advancing measurement science, standards, and technology in ways that enhance economic security and improve our quality of life.

A description of each NIST account and the corresponding Committee recommendation follows in the subsequent three headings.

SCIENTIFIC AND TECHNICAL RESEARCH AND SERVICES

Appropriations, 2014	\$651,000,000
Budget estimate, 2015	680,000,000
Committee recommendation	685,000,000

The Committee's recommendation provides \$685,000,000 for NIST research and services. The recommendation is \$34,000,000 above the fiscal year 2014 enacted level and \$5,000,000 above the budget request.

Cybersecurity.—The Committee supports the administration's request for cybersecurity activities within NIST, which includes: \$15,000,000 for the National Cybersecurity Center of Excellence [NCCoE]; \$16,500,000 for the National Strategy for Trusted Identi-

ties in Cyberspace including further pilots; and \$4,000,000 for the National Initiative for Cybersecurity Education in order to address the need for a well-trained cybersecurity workforce. In addition, the Committee provides no less than \$60,700,000 for cybersecurity research and development, an increase of \$5,000,000 above the fiscal year 2014 level for cryptographic standards.

The Committee expects the NCCoE to evolve into a technology transfer hub for cyber solutions derived from Government and private sector tools. As companies continue to partner and coordinate with NCCoE, the Committee encourages NIST to create a plan for increasing innovation opportunities by encouraging companies to co-locate near the Center. In order to maximize opportunities for collaboration with academia and business, the Committee encourages NIST to execute its responsibilities as coordinator of the National Initiative for Cybersecurity Education through the NCCoE.

The Nation's retail sector is increasingly vulnerable to and targeted by cyber-attacks that seek both private customer data and valuable intellectual property and which threaten the growing e-commerce marketplace. In order to assist the retail sector to innovate and stay ahead of evolving threats, the Committee encourages the NCCoE to build upon existing industry-sector focused work to create an initiative focused on retail sector challenges and solutions in addition to existing public-private partnerships and initiatives focused on the health, energy and financial sectors.

The Center should seek partnerships with national leaders in retail information technology [IT] security who have shown a willingness to innovate and involve their integrated supplier networks, as well as academic entities with experience in retail cybersecurity and retail supply chain management and logistics. The goal of this public-private partnership should be to enable cheaper and more widespread integration of advanced cybersecurity tools developed by the Federal Government for defense and homeland security applications to protect online financial transactions and retail IT networks.

The Committee encourages DOC to fund multidisciplinary programs of study and research that focus on tackling cybersecurity issues on a global scale. When establishing criteria for external grant funding, consideration should only be given to institutions of higher education, including community colleges, designated by the National Security Agency as Centers of Academic Excellence for Information Assurance Education and Centers for Academic Excellence for Information Assurance Research.

Lab-to-Market Technology Transfer.—More than \$135,000,000,000 in Federal research and development (R&D) spending is requested government-wide for fiscal year 2015. In order to maximize the impact of Federal R&D, the Committee has included the full budget request of \$6,000,000 for Lab-to-Market Technology Transfer. This funding will allow NIST to develop and disseminate best practices and strategies to accelerate the transfer and commercialization of Federal technologies to help discoveries become companies that create jobs and expand the economy. This initiative shall coordinate with the NCCoE to help promote cybersecurity technology transfer through NIST's cybersecurity hub.

Centers of Excellence.—The Committee includes the budget request level of \$15,000,000 to support Centers of Excellence selected in fiscal year 2013 and to be selected in fiscal year 2014 that produce collaborations between NIST, academic, and industry specialists on research focused on innovations in measurement science and new technology developments.

The Committee encourages NIST to propose funding to create an appropriate number of new centers of excellence in future fiscal years, including centers in fields such as advanced photonics, cryptography, and technologies associated with ribonucleic acid.

Forensic Science.—In addition to the funding requested to be provided to the Department of Justice and transferred to NIST, the Committee supports the full request for measurement science and standards in support of forensic science, an increase of \$3,500,000 above fiscal year 2014, and directs NIST to continue to coordinate its activities with the Department of Justice and the National Science Foundation.

Scientific Working Group on Digital Evidence.—Digital evidence is information stored or transmitted in digital form, including emails, the contents of computer memory, Internet browser histories, and many other items. Scientific Working Groups [SWG] consist of scientific subject-matter experts who collaborate to determine best practices and to develop consensus standards with the goal of improving the processes within a particular area of forensic science. The complex, diverse, and rapidly evolving technological advances of digital technologies dictates the need for a SWG in this field that is integrated into the Organization of Scientific Area Committees [OSAC] to establish consensus standards and guidelines to improve quality and consistency of forensic science practices for digital evidence.

The Committee understands that the memorandum of understanding between NIST and the Department of Justice specifically prohibits the establishment of a SWG for digital evidence under the new NIST structure and disagrees with this prohibition. The Committee therefore directs NIST to establish a SWG for digital evidence within the OSAC. The NIST-supported Digital Evidence SWG should develop a transition plan to ensure that the members and expertise of the Justice-supported SWG can be transitioned and fully integrated into the overall OSAC process.

Urban Dome Program.—The Committee notes the value of NIST's Urban Dome program and the importance of accurate measurement science for environmental monitoring and human health as more than half the world's population is living in urban areas, a level of concentration expected to intensify over the coming decades. The Committee has included an additional \$2,000,000 for the Office of Special Programs to expand the number of urban dome locations in fiscal year 2015. The Committee expects a plan on the Urban Dome program including anticipated outcomes, inclusion of additional U.S. cities over the next 5 years, ways the United States can enlist the support of international partners for comparable efforts in other countries, and any plan for transitioning research to operations, including transitioning operations to another Government agency within the next 3 fiscal years. This plan should be submitted within 60 days of enactment of this act.

Facility Security.—The Committee continues to provide funding for NIST to maintain security operations for its laboratories and facilities. The Federal Protective Services [FPS] has previously proposed to take over NIST’s security operations, yet the Committee has not received a plan from the administration that would detail the transfer of security funding and responsibility from NIST to FPS. Therefore, the Committee does not grant such a transfer during fiscal year 2015.

STEM Education.—The Committee continues to support NIST’s activities related to Science, Technology, Engineering and Mathematics [STEM] Education and fully funds its activities authorized under 15 U.S.C. 278g–2a.

INDUSTRIAL TECHNOLOGY SERVICES

Appropriations, 2014	\$143,000,000
Budget estimate, 2015	161,000,000
Committee recommendation	156,000,000

The Committee’s recommendation provides \$156,000,000 for Industrial Technology Services. The recommendation is \$13,000,000 above the fiscal year 2014 enacted level and \$5,000,000 less than the budget request. Supporting the Nation’s manufacturers, especially small businesses, is critical to keeping America innovative in a global marketplace. The Committee’s recommendation provides \$141,000,000 for the Hollings Manufacturing Extension Partnership Program and \$15,000,000 for the Advanced Manufacturing Consortia.

Hollings Manufacturing Extension Partnership Program [MEP].—The Committee recommends the full request of \$141,000,000 for MEP. The Committee supports the MEP focus on strengthening the existing network of MEP centers and providing additional support to centers based on the documented performance of the center’s activities and the manufacturing capacity of the area served by the center. The Committee encourages centers, as appropriate, to support efforts to reshore manufacturing operations and jobs.

Advanced Manufacturing Technology (AmTech) Consortia.—Initial funding for AmTech was provided in fiscal year 2013. The program’s current activities include planning and small grants for industry-led consortia, which will identify and prioritize research projects supporting long term industrial research needs. The Committee reiterates its earlier view that there is no significant distinction between the AmTech consortia and the proposed National Network for Manufacturing Innovation [NNMI] institutes.

While NNMI has not been authorized, the Committee recognizes that the Department of Defense and the Department of Energy have begun investments in mission-related NNMI pilot institutes using discretionary funding, and NIST is responsible for coordinating these efforts through the Advanced Manufacturing National Program Office. The Committee has not provided the \$5,000,000 requested in the budget for NNMI coordination activities, but rather directs NIST to fund NNMI-related activities through AmTech, as in fiscal years 2013 and 2014. No funds are requested or provided for new NNMI pilot institutes. The Committee directs NIST to report, within 60 days of enactment, on the AmTech-related re-

sources necessary in fiscal year 2015 and the resources it expects to need in future years to support the existing NNMI institutes and any potential growth should NNMI authorization legislation be enacted.

CONSTRUCTION OF RESEARCH FACILITIES

Appropriations, 2014	\$56,000,000
Budget estimate, 2015	59,000,000
Committee recommendation	59,000,000

The Committee's recommendation provides \$59,000,000 for construction of research facilities. The recommendation is \$3,000,000 above the fiscal year 2014 enacted level and equal to the budget request.

The recommendation funds the highest priority construction, maintenance, and repair projects at NIST, including planning for renovation of Building 245. The Committee encourages NIST to include full funding to complete high priority projects like Building 245 renovation in the fiscal year 2016 request and directs NIST to provide quarterly reports on the status of all construction projects.

NATIONAL OCEANIC AND ATMOSPHERIC ADMINISTRATION

(INCLUDING TRANSFER OF FUNDS)

Appropriations, 2014	\$5,314,606,000
Budget estimate, 2015	5,488,735,000
Committee recommendation	5,420,000,000

The Committee's recommendation provides \$5,420,000,000 for the National Oceanic and Atmospheric Administration [NOAA]. The recommendation is \$105,394,000 above the fiscal year 2014 enacted level and \$68,735,000 below the budget request.

The Committee's recommendation for NOAA maintains a balanced science and research portfolio that encompasses all aspects of our oceans, coasts, and weather, while managing current fiscal constraints. The Committee has provided modest but sufficient increases to all of NOAA's line offices in an effort to advance research and operations while providing a necessary boost to NOAA's acquisitions accounts including supporting the requested increases for improving weather information technology infrastructure and the construction of our next generation of weather satellites.

OPERATIONS, RESEARCH, AND FACILITIES

(INCLUDING TRANSFERS OF FUNDS)

Appropriations, 2014	\$3,157,392,000
Budget estimate, 2015	3,237,993,000
Committee recommendation	3,228,964,000

The Committee's recommendation provides \$3,228,964,000 for NOAA's operations, research, and facilities. The recommendation is \$71,572,000 above the fiscal year 2014 enacted level and \$9,029,000 below the budget request.

NOAA NATIONAL OCEAN SERVICE

The Committee's recommendation provides \$489,787,000 for the National Ocean Service [NOS]. NOS programs provide scientific,

technical, and management expertise to promote safe navigation; assess the health of coastal and marine resources; respond to natural and human-induced threats; and preserve the coastal, ocean and global environments.

The Committee's recommendations are displayed in the following table:

NATIONAL OCEAN SERVICE OPERATIONS, RESEARCH, AND FACILITIES

[In thousands of dollars]

	Committee recommendation
Navigation, Observations and Positioning:	
Navigation, Observations and Positioning	141,876
Hydrographic Survey Priorities/Contracts	25,250
Integrated Ocean Observing System—Regional Observations	29,500
Total, Navigation, Observations and Positioning	196,626
Coastal Science and Assessment:	
Coastal Science, Assessment, Response and Restoration	71,613
Competitive External Research	10,000
Total, Coastal Science and Assessment	81,613
Ocean and Coastal Management and Services:	
Coastal Science, Assessment, Response and Restoration	43,274
Coastal Management Grants	71,646
Coral Reef Program	26,078
National Estuarine Research Reserve System	21,550
National Marine Sanctuaries	49,000
Total, Ocean and Coastal Management and Services	211,548
GRAND TOTAL NOS	489,787

Navigation, Observations and Positioning.—The Committee supports the administration's request for activities under Navigation, Observations and Positioning, including the full operational funding for NOAA's Navigation Response Teams. A total of \$25,250,000 is provided for Hydrographic Survey Contracts, which is \$250,000 above the request. The Committee directs NOAA to report within 60 days of enactment on progress made to survey and prepare navigational information for the Bering Straits region and the Arctic. NOAA is further directed to report on hydrographic activities planned for fiscal year 2015, including: vessels to be utilized, the areas to be surveyed, and the remaining gaps in the Arctic region.

The Committee provides \$3,700,000 within Navigation, Observations and Positioning to continue the competitive Geospatial Modeling Grants Program of which all funding shall be distributed externally.

The Committee provides \$5,500,000 for the Physical Oceanographic Real-Time System [PORTS]. The Committee believes these operations, which exist as a partnership between NOAA and local port authorities, are extremely valuable tools for providing information for safe vessel navigation and data for weather and coastal monitoring. The Committee encourages NOAA to request funding that reflects the totality of the program's costs, including operations and maintenance as authorized by Hydrographic Services

Improvement Act (Public Law 110–386) in future budget submissions.

The Committee supports the requested level and intended use of funds for Hydrographic Research and Technology Development. The Committee provides an additional \$300,000 for NOAA to designate joint ocean and coastal mapping centers in other areas of the country to be co-located with an institution of higher education as authorized by the Omnibus Public Land Management Act of 2009 (Public Law 111–11). The Committee is disappointed that NOAA has yet to provide the report requested by the Committee in the Consolidated Appropriations Act, 2014 (Public Law 113–76) on the agency’s plans to designate two additional joint ocean and coastal mapping centers, and directs NOAA to expedite delivery of this report.

For fiscal year 2015, the Committee supports NOAA’s Alliance for Coastal Technologies [ACT] given the program’s valuable expertise in marine sensor technology development. The Committee directs NOAA to maintain full funding for ACT within the National Ocean Service.

Coastal Science, Assessment, Response and Restoration.—Within the funds provided for Coastal Science, Assessment, Response and Restoration, \$2,500,000 shall be for operations and staffing of the Gulf of Mexico Disaster Response Center [DRC], of which up to \$500,000 may be used to support authorized activities, carried out at the DRC, for the Gulf Coast Ecosystem Restoration Council, which was established by the Federal Water Pollution Control Act (33 U.S.C. 1321). The DRC shall serve as the Gulf Coast hub for NOAA’s emergency preparedness, response, and recovery operations which complement the mission of the Restoration Council.

National Centers for Coastal Ocean Science [NCCOS].—The Committee maintains strong support for NCCOS and the services that the various centers provide. As such, the Committee rejects NOAA’s proposal to consolidate NCCOS facilities and instead continues funding for all existing labs in fiscal year 2015.

Not later than 90 days after the date of enactment of this act, NOAA shall provide a report to the Committee outlining options to avoid unnecessary costs associated with maintaining a presence at the Center for Coastal Environmental Health and Biomolecular Research [CCEHBR] without significantly disrupting the ongoing partnership at the Hollings Marine Laboratory [HML]. In developing the report, NOAA shall consult and coordinate with representatives from each partner organization that is party to the Joint Project Agreement at HML.

With regard to the Beaufort NCCOS lab, NOAA may explore options for transferring the lab and associated funding to a different line office outside of the National Ocean Service in future budget requests while ensuring that the important research conducted at the lab continues.

The Committee notes that NCCOS provides valuable services to the Nation by leveraging internal expertise and extramural research. However, the West and Gulf Coasts of the United States currently lack a NCCOS presence, especially in the Gulf Coast where the National Ocean Service has shared responsibility over NOAA’s RESTORE Act Science Program. As part of its 90-day re-

port, NOAA shall include plans on how NCCOS could increase its presence on the West Coast and the Gulf Coast. The Committee encourages NOAA to leverage partnerships when planning these NCCOS expansions including through the co-location of NCCOS staff and research equipment at university and non-profit research facilities on the West and Gulf coasts currently carrying out activities consistent with the goals of NCCOS.

Marine Debris.—The Committee supports the requested level for NOAA’s Marine Debris Program, but is concerned that NOAA has placed insufficient emphasis on efforts to clean up and dispose of marine debris resulting from the 2011 Japanese tsunami. Within the funds provided, NOAA shall give priority to clean-up and disposal activities on Federal lands within States inundated with debris from the 2011 Japanese tsunami.

Additional consideration should be given to marine debris projects in urban communities that include the removal of abandoned vessels and pilings that harm the ecosystem and hinder recreational fishing.

Coastal Zone Management and Services.—Within the increased funds for Coastal Zone Management and Services, the Committee encourages NOAA’s Coastal Services Center to conduct research, provide services, and conduct educational programs to better prepare our citizens for disasters, both natural and man-made.

Coastal Management Grants.—The Committee supports the requested funding levels for Coastal Zone Management Grants and Regional Coastal Resilience Grants.

National Marine Sanctuary System.—Among the ongoing responsibilities of the Office of National Marine Sanctuary [ONMS] is the preservation and conservation of artifacts recovered from cultural resource sites within its boundaries, including the USS *Monitor*, which was designated as the first National Marine Sanctuary in 1975. Proper conservation of maritime artifacts can take years, and ONMS does not embark on such long-term commitments without crafting proper management plans and securing conservation agreements with its Federal and non-Federal partners. ONMS is directed to remain a good steward of these historic assets and that existing commitments and responsibilities are met before pursuing new ones.

NOAA NATIONAL MARINE FISHERIES SERVICE

The Committee’s recommendation provides \$836,192,000 for the National Marine Fisheries Service [NMFS]. NMFS programs provide for the management and conservation of the Nation’s living marine resources and their environment, including fish stocks, marine mammals, and endangered species. Using science-based conservation, management, and restoration activities, these resources can benefit the Nation on a sustained basis. NMFS seeks to build sustainable fisheries, recover protected species, and sustain healthy coastal ecosystems and the communities that depend on them.

Committee recommendations are displayed in the following table:

NATIONAL MARINE FISHERIES SERVICE OPERATIONS, RESEARCH, AND FACILITIES

[In thousands of dollars]

	Committee recommendation
Protected Species Research and Management:	
Protected Species Research and Management Programs Base	39,200
Species Recovery Grants	5,000
Marine Mammal Protection	49,000
Other Protected Species	10,200
Marine Turtles	12,200
Atlantic Salmon	6,000
Pacific Salmon	60,000
Total, Protected Species Research and Management	181,600
Fisheries Research and Management:	
Fisheries Research and Management Programs	177,000
National Catch Share Program	25,000
Pacific Coast Groundfish Capacity Reduction	300
Expand Annual Stock Assessments	72,000
Economics and Social Sciences Research	7,417
Salmon Management Activities	30,200
Regional Councils and Fisheries Commissions	32,738
Fisheries Statistics	22,000
Fish Information Networks	22,000
Survey and Monitoring Projects	24,200
Fisheries Oceanography	2,179
American Fisheries Act	3,782
Interjurisdictional Fisheries Grants	2,502
National Standard 8	1,001
Reducing Bycatch	3,508
Product Quality and Safety	6,700
Total, Fisheries Research and Management	432,527
Enforcement and Observers:	
Enforcement and Surveillance	65,350
Observers and Training	43,100
Total, Enforcement and Observers	108,450
Habitat Conservation and Restoration	52,190
Other Activities Supporting Fisheries:	
Antarctic Research	2,942
Aquaculture	6,000
Climate Regimes and Ecosystem Productivity	2,500
Computer Hardware and Software	1,805
Cooperative Research	12,080
Information Analyses & Dissemination	15,100
Marine Resources Monitoring, Assessment and Prediction Program	801
National Environmental Policy Act	6,609
NMFS Facilities Maintenance	3,302
Regional Studies	10,286
Total, Other Activities Supporting Fisheries	61,425
GRAND TOTAL NMFS	836,192

Protected Species, Marine Mammals.—The Committee supports NMFS's mission under this activity to monitor, protect, and recover at-risk marine mammal species who were listed under the Endangered Species Act in 2005, but whose populations continue to decline. The Committee directs NMFS to utilize funding for the pro-

tection and recovery of marine mammal species at risk due to factors such as limited prey species, water-borne toxin accumulation, and vessel and sound impacts. The Committee rejects the administration's proposal to reduce funding for the John H. Prescott Marine Mammal Rescue Assistance Grant Program and provides sufficient funding for Prescott grants within the Marine Mammal Protection account.

Protected Species, Atlantic Salmon.—NOAA has identified major threats to Atlantic salmon, including interrelated effects of freshwater salmon habitat loss, lost prey buffering, and marine derived nutrients from declines of co-evolved diadromous species. Within the funds provided, the Committee encourages NOAA to enable a broader use of funds for restoration of diadromous species and habitat that support salmon recovery by providing ecological functions critical to the Atlantic salmon life cycle. The Committee also encourages NOAA to ensure that adequate resources continue to be provided for State agencies to effectively implement the recovery strategy.

Protected Species, Pacific Salmon.—The Committee is concerned that NMFS is not allocating sufficient resources to the West Coast Region to fulfill the agency's full range of Pacific salmon recovery and management requirements in a timely manner. The requirements affect not only the well-being of the species but also important natural resource management decisions in the region such as water allocations. The Committee directs NOAA to provide the funding necessary to support Pacific salmon research and management activities carried out by the West Coast Region, including, but not limited to: Endangered Species Act compliance, reviews and permitting; operational decision support; revisions of Pacific salmon biological opinions; drought mitigation; drought barriers; real-time monitoring; adaptive management programs; and passive integrated transponder tagging programs.

Protected Species, Marine Turtles.—The Committee provides \$12,200,000 for marine turtle activities and opposes the budget request which specifically targeted Hawaiian sea turtles for reduced funding. The Committee reallocated \$812,000 from NMFS's Fisheries Management account to provide the balance of the funding in fiscal year 2015 for marine turtles. The Committee understands that fiscal constraints may lead NOAA to request budget cuts to marine turtles, but should reduced funding be deemed necessary in future budget requests, the Committee directs NOAA to make such reductions equitable and not disproportionately target specific turtle species.

Promote and Develop Fisheries Products and Research Funding Transfer.—The bill maintains the provision restricting the use of the Promote and Develop Fisheries Products and Research funds transferred from the Department of Agriculture to NOAA in a way that better meets the intended purpose of the transfer mandated by the Saltonstall-Kennedy Act. None of the funds may be used for internal NOAA or Department of Commerce management but rather funds may only be used for activities that directly help U.S. fisheries and fishery communities. Specifically, these funds may only be used for: cooperative research; annual stock assessments; efforts to improve data collection, including catch monitoring and report-

ing for commercial, charter, and recreational fisheries; interjurisdictional fisheries grants; and Fisheries Information Networks.

As part of the fiscal year 2015 spending plan, NOAA shall include a clear accounting of how the Promote and Develop transfer funds will be allocated based on the funding criteria described in this bill.

The Committee further directs that no less than 10 percent of the total amount of the transferred funds shall be provided for the competitive Saltonstall-Kennedy Grant program. NOAA shall consult with each Regional Fishery Management Council and the Marine Fisheries Commissions to identify regional funding priorities. Prior to the expenditure of any of these funds, NOAA shall provide the Committee with a detailed spending plan describing which fisheries activities will be funded in each of the regions and how the plan incorporates regional priorities.

Red Snapper Stock Assessments.—The Committee directs NOAA to continue taking into account the benefits provided by artificial reefs and offshore man-made structures, such as oil rigs and other fixed energy exploration infrastructure, when updating stock assessments or conducting any new stock assessments for reef fish in the Gulf of Mexico under a Fisheries Management Plan, including red snapper. Furthermore, NOAA shall take into consideration any imbalance in the ecosystem that may be occurring between larger red snapper and other fish species before accepting amendments to existing regulations or implementing new regulations that directly affect red snapper quotas in the Gulf of Mexico.

Epipelagic Apex Predators.—The Committee acknowledges growing evidence that yellowfin tuna and other epipelagic apex predators are aggregating at offshore oil platforms in a similar manner to their more traditional aggregation points. These offshore platforms may alter yellowfin movements, diet, diseases, growth, age at maturity, and spawning. However, NOAA lacks fundamental data on how this new association may impact these important species. Within funding provided, NOAA should examine the impact of offshore oil platforms on the biology of highly migratory species such as yellowfin tuna. NOAA shall provide a report on the results of this research no later than 1 year after enactment of this act.

Marine Recreational Information Program.—Improved stock assessments are critical to maintaining and, in some cases, rebuilding our Nation's fisheries, which is why the Committee has consistently provided increased funding for Annual Stock Assessments within NMFS's budget. However, such support does not come without accountability as the Committee monitors these funds to ensure that they are being spent effectively. Consequently, the Committee has serious concerns about the accuracy, reliability, and timeliness of recreational fisheries data collected and analyzed by NOAA's fisheries science centers.

The Committee notes an opinion issued in March of 2014 by the U.S. District Court for the District of Columbia, which found that NMFS "failed to use the best scientific information available," and carried out management actions that were "arbitrary and capricious" for the Gulf of Mexico red snapper fishery. This resulted in harm to the commercial sector and will harm the recreational sector by further restricting future red snapper seasons for rec-

reational anglers in the Gulf of Mexico. In the Caribbean, 11 separate NOAA stock assessments conducted between 2003 and 2013 failed to produce any usable data, yet the agency continues to refuse to incorporate additional outside data into its assessment process despite having insufficient resources to meet demand. In the Atlantic, erroneous data on recreational sea bass catches remain uncorrected and unsubstantiated, and continue to propagate into NOAA's regulations resulting in unjustified size and catch limits.

Despite years of transition, the Marine Recreational Information Program's [MRIP's] improvements upon the legacy Marine Recreational Fisheries Statistics Survey have yet to be fully realized, and reforms to MRIP that were intended to be made years ago—such as license data audits—have yet to be implemented. Therefore, the Committee finds that MRIP may be inadequate to serve as the primary source of data collection for recreational fishing used to make management decisions throughout the country. The Committee encourages NMFS to augment, or replace when feasible, MRIP data with data collected from electronic reporting programs approved by regional fishery management councils.

Furthermore, the Committee directs the Government Accountability Office to review MRIP methodologies including the general practices and procedures of NOAA's fisheries science centers, to provide recommendations about how the agency can address the specific issues associated with the aforementioned events and improve overall coordination with all stakeholders.

Pacific Coast Groundfish.—In the event that legislation is enacted during fiscal year 2015 that authorizes changes to the existing loan program that has funded the Pacific Coast groundfish fishing capacity reduction program, the recommendation includes up to \$300,000 to support those changes.

Salmon Management Activities.—Within the amount provided for Salmon Management activities, the Committee recommends \$10,900,000 to enable States and tribal communities to implement necessary Pacific Salmon Treaty agreements. The Committee fully supports all other aspects of the budget request for Salmon Management activities that are essential to meeting these treaty obligations. The Committee also provides additional funding above the request to be used for the operation and maintenance of Mitchell Act hatcheries.

Baseline Data for Gulf of Mexico.—The Committee directs NOAA to continue supporting baseline research for fisheries health in the Gulf of Mexico, including studies of pelagic species. NOAA is encouraged to increase and continue collaborations in the gulf to establish an integrated and comprehensive ecosystem-level fisheries monitoring enterprise and sentinel species program.

Charter Vessels.—To help improve the quality and abundance of fishery data used for stock assessments, the Committee continues to encourage NOAA to expand the agency's activities in chartering commercial fishing vessels to serve as research and fishery survey vessels. Increasing these charter opportunities will enlarge the geographically diverse data collection for broad fish populations and enhance numerous ocean research programs. Other parts of NOAA, including the National Ocean Service and the Office of Oceanic and

Atmospheric Research line offices, shall charter commercial fishing vessels, when applicable, to augment ongoing survey and research activities.

American Lobster.—The southern New England stock of American lobster continues to decline and is under increasing stress. Although the Atlantic States Marine Fishery Commission exercises primary regulatory responsibility for this fishery, portions of six out of seven management areas are in Federal waters. NMFS implements complementary regulations for the fishery in these areas, but a lack of data about the condition of this fishery still exists. To improve coordination and consistency, the Committee continues to direct NMFS to engage the industry in conducting surveys and research that complements activities undertaken by the States and directs NOAA to report to the Committee within 120 days of enactment of this act on its progress in working with industry on this mandate.

Bycatch Reduction.—The development and implementation of practical bycatch solutions is a priority for U.S. and international fisheries management and protected species conservation. The Committee supports the requested amount for Reducing Bycatch, of which NMFS is directed to make \$2,500,000 available for competitive grants to non-Federal researchers working with U.S. fishermen on the development of improved fishing practices and innovative gear technologies.

Enforcement and Observation.—The Committee is aware that implementation of the Northeast Multispecies fishery sector management program continues to present substantial financial challenges to the participants as well as to the economic sustainability of the fishery and fishing communities throughout the region. Within the funding provided for the National Catch Share Plan and observer coverage, the Committee directs NMFS to provide adequate funding for at-sea and dockside monitoring for fisheries with approved catch share management plans that impose observer coverage as a condition for new or expanded fishing opportunities.

Electronic Logbooks.—The Committee supports NOAA's efforts to transition to cellular electronic logbooks and monitoring systems, which are essential to the implementation of current fishery regulations. Within the funds provided for NMFS, NOAA is directed to maintain full funding for the continued installation of new logbooks and monitoring systems during the initial transition phase, including, but not limited to, the Gulf of Mexico shrimp fishery. During the development and implementation of electronic reporting and monitoring programs, NOAA shall consult directly with industry and work through the Fishery Management Councils pursuant to 16 U.S.C. 1851–1852k to develop appropriate cost-sharing arrangements.

NMFS shall continue work in fiscal year 2015 with small boat fixed gear fleets throughout the country to implement a cooperative research program designed to test the functionality of available electronic monitoring systems. This cooperative research program shall address data quality, costs, species identification capabilities, and the reliability of hardware. NMFS shall ensure that this effort is adequately resourced for the fiscal year 2015 work program.

Further, NMFS is encouraged to exercise reasonable discretion when evaluating requests by small boat fixed gear vessels seeking a release from the requirement to carry a human observer due to a lack of physical space or other operational constraint. The Committee is concerned with NMFS's approach to granting observer release based on hardship and therefore directs the agency to grant such releases based on the actual number of bunks on a vessel and reasonable assessment of vessel operations with due consideration for the well-being of the crew. The Committee encourages NMFS to support the use of experimental fisheries permits, to continue the expeditious development of electronic monitoring equipment and procedures, and to use the experimental fisheries permits as the bridge between cooperative research and the implementation of electronic monitoring technology by regulation as a component of the Observer Program for small boat fixed gear fleets.

In addition, within the funds provided for NMFS, \$2,000,000 shall be available, pursuant to 16 U.S.C. 3701, for collaborative partnerships that include non-Federal matching funds, to implement cost-shared electronic monitoring and reporting programs that support fisheries conservation and management, including but not limited to, on a voluntary basis, the for-hire recreational fishery in the Gulf of Mexico.

Habitat Conservation and Restoration.—The Committee maintains support for the consolidation of coastal habitat programs into the Habitat Conservation and Restoration program and supports the requested level for Fisheries Habitat Restoration. The Committee encourages NOAA to include a broader, ecosystem-based management philosophy, expand criteria to include recreational species, managed commercial species, and forage species, and prioritize proposals that engage communities. NOAA is directed to give priority to habitat restoration grants for river basins that are critical to the restoration of priority fisheries, especially restoration projects that support multistakeholder agreements, including settlements of litigation and conflict over water management, particularly involving the settlement of tribal water rights. Furthermore, NOAA is encouraged to work with local communities and tribal governments so they can engage in collaborative management and restoration of fisheries.

Coastal Ecosystem Resiliency Grants.—The Committee provides an additional \$10,000,000 to NMFS's Habitat Conservation and Restoration, to fund coastal zone restoration projects to specifically enhance ocean and coastal ecosystem resiliency to extreme weather. NOAA shall coordinate with other appropriate Federal agencies, especially the United States Army Corps of Engineers, Governors from coastal States, academic institutions, and nonprofit organizations to solicit and identify projects in coastal zones that would improve or restore ocean and coastal ecosystems such as erosion stabilization through living shorelines, wetlands restoration, and dam removal. To maximize the usefulness of these funds, NOAA should include a cost sharing requirement in the grant solicitation as part of its criteria for selecting projects. NOAA may use these funds to support a project for a coastal State only with the approval of the State's Governor.

Aquaculture.—Within the funds provided for Aquaculture, the Committee supports ongoing research in off-bottom oyster production in coastal areas, including the Gulf of Mexico, and encourages NMFS to dedicate resources for further research in oyster genetics, disease, and economic modeling.

Lionfish.—The Committee is concerned about the increasing threat posed by the invasive marine fish belonging to the genus *Pterois*, particularly the lionfish. The lionfish has invaded habitats along the southeastern coast of the United States and recent sightings have been reported off western portions of the gulf coast. The Committee encourages NOAA to work with interested State, local, private and nonprofit partners to mitigate the negative impacts of lionfish on natural ecosystems, including but not limited to studying how artificial reefs may affect lionfish migration into the gulf.

Oyster Reef Restoration.—The Committee continues to encourage NOAA to work with its State and non-Federal partners to consider supporting oyster shell recycling programs as part of the agency's competitive external funding opportunities for habitat restoration projects.

Cooperative Research.—Depleted fish stocks result in significant economic losses to our Nation. At a time when fishing opportunities are constrained by uncertainty in stock assessment, and increased access to healthy stocks depends on better data, the Committee believes that maintenance of ongoing monitoring programs and surveys is critical. The Committee encourages NMFS to continue to prioritize long-time series surveys, with emphasis on surveys that are conducted cooperatively with industry and States. In addition, the Northeast Fisheries Science Center is directed to work collaboratively with the fishing industry to update the Northeast Cooperative Research Strategic Plan, including: the identification of science priorities; a process for greater involvement of fishermen in data collection; and better communication of how the results of cooperative fisheries research are used.

Big Eye Tuna Quotas in the Western and Central Pacific.—The Committee notes that NMFS intends to amend the fishery management plans in its Pacific Islands region to allow for the assignment of unused big eye tuna quota from American Samoa, the Commonwealth of the Marianas Islands, and Guam to Hawaii's longline fleet. This amendment is crucial to support the well-managed domestic longline fishery for big eye tuna. The Committee directs NMFS to complete adoption of the amendment no later than 30 days after enactment of this act.

Seafood Reporting.—The United States leads the world in responsibly managed fisheries and aquaculture, and the Committee supports NOAA's activities to inform consumers about our Nation's sustainable fisheries through the agency's FishWatch program. However, the Committee is concerned that the exclusive use or recognition of third-party certifications for seafood sustainability by the Department could have unintended consequences for various domestic fisheries. The Committee acknowledges that some United States fisheries voluntarily utilize third-party seafood sustainability certification schemes but believes it is not the Department's role to adopt such certification schemes when doing so could result

in the Department arbitrarily influencing the United States domestic seafood market. The Committee believes support for third-party certifications is best presented in non-governmental forums. Therefore, the Committee directs the Department not to adopt, use, or promote any third-party certification scheme for seafood sustainability, but to instead continue providing consumers with independent and accountable information generated from within the Department.

NOAA OCEANIC AND ATMOSPHERIC RESEARCH

The Committee's recommendation provides \$430,033,000 for Oceanic and Atmospheric Research [OAR]. OAR programs provide the environmental research and technology needed to improve NOAA weather services, air quality warnings, forecasts, climate predictions, and marine services. To accomplish these goals, OAR supports a network of scientists in its Federal research laboratories, universities, and joint institutes and partnership programs.

Committee recommendations are displayed in the following table:

OCEANIC AND ATMOSPHERIC RESEARCH OPERATIONS, RESEARCH AND FACILITIES

[In thousands of dollars]

	Committee recommendation
Climate Research:	
Laboratories and Cooperative Institutes	60,000
Regional Climate Data and Information	40,000
Climate Competitive Research	60,000
Total, Climate Research	160,000
Weather and Air Chemistry Research Programs:	
Laboratories and Cooperative Institutes	64,547
U.S. Weather Research Program	7,236
Tornado Severe Storm Research/Phased Array Radar	13,111
Total, Weather and Air Chemistry Research	84,894
Ocean, Coastal and Great Lakes Research:	
Laboratories and Cooperative Institutes	26,669
National Sea Grant College Program	62,800
Marine Aquaculture Research	5,000
Sustained Ocean Observations and Monitoring	41,347
Integrated Ocean Acidification	11,000
Ocean Exploration	26,220
Total, Ocean, Coastal and Great Lakes Research	173,036
High Performance Computing Initiatives	12,103
GRAND TOTAL OAR	430,033

Laboratories and Cooperative Institutes.—The Committee provides an increase to Ocean, Coastal and Great Lakes Research Laboratories and Cooperative Institutes and expects the administration to fully fund these cooperative institutes at appropriate levels in future years, including well-established institutes focused on: watershed impacts on marine ecosystems; remote sensing; and long-term monitoring of oil spill impacts on marine ecosystem health. The Committee also encourages NOAA to consider how ad-

ditional cooperative institutes could strengthen NOAA's ability to improve coastal sustainability and resilience, and better prepare coastal communities to make smart land-use decisions.

Climate Research.—The Committee provides the requested level for supporting and expanding the National Integrated Drought Information System, including the Regional Drought Early Warning Information System, and for increased funding for the Arctic Research Program to improve regional-scale information. The Committee also encourages NOAA to sustain and expand an observation and analysis system with existing enterprises to provide 20 additional towers to support this effort and to leverage existing capital expenditures and relevant data to support the accurate measurement of greenhouse gases.

Multi-Function Phased Array Radar.—The bill includes \$13,111,000 for continued development of the multi-function phased array radar [MPAR], the same as the budget request. The Committee recognizes the benefits current MPAR research has provided to both NOAA and the Federal Aviation Administration [FAA], while recognizing the continued uncertainty about cost sharing between the FAA and NOAA for both technical risk reduction and non-recurring engineering costs. The Committee directs NOAA to serve as the technical agent for the execution and completion of the MPAR program. The Committee requires a joint spending plan from NOAA and the FAA within 45 days of enactment of this act that incorporates investments from both the FAA and NOAA with a consolidated approach to completing the program's technical risk reduction and making more transparent choices on the program's initial investment decision milestone.

A promising MPAR design, which effectively combines dual polarization with phased arrays, is the Cylindrical Polarimetric Phased Array Radar [CPPAR]. Within funds provided, the Committee encourages NOAA to expand research in CPPAR, including developing a full-scale prototype to examine how CPPAR capabilities could add value to weather forecasting and future severe storm research.

Vortex-Southeast [Vortex-SE].—The southeastern United States commonly experiences devastating tornadoes under variables and conditions that differ considerably from the Midwest where conditions for tornado research have historically been focused. Within funds provided for Weather and Air Chemistry Research Programs, OAR shall collaborate with the National Science Foundation's Vortex-SE to better understand how environmental factors that are characteristic of the southeast United States affect the formation, intensity, and storm path of tornadoes for this region. NOAA shall report to the Committee within 90 days of enactment of this act on OAR's role and contributions to the Vortex-SE program.

National Sea Grant Program.—The Committee opposes the administration's requested decrease to the National Sea Grant Program base and the proposed elimination of education and fellowship activities within the program. Within funds provided, NOAA is encouraged to leverage resources and pursue partnerships with Sea Grant universities and other Federal agencies to carry out aquatic animal health monitoring and research. This effort contributes to Sea Grant and NOAA's broader mission of providing serv-

ices to enhance coastal community resilience. Further, NOAA is encouraged to continue its partnership with academic programs that provide legal expertise related to the missions of the program and NOAA.

Marine Aquaculture Research.—The Committee encourages NOAA, in partnership with universities, to support marine aquaculture research and development efforts that have led to beneficial outcomes such as development and commercialization of new technologies to meet U.S. demand for warm water marine seafood, including finfish, shrimp, and oysters.

Ocean Exploration.—The bill provides \$26,220,000 for the Ocean Exploration Program. NOAA is encouraged to continue fundamental ocean exploration in which open source data are collected for the oceanographic community in real-time through telepresence technology. Within funds provided, NOAA is encouraged to award competitive grants to institutions that have partnered with OAR in the past, including those with ocean going assets, to support new exploration missions, expeditions, and deep sea research. Another primary focus should be the continued exploration of the United States Exclusive Economic Zones. As in the past, the program shall use ships operated by non-governmental organizations and academic institutions provided that any data acquired are open-sourced. In addition, the Committee rejects the budget request to eliminate Ocean Exploration's education program.

NOAA NATIONAL WEATHER SERVICE

The Committee's recommendation provides \$954,153,000 for the NOAA National Weather Service [NWS]. NWS programs provide timely and accurate meteorologic, hydrologic, and oceanographic warnings and forecasts to ensure the safety of the population, mitigate property losses, and improve the economic productivity of the Nation. NWS is also responsible for issuing operational climate forecasts for the United States. The Committee has made saving lives and livelihoods through accurate weather forecasting a priority.

The Committee's recommendations are displayed in the following table:

NATIONAL WEATHER SERVICE OPERATIONS, RESEARCH, AND FACILITIES

[In thousands of dollars]

	Committee recommendation
Observations	210,777
Central Processing	96,617
Analyze, Forecast, and Support	483,060
Dissemination	40,099
Science and Technology Integration	123,600
GRAND TOTAL NWS	954,153

Weather Service Modernization.—The Committee remains supportive of NWS moving forward with plans to modernize its services, operations, and infrastructure. As such, the Committee approves the NWS budget reorganization proposed in the 2015 budget request and supports the requested relocation of the National Lo-

gistics Supply Center and National Reconditioning Center. The Committee encourages NWS to continue working with all of its external partners and internal components to deliver a comprehensive weather modernization plan to the Committee that includes short-term and long-term objectives.

Information Technology Officers.—For the third year in a row, the Committee does not support the budget request to eliminate Information Technology Officer positions at the forecast offices around the country. This repeated request continues to ignore the Committee's direction to provide perspective on how this proposal fits within NWS's broader workforce and modernization plans. The Committee also notes that NOAA has not provided the report requested in fiscal year 2014 outlining a multi-phase plan for consolidating NWS's information technology operations that would streamline system configuration, shore up existing cybersecurity vulnerabilities, contribute to the expedited rollout of Advanced Weather Interactive Processing System, and achieve cost savings while resulting in no degradation of service.

Facilities.—The Committee recommends that, wherever possible, NWS co-locate its local or regional facilities with established universities, emergency management offices, and private sector atmospheric research entities that have forecast capabilities for atmospheric events, placing priority on developing more accurate and timely warnings and forecasts of high impact weather events that endanger life and property. Fiscal year 2015 funds may be used for the planning, design, and long-term co-location lease agreements, with priority given to the States most impacted by recent extreme weather events where current leases may be expiring.

National Data Buoy Center [NDBC].—The Committee provides sufficient funding to maintain, at a minimum, NDBC operations at 80 percent data availability. The Committee understands the challenges associated with deploying, operating and maintaining the National Data Buoy Center's network of buoys in the offshore marine environment and is encouraged that some progress is being made to restore operability of buoys. However, the Committee remains concerned by the large number of outages and service interruptions experienced within the National Data Buoy network. In many instances, buoys have been partially or entirely offline for longer than 18 months. The Committee directs NOAA to include as part of the agency's spending plan a schedule to restore existing data buoy operability and its strategy to minimize outages in the future.

The Committee is aware that NOAA has developed a new version of the DART buoy known as the Easy-To-Deploy DART [ETD-DART], and has been informed that other nations have successfully deployed the ETD-DARTs at significant savings without compromise to public safety. NOAA is therefore directed to conduct a cost-benefit analysis on replacing or enhancing its current network of DART buoys with ETD-DART buoys and submit the analysis to the Committee no later than 180 days from enactment of this act.

National Tsunami Hazard Mitigation Program [NTHMP].—The Committee rejects NOAA's proposal to terminate funding for tsunami preparedness within the NTHMP, and instead instructs the Agency to maintain funding at the fiscal year 2014 level and to

strengthen the NTHMP in accordance with the 2011 evaluation by the National Academy of Sciences.

Central Forecast Guidance.—NOAA shall maintain its efforts to develop and implement the COASTAL Act (Public Law 112–141). The Committee supports NOAA’s work to assist homeowners impacted by destructive winds and storm surges associated with hurricanes and super-storms. The Committee directs NOAA to continue to leverage existing Federal assets, expertise, and partnerships in carrying out COASTAL Act activities.

Small Business Innovation Research.—The Committee is encouraged by NWS’s success in carrying out Small Business Innovation Research [SBIR] contracts as part of the agency’s technology transfer initiative. NWS has effectively designed these SBIR contracts to build community resilience in the face of increasing vulnerability to extreme weather impacts, which is part of NWS’s “Weather-Ready Nation” concept. These contracts, in part, will better inform emergency managers, first responders, government officials, businesses, and ultimately the public, to make fast, smart decisions to save lives and livelihoods. The Committee directs NWS to continue to support, and even expand, these SBIR contracts in fiscal year 2015.

National Mesonet Program.—The Committee provides \$16,000,000 for the continuation and expansion of the National Mesonet Program and is encouraged by the Administration’s request to maintain the program. Funds should be made available through a competitive weather data procurement that sustains coverage of areas currently included within the national mesonet, as well as an expansion of coverage in high risk areas. NOAA is also encouraged to add new observations such as coastal observations, boundary layer data and total lightning data. NOAA should require that awardees provide mesonet data in formats that can be integrated by NWS for use in forecasts and severe weather alerts. NOAA should also encourage efforts to demonstrate the validity of mesonet observation data in increasing severe weather warning times and demonstrate the economic benefit of Mesonet observations for various key sectors, such as commercial aviation and electric grid management. Of the funds provided, up to \$500,000 may be used for Meteorological Assimilation Data Ingest System [MADIS] activities including transitioning MADIS from research to operations and enabling the distribution of Mesonet data through the Advanced Weather Interaction Processing System [AWIPS]. Up to \$500,000 may be used for costs associated with the National Mesonet Program Office. The Committee sees the national mesonet as an important component of any effort to effectively develop a “Weather-Ready Nation” and expects that future NOAA budget requests will continue to reflect it as a priority.

Space Weather.—The Committee is concerned that the Nation is ill prepared for the potential for a severe space weather event that could substantially disrupt critical infrastructure and that our ability to forecast such events is not sufficiently robust to mitigate these effects. The Committee therefore directs the NOAA Administrator to convene an outside panel of experts, in concert with other Federal agencies engaged in activities directly related to space weather, to review and consider how best to provide decision-makers with relevant and timely space weather and operational in-

formation and processes to mitigate and utilize space weather effects. Such a panel should offer its recommendations to the NOAA Administrator not later than June 1, 2015, with concurrent transmission of its findings to the Committee.

NATIONAL ENVIRONMENTAL SATELLITE, DATA AND INFORMATION SERVICE

The Committee's recommendation provides \$189,167,000 for the National Environmental Satellite, Data and Information Service [NESDIS] operations. NESDIS programs operate environmental polar-orbiting and geostationary satellites, and collect and archive global environmental data and information for distribution to users in commerce, industry, agriculture, science and engineering, the general public, and Federal, State, and local agencies.

The Committee's recommendations are displayed in the following table:

NATIONAL ENVIRONMENTAL SATELLITE, DATA AND INFORMATION SERVICE OPERATIONS, RESEARCH, AND FACILITIES

[In thousands of dollars]

	Committee recommendation
Environmental Satellite Observing Systems:	
Office of Satellite and Product Operations	92,500
Product Development, Readiness & Application	26,000
Commercial Remote Sensing Licensing & Enforcement	1,100
Office of Space Commercialization	1,000
Group on Earth Observations [GEO]	500
Total, Environmental Satellite Observing Systems	121,100
National Environmental Information Office	68,067
GRAND TOTAL NESDIS	189,167

National Environmental Information Office.—The Committee recommends \$68,067,000 for the National Environmental Information Office [NEIO], which is a new office that consolidates several programs that were previously funded separately. While the Committee supports the new budget structure for NESDIS, it is essential to ensure that key programs continue to receive adequate funding. Specifically, the Committee provides no less than \$6,000,000 for the Regional Climate Services, \$3,650,000 for Regional Climate Centers, and \$4,567,000 for Coastal Data Development. These amounts reflect fiscal year 2014 funding levels. Within NEIO, the Committee encourages NOAA to fully support critical international partnerships, including the Global Climate Observing System.

NOAA-WIDE PROGRAM SUPPORT

The Committee's recommendation provides \$460,632,000 for NOAA-wide program support. These programs provide for overall NOAA management, including staffing of the Under Secretary's office and services to NOAA and DOC field offices through the regional Administrative Support Centers. These programs also support NOAA's Education Office consistent with the recommenda-

tions of the Joint Ocean Commission. The facilities subactivity provides for repair and maintenance to existing facilities, facilities planning and design, and environmental compliance. The Office of Marine and Aviation Operations provides aircraft and marine data acquisition, repair, and maintenance of the existing fleet, planning of future modernization, and technical and management support for NOAA-wide activities through the NOAA Commissioned Officer Corps.

Committee recommendations are displayed in the following table:

PROGRAM SUPPORT OPERATIONS, RESEARCH, AND FACILITIES
[In thousands of dollars]

	Committee recommendation
Corporate Services:	
Under Secretary and Associate Offices Base	27,000
Facilities	24,000
NOAA Wide Corporate Services and Agency Management	114,500
DOC Accounting System	10,000
IT Security	8,300
DOC Working Capital Fund	43,000
Total, Corporate Services	226,800
NOAA Education Program	27,200
Fleet and Aircraft Operations	206,632
GRAND TOTAL, PROGRAM SUPPORT	460,632

Corporate Services.—Within the increased funds for Corporate Services, NOAA is directed to focus on restoring the functionality of its Workforce Management Office and Acquisition and Grant Services.

The Committee remains concerned about administrative costs incurred by NOAA's corporate staff and line offices, including regional and field offices. The Committee is aware of NOAA's practice to excise a portion of program funds from line offices to support line office operations and management. In continuing this practice, NOAA shall ensure transparency and equity among all programs charged within a particular line office. In its annual budget request and in its spending plan required by section 534 of this act, the Committee directs NOAA to include any proposed funds taken from each program activity in order to support line office operations and management, and to disclose the total amount of operations and management funding for each line office. During any fiscal year, NOAA shall not make any changes to the amount taken from programs for line office operations unless approved as part of that fiscal year's spending plan, or the Committee has been notified 30 days prior to any change regardless of the amount. NOAA is reminded of overall direction included in this report to reduce overhead and achieve administrative savings.

NOAA's Use of Radio Frequency Spectrum.—The fiscal year 2015 budget request includes the administration's plan to auction, or assign via fee, the 1675–1680 megahertz band of radio frequency spectrum, which NOAA currently uses for weather balloon commu-

nications. This portion of spectrum has been identified as part of National Telecommunications and Information Administration's Ten-Year Plan and Timetable to make 500 megahertz of Federal and non-Federal spectrum available for wireless broadband use. The Committee is aware that NOAA's radio frequency requirements can be relocated adequately to another band of spectrum. Therefore, the Committee supports this auction and the expeditious relocation of NOAA's operations to a different radio frequency band provided that the proceeds of the auction will be used to offset NOAA's relocation costs.

Education.—Within the funds provided for NOAA's Education Program, \$5,600,000 is for competitive educational grants, which includes continued support for Environmental Literacy Grants and for improving geographic literacy; \$14,400,000 is for the educational partnership program with minority-serving institutions; and \$7,200,000 is for Bay-Watershed Education and Training regional programs, which was touted by the Department of Education as a model program for how Federal and State agencies should collaborate on STEM education.

A full description of the Committee's assessment and direction regarding the administration's Co-STEM consolidation proposal is found in the Office of Science Technology and Policy portion of this report. For NOAA's part, the Committee continues to encourage efforts to streamline STEM education programs across NOAA line offices that make sense and support the internal consolidation of NOAA education programs. However, the Committee does not support the elimination of NOAA's Teacher at Sea program and the Dr. Nancy Foster Scholarship Program.

Justification Improvement.—NOAA is directed to continue to work with the Committee to reformat the budget justification into a more transparent, informative, and user-friendly document. The Committee also expects the justification to be submitted on time with the rest of the Department's justifications.

Marine and Aviation Operations.—Any decisions related to laying up any vessels, grounding any aircraft, or decommissioning any capital asset are subject to the standard reprogramming procedures set forth in section 505 of this act. Any changes from the spending plan shall also be subject to section 505 of this act. NOAA shall continue to provide the Committee with a monthly operational status of the fleet and aircraft. NOAA is further directed to provide the Committee with updated long-term management and acquisition plans for the fleet and aircraft within 60 days of enactment of this act.

New Vessel Construction.—The Committee supports NOAA's plan to construct a new ocean-going survey vessel in an effort to modernize its aging fleet. NOAA is urged to ensure that sufficient funding to commence the new vessel construction is included in its fiscal year 2016 request.

PROCUREMENT, ACQUISITION, AND CONSTRUCTION

Appropriations, 2014	\$2,022,864,000
Budget estimate, 2015	2,206,392,000
Committee recommendation	2,131,686,000

The Committee's recommendation provides \$2,131,686,000 for NOAA's procurement, acquisition, and construction. The recommendation is \$108,822,000 above the fiscal year 2014 enacted level and \$74,706,000 below the budget request.

Committee recommendations are displayed in the following table:

PROCUREMENT, ACQUISITION AND CONSTRUCTION

[In thousands of dollars]

	Committee recommendation
National Ocean Service:	
National Estuarine Research Reserve Construction	1,700
Marine Sanctuaries Construction/Acquisition	2,000
Total National Ocean Service—PAC	3,700
Ocean and Atmospheric Research:	
Research Super Computing	13,379
National Weather Service:	
Observations	12,000
Central Processing	64,000
Dissemination	45,000
WFO Construction	12,000
Total, National Weather Service—PAC	133,000
National Environmental Satellite, Data and Information Services:	
Geostationary Systems [GOES-R]	980,838
Joint Polar Satellite System [JPSS]	916,267
COSMIC-2	6,800
Satellite Ground Services	52,136
System Architecture and Advanced Planning	4,000
Projects, Planning, and Analysis	25,200
Satellite CDA Facility	2,166
Total, NESDIS—PAC	1,987,407
Program Support:	
Vessel Equip. and Tech Refresh	7,200
Unobligated balances from prior years	(13,000)
GRAND TOTAL, PAC	2,131,686

National Estuarine Research Reserve Construction.—The Committee remains concerned about the increased costs and lack of transparency associated with certain third-party green building rating systems. The use of certain green building standards can arbitrarily discriminate against domestic building materials such as wood that could be locally sourced, thereby increasing costs to taxpayers without significant benefits in energy and water savings. The Committee again directs NOAA to use funding provided for National Estuarine Research Reserve Construction on green building rating systems or standards that are voluntary consensus standards, have achieved American National Standard Institute [ANSI] Designation, or were developed by an ANSI Audited Designator, and take into consideration the environmental and economic benefits of building materials through lifecycle analysis. Not later than 90 days after the enactment of this act, NOAA shall report

on any new, existing, or planned construction projects at NERES sites that receive accreditation for energy savings from a third-party green building rating system.

Research Supercomputing.—The Committee's recommendation fully funds the request of \$13,379,000 for Research Supercomputing within the Office of Oceanic and Atmospheric Research. The Committee urges NOAA to continue to invest in the use of leadership class high performance computing [HPC] and directs NOAA to develop a long-term plan to upgrade deployed HPC technology and architecture and submit a report to the Committee within 180 days of enactment of this act.

Weather Satellites.—The 2015 budget request shows a concerted direction from the administration to focus on weather data acquisitions as the primary requirement of NOAA's weather satellites. Given a constrained budget environment and finite resources, the Committee expects the Department to continue to highlight the budget requests for satellite procurement and acquisition as necessary funding for NOAA to accomplish its core missions. The Committee believes that NOAA should prioritize satellite programs directly related to weather forecasting including those that result in the greatest reduction of risk to lives and property.

While the budget request shows that NOAA is staying within its projected life-cycle cost caps for the Joint Polar Satellite System [JPSS] and the Geostationary Operational Environmental Satellites R-series [GOES-R] missions, the Committee is concerned about the transparency of the annual cost accounting for individual fiscal years. One recent manifestation of this concern was NOAA's reprogramming request to the Committee in fiscal year 2014 that proposed to move funds from JPSS and GOES-R into other programs despite NOAA's previous insistence that all of the funds requested in fiscal year 2014 for these two weather satellite programs were essential to maintain schedule integrity. Keeping these flagship weather satellite missions on-budget and on-schedule is extremely important, but so is maintaining cost controls, especially when NOAA's satellite missions continue to dominate NOAA's annual budget increases. While the Committee provides the full funding request for JPSS and GOES-R in this bill, the Committee reiterates its direction to NOAA to find savings from operating expenses and to reduce duplicative Government overhead shared with the National Aeronautics and Space Administration [NASA], starting with Projects, Planning and Analysis.

The Committee is troubled by reports that the Commerce Inspector General has been excluded from portions of Program Management Council [PMC] satellite meetings. In particular, the Committee has learned that the Council has established alternative meeting structures in order to exclude the Inspector General from critical discussions regarding the status of weather satellite acquisition and procurement. The Inspector General serves a critical oversight role for the Department's weather satellite procurement and acquisition programs. Given the history of NOAA's satellite procurement program, including significant cost overruns and a looming gap in polar satellite data, it is vital that the Inspector General be present for all PMC satellite meetings to properly carry out his oversight responsibilities. The Department shall take nec-

essary steps to ensure the Inspector General's office is represented and present for all PMC meetings and report back to the Committee, not later than 30 days after the date of enactment of this Act, on the steps the Department has taken to address these issues.

JPSS Gap Mitigation.—The Committee is disappointed by the Department's failure to present a viable gap mitigation plan for JPSS. The Government Accountability Office and the Department of Commerce Inspector General project a potential gap in critical polar satellite data between the Suomi National Polar-Orbiting Partnership satellite and JPSS-1 up to 17 months. While the Department has taken steps to ensure robustness and redundancy in JPSS-1 and JPSS-2, it has failed to put forth a comprehensive plan to fill or mitigate a potential gap that could occur before JPSS-1 becomes fully operational. The Committee finds this unacceptable and directs the Department to provide the Committee a report detailing specific steps NOAA is taking to mitigate a gap in polar satellite data as part of the agency's spending plan required in this bill. The report shall include viable proposals for a gap filler to ensure continuity of data provided by ATMS and CrIS instruments.

Jason-3 and DSCOVR.—The Committee restates that NOAA's flagship weather satellites take financial priority over NOAA's smaller observing satellites despite the fact that these smaller missions have just as much scientific merit. In light of the financial pressure within NOAA's PAC account to keep the weather satellite missions moving forward, the Committee is transferring the development costs and responsibilities of Jason-3 and DSCOVR from NOAA to NASA's Earth Science mission directorate. NASA is already partnering with NOAA on constructing these important missions as well as arranging the launch vehicles. The underlying goal of this transition is to keep Jason-3 and DSCOVR on-schedule and on-budget given that both missions are set to launch in fiscal year 2015.

Solar Irradiance Data and Rescue [SIDAR].—The Committee does not provide funding for the newly proposed satellite mission SIDAR which is primarily, though not solely, intended to fly another Total Solar Irradiance Sensor [TSIS-2] as a continuation of NASA's SORCE mission and of TSIS-1, which NASA is also managing per the Committee's direction in fiscal year 2014. The Committee does not dispute the importance of maintaining the total solar irradiance dataset, but given NASA's current role in providing these instruments, NOAA is directed to work with NASA on how this follow-on mission can be better supported through that agency's Science directorate.

Further, before the Committee considers funding another standalone satellite mission or a non-weather centric polar free flyer proposal, NOAA must first create a comprehensive plan for weather gap mitigation discussed previously in this report. NOAA should prioritize submitting that plan rather than aggressively pursuing missions that do not directly contribute to weather forecasting or help mitigate any future weather gaps.

Radio Occultation Data.—The Committee supports the request of \$6,800,000 for continuing the advancement of acquiring the next generation of radio occultation [RO] data for the purposes of im-

proving and augmenting baseline weather forecasting data. Currently NOAA is preparing to support the ground system for processing RO data from the first phase of the Constellation Observing System for Meteorology, Ionosphere, and Climate [COSMIC] 2 RO satellites. Six COSMIC-2 satellites are planned to launch in fiscal year 2018 as part of this first phase, but the Committee has not received a comprehensive plan for the second phase of the COSMIC-2 mission. If further RO data is needed past the first phase of COSMIC-2, NOAA shall submit a plan no later than 120 days after enactment of this act, to include expected out year costs by agency and outside partners, with appropriate milestones and deliverables. NOAA shall also include an analysis for acquiring radio occultation weather data from private sector providers in this report.

NOAA Satellite Reporting.—The Committee directs NOAA to provide quarterly programmatic and procurement status reports of all satellites actively flying and under development unless any re-programming, system failure, or other extraordinary circumstance warrants an immediate update. As part of the agency’s quarterly satellite briefing, NOAA shall include updates on preparations and enhancements, and initial cost estimates compared to actual expenditures that need to be made to accommodate the increased volume of satellite data.

PACIFIC COASTAL SALMON RECOVERY

Appropriations, 2014	\$65,000,000
Budget estimate, 2015	50,000,000
Committee recommendation	65,000,000

The Committee’s recommendation provides \$65,000,000 for the Pacific Coastal Salmon Recovery. The recommendation is the same as the fiscal year 2014 level and \$15,000,000 above the budget estimate. Funds are for conservation and restoration of Pacific salmon populations. State and local recipients of this funding will provide matching contributions of at least 33 percent of Federal funds. In addition, funds will be available to tribes, which do not require matching dollars.

FISHERMEN’S CONTINGENCY FUND

Appropriations, 2014	\$350,000
Budget estimate, 2015	350,000
Committee recommendation	350,000

The Committee’s recommendation provides \$350,000 for the Fishermen’s Contingency Fund. The recommendation is the same as the fiscal year 2014 enacted level and the President’s request.

FISHERIES FINANCE PROGRAM ACCOUNT

Appropriations, 2014	—\$6,000,000
Budget estimate, 2015	—6,000,000
Committee recommendation	—6,000,000

The Committee recommends that direct loans administered through this account for individual fishing quotas may not exceed \$24,000,000. Traditional direct loans may not exceed \$100,000,000, which is the same as the fiscal year 2014 level and budget request.

OTHER

DEPARTMENTAL MANAGEMENT

SALARIES AND EXPENSES

Appropriations, 2014	\$55,500,000
Budget estimate, 2015	57,637,000
Committee recommendation	56,000,000

The Committee's recommendation provides \$56,000,000 for Departmental Management Salaries and Expenses. The recommendation is \$500,000 above the fiscal year 2014 enacted level and \$1,637,000 below the budget request.

Within Departmental Management, the Salaries and Expenses account provides funding for the Secretary, Deputy Secretary, and support staff. Responsibilities involve policy development and implementation affecting United States and international activities, as well as establishing internal goals and operations of the Department.

Within 90 days of enactment of this act, the Department shall submit to the Committee a report detailing actions taken to cut costs and a detailed account of funds saved by such actions across the Department's bureaus.

BusinessUSA.—The Committee is supportive of the administration's request to continue BusinessUSA, an initiative designed to streamline government bureaucracy and create one-stop shops for business assistance. The Committee provides bill language allowing the Secretary more flexibility to enter into office space agreements with BusinessUSA partners.

Business Application Solutions.—The Committee supports the request for the Business Application Solutions [BAS] modernization project, which will consolidate and upgrade the systems used to manage finances, acquisitions, properties, and reporting requirements for the Department of Commerce. The Department is directed to brief the Committee on BAS implementation on a quarterly basis.

Small Business Innovation Research [SBIR].—The Committee recognizes the important successes SBIR programs have in helping domestic small businesses to commercialize federally funded research and development projects. The Committee therefore directs the Department to place an increased focus on awarding SBIR awards to firms with fewer than 50 employees.

Unobligated Balances.—The amount of unobligated funding within the Department of Commerce is of great concern to the Committee, which is one reason for the Committee's requirement to receive quarterly updates from the Department on unobligated balances. Thus, the Committee was alarmed by findings made by the Inspector General in a June 2013 report regarding the Department's relatively poor oversight and accounting of obligated balances. The Department is directed to report to the Committee on the status of steps taken to fulfill the Inspector General's recommendations no more than 30 days after enactment of this act. The Department shall continue to report every 60 days thereafter until the OIG certifies to Congress that the steps taken to address the OIG's concerns are both adequate and complete.

RENOVATION AND MODERNIZATION

Appropriations, 2014	\$4,000,000
Budget estimate, 2015	11,733,000
Committee recommendation	10,000,000

The Committee recommendation provides \$10,000,000, which is \$6,000,000 above the fiscal year 2014 enacted level and \$1,733,000 below the budget request, for building renovation at the Department of Commerce.

OFFICE OF INSPECTOR GENERAL

Appropriations, 2014	\$30,000,000
Budget estimate, 2015	30,596,000
Committee recommendation	30,596,000

The Committee's recommendation provides \$30,596,000 for the Office of Inspector General [OIG]. The recommendation is \$596,000 above the fiscal year 2014 enacted level and the same as the budget request.

In addition to funds provided under this heading, the Committee has recommended transfers to the OIG: \$2,000,000 from the U.S. Patent and Trademark Office; \$1,302,000 from the National Oceanic and Atmospheric Administration; and \$1,551,000 from the Census Bureau for oversight and audits of those activities.

Working Capital Fund Audits.—The Committee continues to direct the OIG to audit all of the working capital funds within the Department. The objective of the audit is to evaluate the budgetary controls over all of the Department's working capital funds. The OIG shall assess: the controls in place to develop reimbursement formulas; the relationship of reimbursements to client services; the appropriateness of the level of fund balances; and compliance with appropriation law and direction. As part of this assessment, the Inspector General shall pay particular attention to the increasing amounts of funding needed to support the Department's Office of General Counsel, including the justification and metrics of how such funding is being levied against each agency and, reciprocally, how the agencies account for the services they receive from the Office of General Counsel.

Hurricane Sandy Supplemental Funding.—The Committee is concerned by a May 2014 investigation by the Inspector General that highlighted possible improper spending by NOAA with regard to replacing equipment damaged by Hurricane Sandy. A portion of the emergency supplemental funding was designated for repairing and replacing NOAA's ocean observing and coastal monitoring assets damaged by the hurricane. These supplemental funds are separate from any existing operations and maintenance funding that is provided to NOAA in annual appropriations acts. However, the OIG found that the National Estuarine Research Reserve System [NERRS]—acting on guidance from NOAA and DOC's Office of General Counsel—spent supplemental funds to replace equipment that was not directly damaged by the storm. The amount in question is possibly as much as \$550,200 of the \$1,035,163 that NERRS was allocated out of a total \$7,000,000 the Committee appropriated to NOAA to repair or replace such equipment.

The Committee's Hurricane Sandy Supplemental bill language and intent was clear, yet NOAA and DOC's Office of General Counsel apparently provided guidance to expand the eligibility of these funds. The Committee requests that the OIG conduct a full audit of the entire \$7,000,000 of equipment repair funds as well as \$9,000,000 that was provided to repair NOAA facilities damaged by Hurricane Sandy. NOAA and DOC are directed to provide the Committee within 30 days of enactment of this act a report on how the agency and the Department have implemented the five recommendations accompanying the Inspector General's investigation.

Audits and Investigations.—The OIG serves a critical oversight role at the Department. The Committee believes that robust investigations and audits are essential to routing out waste, fraud and abuse, however, the current practice that limits inquiries to individuals in the Department does not lend itself to comprehensive findings and recommendations. The Committee directs the OIG to modify its policies and procedures to ensure that investigations or reports include interviews with all parties to the project or program in question, including, but not limited to, contractors responsible for projects under review. The Committee cautions the OIG against issuing preliminary findings prior to interviewing a majority of the entities involved with the program or project under investigation, unless the OIG believes the findings are time sensitive and additional interviews are immaterial.

Allegations of Impropriety.—The Committee is disappointed by recent allegations that the OIG forbid former employees from talking to oversight authorities, including congressional committees. While the Committee recognizes that this may not have been the OIG's intent, the Inspector General, in particular, should recognize that even the appearance of threat or intimidation can be devastating to the cause of responsible governance.

The Committee supports the steps that the OIG has taken to address this matter and directs the Inspector General to notify the Committee within 15 days of any future allegations related to employment contracts.

GENERAL PROVISIONS—DEPARTMENT OF COMMERCE

Section 101 makes Commerce Department funds available for advanced payments only upon certification of officials designated by the Secretary that such payments are considered to be in the public interest.

Section 102 makes appropriations for salaries and expenses available for the hire of passenger motor vehicles, and for services, uniforms, and allowances as authorized by law.

Section 103 provides the authority to transfer funds between Department of Commerce accounts. The provision makes transfers subject to the Committee's standard reprogramming procedures.

Section 104 extends congressional notification requirements for the NOAA satellite programs.

Section 105 provides authority for the Secretary of Commerce to furnish certain services within the Herbert C. Hoover Building.

Section 106 clarifies that grant recipients under the Department of Commerce may continue to deter child pornography, copyright infringement, or any other unlawful activity over their networks.

Section 107 provides NOAA the authority to share resources with entities outside the agency.

Section 108 requires that, before charging for congressional reports, the National Technical Information Service [NTIS] advise the public of free ways to receive or access these reports. For those reports that cannot be found free of charge or when a customer requires a mailed, hard copy, NTIS may only charge a de minimus copying and mailing fee. The Committee is concerned about outrageous fees the National Technical Information Service charges the public for hard copies of congressional reports and documents available for free online.

Section 109 allows NOAA to be reimbursed by Federal and non-Federal entities for performing certain activities.

The Committee is concerned that agreements for offsetting collections provided for under this section could result in a conflict of interest, or the appearance of a conflict of interest, for the Department. The Department is directed to exercise caution and consider any unintended consequences that could result from such agreements, including, but not limited to, augmentation of appropriations, initiation of new programs not authorized by this act or any other act of Congress, and liabilities extending beyond the period of any such agreement. The Department shall provide to the Committee monthly updates on all offsetting fee collections, including each entity participating in the agreement, as well as the terms of and specific activities funded by the agreement. Additionally, estimates of anticipated fee collections shall be included in the Department's annual spend plans. To further ensure the Committee maintains sufficient oversight for activities carried out under this section, language is included specifying that any offsetting collection would require the consent of each party subject to the agreement and all offsetting collections shall be subject to procedures set forth by section 505 of this act.

Section 110 allows the Secretary of Commerce to waive the bond requirement for research vessel repair and construction contracts which would align Commerce's authorities with those of other Federal agencies and address difficulties NOAA has experienced in obtaining competitive bids for ship repairs.

Prior to exercising waiver authority under section 110 of this act, the Secretary of Commerce shall promulgate regulations specifying criteria under which waiver authority may be used, including the types of contracts eligible for consideration, surety alternatives and acceptable risk profiles in order to protect the taxpayer and ensure that NOAA experiences cost-savings. The Department is directed to notify the Committee not less than 15 days prior to any waiver issued under this section. In addition, the Department shall, not later than 120 days after the date of enactment of this act, prepare a report including the actual costs of repairing, rehabilitating and replacing vessels in fiscal years 2012, 2013 and 2014 and annually thereafter, including an indication of those vessels for which NOAA waived the Miller Act.

TITLE II

DEPARTMENT OF JUSTICE

The Committee recommends a total of \$27,996,816,000 for the Department of Justice [DOJ]. The recommendation is \$260,257,000 above the fiscal year 2014 funding level and \$23,282,000 above the budget request. Funding recommendations for the Department's classified programs are detailed in the classified annex accompanying this report. The Committee's recommendation emphasizes key priorities regarding funding for the Department's critical ongoing missions and activities to protect the safety, security, and rights of our citizens.

Justice Lifecycle.—The Committee must provide the Federal Bureau of Prisons [BOP] and the U.S. Marshals Service's Federal Prisoner Detention program an increase of \$97,307,000 above the fiscal year 2014 level to safely guard the Nation's Federal prison inmate and detention populations. While these activities are not considered mandatory for budget purposes, they are not truly discretionary in that the Committee has an obligation to adequately fund them regardless of budgetary constraints. While the annual increase in the Federal inmate population has leveled off in recent years, the cost of detaining these inmates has not. Absent substantial decreases in the Federal inmate population, the day may be approaching when Federal prison and detention demands, which are not dynamic budget requests, overwhelm the Department's budgetary resources. The Committee knows all too well that neither the Department nor Congress can afford to let this happen.

The administration has announced a "Smart on Crime" initiative and a "Clemency Initiative," both intended to reform the criminal justice system. These efforts are consistent with the Committee's direction in fiscal year 2014 for the Department and the administration to work together with Congress to carefully assess and, where necessary, reform all aspects of the DOJ's enforcement and incarceration policies. The Committee is pleased that the budget request suggests that the "'Smart on Crime' initiative will help stem the tide of offenders entering the BOP and will lead to lower average sentences, where appropriate, and thus should decrease the BOP's population growth over the long term." However, more work remains to contain the growing costs of the BOP while maintaining our adherence to the rule of law in order to protect the people of this Nation. The Committee expects to work with the administration on appropriate steps forward pursuant to any findings or recommendations resulting from the GAO report requested in fiscal year 2014 on incarceration and the recommendations of the Charles Colson Task Force on Federal Corrections, due in fiscal year 2015.

Department of Veterans Affairs.—The Committee is deeply troubled by allegations that veterans may have suffered, or perhaps even died, due to lack of medical care as officials at the Department of Veterans Affairs [VA] kept patients languishing on secret waiting lists while maintaining false patient care records purporting to show that no such delays existed. Further, allegations that VA employees may have submitted such false records in order to justify their own receipt of performance bonuses suggest the possibility that deceit and mistreatment may also have been compounded by fraud. While the Inspector General of the VA is currently conducting an investigation and a separate review of the allegations is underway, evidence has also come to light suggesting that senior officials may have known about these problems for some years. The Committee believes that this tragedy has dragged on for far too long, and has become mired in internal VA politics. To that end, this bill provides adequate resources for criminal and civil investigations into allegations that the VA falsified patient records at one or more of the VA's 150 medical centers and 820 community outpatient clinics. The Offices of United States Attorneys, the Office of Public Integrity, the Federal Bureau of Investigation and any other component within the Department should swiftly and definitively determine whether any current or former VA officials violated the law, and bring any charges that might be appropriate against any responsible parties. The Department of Justice shall report to the Congress not later than 30 days after the date of enactment of this act regarding the initiation of investigations and a description of the activities being conducted by each component, and shall hereafter provide quarterly reports to the Committee regarding the progress of the investigations and any pending recommendations and/or criminal proceedings.

Combating Gun Violence and Enforcing Gun Laws.—Gun violence has touched States, counties, cities, and towns across our Nation, and it is clear that this problem must be addressed. The Committee's recommendation provides a total of \$1,150,613,000, an increase of \$38,513,000 above the fiscal year 2014 enacted level, in Federal, State, and local resources in order to reduce gun violence and prevent future tragedies. These resources will be provided to the Bureau of Alcohol, Tobacco, Firearms, and Explosives [ATF], the Federal Bureau of Investigation [FBI], and State, local, and tribal law enforcement partners to keep guns out of the wrong hands; help those on the ground prevent and mitigate violent situations when they occur; keep people safe; and secure our cities, neighborhoods, and schools.

Heroin Crisis.—Law enforcement, health officials, and communities across the United States are alarmed by the drastic increase in heroin use and overdoses. According to the Department of Health and Human Services, heroin use rose 79 percent nationwide between 2007 and 2012 (from 373,000 users in 2007 to 669,000 users in 2012). Heroin is often an inexpensive substitute for prescription pills, costing as little as \$10 a hit. About four in five new heroin addicts report that they became addicted to prescription pills before they ever used heroin. Unlike pills, there is no way to regulate the dosage of heroin, given its undetermined purity.

According to the Drug Enforcement Administration, heroin availability rose in 2012, likely due to an escalation of Mexican production and traffickers expanding into new markets including suburban and rural communities. Between 2008 and 2012, the amount of heroin seized each year at the Southwest border more than tripled from 1,200 pounds in 2008 to 4,000 pounds in 2012.

The Federal Government must have a comprehensive approach to the growing heroin crisis. While a strong law enforcement effort is critical to the response, heroin is not simply an enforcement problem. As discussed at the subcommittee's hearing on the Department of Justice's fiscal year 2015 budget request on April 3, 2014, the Committee directs the DOJ to lead the response by convening a multi-agency task force to address the growing heroin problem in the United States. The task force should convene experts from the law enforcement, medical, public health, and educational fields to develop a coordinated response to help our citizens and communities. The Department is directed to report back to the Committee on the establishment and progress of this multidisciplinary task force not later than 30 days after the date of enactment of this act and issue a final report along with any related funding and policy recommendations within 1 year of enactment of this act.

Boko Haram and International Terrorism.—The Committee encourages the Department to offer any available law enforcement assistance in response to international acts of terrorism, violations of human rights, and criminal cases of an international nature when appropriate. In regard to the April 2014 abduction of nearly 300 Nigerian schoolgirls by the U.S.-designated terrorist group Boko Haram, the Committee commends the immediate offer of assistance from INTERPOL and the offer of intelligence and technical capabilities by the FBI to the Government of Nigeria.

Cybersecurity.—In 2013, cybersecurity breaches became front page headlines. Major retailers, Internet security protocols, and web browsers suffered vulnerabilities that exposed personal information as well as trade secrets. Computers and the Internet have become tools for the full range of criminal activities as nation-state actors, terrorists, organized criminals, spies, corporate thieves, human traffickers, child predators, and other common criminals threaten Americans, our economy, and our National security. The Committee believes that increased public awareness of the nature and scope of the cyber threat is essential to enable all Americans to protect themselves and their families in cyberspace. Therefore, the Committee encourages the Department to expand its efforts to inform the public of the importance of cybersecurity and of its own activities in defending against the cyber threat.

For several years, the Committee has provided increased resources for the Department to combat cybercrime and to carry out its role, consistent with the February 2014 Executive Order on Improving Critical Infrastructure Cybersecurity. As a result, on May 19, 2014, the Department announced a first-of-its-kind criminal cyber-espionage case against Chinese military officials accused of industrial espionage and a major prosecution of criminal hackers accused of writing and distributing malware that infected more than 500,000 computers in 100 countries. These efforts are sup-

ported by the strategic initiatives the Department has developed to improve its ability to investigate and prosecute cases and to deter, detect, and disrupt cyber threats, particularly efforts to ensure that all DOJ investigators and attorneys receive training on cybercrime and digital evidence. The Committee's recommendation again supports the full request for cybersecurity efforts across the Department to allow the DOJ to catch and prosecute cyber criminals and to support efforts to secure its own information technology systems.

In fiscal year 2015, the Department has continued to prioritize cybersecurity in its Strategic Plan. The Department plans an annual review of all objectives in the Strategic Plan and has developed performance measures to evaluate progress toward meeting these objectives. The Committee directs the Department to identify and report, within 180 days of enactment, on specific metrics by which its efforts to fight cybercrime may be measured, including the number of disruptions and dismantlements of computer intrusions; investigations conducted; indictments returned; percentage of cases favorably resolved; and enforcement efforts carried out in conjunction with state and local law enforcement partners.

Gang Violence.—The Committee recognizes the challenges posed by the increasing number of gang members and the violent crimes they commit in urban, suburban, and rural communities. The Committee understands that to combat these gangs, continued and increased cooperation between Federal, State, and local law enforcement is required as well as support, coordination, and expertise from the Federal level. The Committee acknowledges the work currently being undertaken to fight gangs by the FBI Violent Safe Streets Task Forces, the Drug Enforcement Administration [DEA], the National Gang Targeting, Enforcement and Coordination Center [GangTECC], the ATF, the U.S. Marshals Service [USMS], BOP, the U.S. Attorneys' offices, and other Federal agencies. The Committee urges these agencies to intensify current efforts, while enhancing coordination across the Federal Government and with State and local law enforcement in order to maximize the impact of limited personnel resources. The Committee's recommendation includes \$5,000,000 for the USMS for gang enforcement efforts within the Regional Fugitive Task Forces and \$8,500,000 for the Violent Gang and Gun Crime Reduction Program within the Office of Justice Programs aimed at reducing gang violence.

Mutual Legal Assistance Treaty Reform.—The Committee supports the Department's full request for much needed reform to the Mutual Legal Assistance Treaty [MLAT] process which will not only provide resources to the Criminal Division, FBI and the U.S. Attorneys Offices, but also help improve our Nation's interaction with our international partners. This funding will significantly increase personnel dedicated to reviewing and executing MLAT requests as well as technological enhancements to improve the way requests are analyzed, categorized, and prioritized. Should the Department need additional resources to fully fund this effort, funding from unobligated balances should be used. The Department is directed to submit a detailed spending plan to the Committee including personnel hires and technology upgrades to improve the MLAT process within 45 days of enactment of this act.

Crimea.—The Committee remains concerned about the Russian aggression in Ukraine, Russia’s illegal annexation of Crimea, and Russia’s illegal and unacceptable efforts to exploit stolen Crimean resources, and urges that none of the funds in this act be used to recognize, or imply recognition of, the sovereignty of the Russian Federation over Crimea, its territory, airspace, or territorial waters.

Scientific Working Group on Digital Evidence.—The Committee understands that the memorandum of understanding on forensic science between the National Institute of Standards and Technology [NIST] and the Department of Justice specifically prohibits the establishment of a Scientific Working Group [SWG] for digital evidence under the new NIST-run Organization for Scientific Area Committees and disagrees with this prohibition. In order to ensure continued support of the digital evidence SWG, the Committee directs NIST to establish a digital evidence SWG in title I of the report. The Committee expects that members and expertise developed by the Justice-led digital evidence SWG would be transitioned to the NIST-supported SWG and that NIST would continue to operate all SWGs in a consensus-driven manner that places value on input from a wide range of practitioners.

Crime and the Bakken Oil Region.—The Committee recognizes the growing incidence of serious crimes committed in the Bakken oil region which crosses multiple State and local jurisdictions. Communities in the region are experiencing unprecedented growth and an influx of workers due to continued demand for labor. Unfortunately, increased crime, including incidents of violence, sexual assault, and sex trafficking, have also risen. The Committee directs the DOJ to report within 90 days of enactment of this act on the Department’s current and anticipated presence in the Bakken oil region, including the associated level of staffing and resource needs among its law enforcement and prosecutorial components. The Department shall also include an analysis of crime trends in the region in its report to the Committee.

Emmett Till Unsolved Civil Rights Crime Act.—The Committee fully supports the goals of the Emmett Till Unsolved Civil Rights Crime Act of 2007 (Public Law 110–344) to investigate and prosecute previously unresolved civil rights era “cold case” murders suspected of having been racially motivated, through a partnership among the Civil Rights Division [CRT], the FBI, and the Community Relations Service [CRS], as well as with State and local grant resources. To continue supporting Emmett Till activities, the Committee urges the Department to use such sums as may be necessary from within the budget base for the CRT’s Cold Case Initiative; for the FBI to pursue Emmett Till Act cold cases; and for the CRS to partner with law enforcement agencies and communities to help resolve conflicts resulting from the investigation of unsolved civil rights era cases. Additionally, the Committee directs the National Institute of Justice, the Bureau of Justice Assistance, and the Office for Victims of Crime to continue providing grants for cold case DNA investigations to aid State and local law enforcement agencies in their investigation and prosecution of unsolved civil rights cold cases.

Eliminating Duplication and Improving Efficiencies in DOJ Grants.—The Committee continues to believe that, given current budgetary constraints, it is prudent to ensure that governmental resources, including those awarded through grants and subgrants, are appropriately targeted and that duplication is eliminated.

Within 90 days of enactment of this act, the Committee directs the Department to submit a report on the progress made on the assessment of grant duplication required by Public Law 113–76 along with any changes to law needed to ensure efficiency in grant funding.

Working Capital Fund [WCF].—The Committee expects the Department to execute the funding to the fullest extent possible without any carryover balances. The Committee directs the DOJ to continue to use the WCF only as a repository for reimbursable funds from components and to obligate and execute that funding expeditiously. The DOJ shall provide a report to the Committee within 30 days after enactment of this act regarding balances in the WCF including carryover funds, the intended uses of those funds, and a spending plan. The spending plan shall include collections and obligations for both reimbursable and appropriated funding. The Department is further directed to provide quarterly updates on the WCF to the Committee.

Spending Plan.—In compliance with section 534 of this act, the Committee directs the Department of Justice to submit a spending plan, signed by the Attorney General, within 45 days of enactment of this act.

GENERAL ADMINISTRATION

SALARIES AND EXPENSES

Appropriations, 2014	\$110,000,000
Budget estimate, 2015	128,851,000
Committee recommendation	115,000,000

The Committee's recommendation provides \$115,000,000 for General Administration salaries and expenses. The recommendation is \$5,000,000 above the fiscal year 2014 enacted level and \$13,851,000 below the budget request.

The General Administration account provides funding for senior policy officials responsible for Departmental management and policy development. The specific offices funded by this account include the following: the immediate Office of the Attorney General; the immediate Office of the Deputy Attorney General; the immediate Office of the Associate Attorney General; Office of Legal Policy; Office of Public Affairs; Office of Legislative Affairs; Office of Professional Responsibility; Office of Intergovernmental and Public Liaison; and the Justice Management Division.

Coordination on Tribal Land and the Office of Tribal Justice.—The Committee encourages the Department of Justice and the Bureau of Indian Affairs [BIA] to improve coordination to provide critical law enforcement resources to tribes. Both agencies support investigators, tribal courts, and detentions centers, which all play an important role in comprehensive law enforcement in Indian Country, including providing adequate assistance for the operation and maintenance of detention centers. The Committee strongly encour-

ages the Department to renew its focus on working with the BIA to ensure that tribes are receiving sufficient resources to operate detention centers.

Wildlife Trafficking.—The Committee notes the recent increase of illegal trade in rhinoceros horns, elephant ivory, and illegally harvested timber, along with the large sums of money that these products command on the black market. The linkages between illegal wildlife and natural resources trafficking and other transnational organized crimes (including trafficking in narcotics, arms and humans) is indisputable. The illegal harvesting of elephant ivory and other high-value wildlife products used to finance armed insurgencies and other groups threatens the stability and development of African countries and poses a threat to U.S. security interests. The Committee is pleased with the Department’s membership on the Presidential Task Force on Wildlife Trafficking that was established by Executive Order on July 1, 2013. The Committee directs the Attorney General to submit a status update report, not later than 180 days after the date of enactment of this act, outlining the specific steps being taken by the Department to further address wildlife trafficking and the illegal natural resources trade; the engagement of the Department with the Presidential Task Force on Wildlife Trafficking, including steps to build prosecutorial and legal structures to help address wildlife trafficking in other countries; the efforts to implement the National Strategy on Wildlife Trafficking; and the resources that have been aligned with activities and initiatives to this end.

JUSTICE INFORMATION SHARING TECHNOLOGY

Appropriations, 2014	\$25,842,000
Budget estimate, 2015	25,842,000
Committee recommendation	25,842,000

The Committee’s recommendation provides \$25,842,000 for Justice Information Sharing Technology [JIST]. The recommendation is equal to the fiscal year 2014 enacted level and the budget request.

The Committee’s recommendation includes the requested transfer of up to \$35,400,000 from agency components to augment JIST base resources to advance initiatives to transform DOJ-wide information technology [IT] enterprise infrastructure and cybersecurity, and to create a reinvestment pool to provide funding for smart IT investments.

Cybersecurity.—The Committee’s recommendation fully funds JIST’s budget request for cybersecurity of \$4,422,000 so DOJ may continue to proactively defend against and respond to current and emerging cybersecurity threats and attacks against DOJ’s network infrastructure. The Committee supports the Department’s efforts to better protect its networks and other IT assets, and expects that these resources will allow DOJ to maintain successful cybersecurity implementation as documented by its Federal Information Security Management Agency [FISMA] report card. DOJ and other Federal agencies should lead by example on cybersecurity and have an obligation to secure their dot-gov networks.

ADMINISTRATIVE REVIEW AND APPEALS
(INCLUDING TRANSFER OF FUNDS)

Appropriations, 2014	\$315,000,000
Budget estimate, 2015	351,072,000
Committee recommendation	351,072,000

The Committee's recommendation provides \$351,072,000 for Administrative Review and Appeals, of which \$4,000,000 is a transfer from the U.S. Citizenship and Immigration Services [USCIS] Immigration Examiners Fee Account. The recommendation is \$36,072,000 above the fiscal year 2014 enacted level and equal to the budget request.

This account fully funds the Executive Office for Immigration Review [EOIR], including the Board of Immigration Appeals [BIA], immigration judges, and administrative law judges who decide through administrative hearings whether to admit or exclude aliens seeking to enter the country, and whether to deport or adjust the status of aliens whose status has been challenged. This account also fully funds the Office of the Pardon Attorney, which receives, investigates, and considers petitions for all forms of executive clemency.

EOIR represents the Department's frontline presence with respect to the application of immigration law. EOIR receives cases directly from Department of Homeland Security [DHS] enforcement personnel, in which the Federal Government is seeking the removal of immigrants who are in the United States without lawful status or who have committed some act, typically a criminal offense, that renders them removable. EOIR's immigration court caseload continues to increase as a result of heightened border enforcement efforts. The annual caseload increased by over 60 percent between fiscal year 2009 and the end of the second quarter of fiscal year 2014, to more than 360,000 new matters for adjudication. Additionally, the BIA receives more than 30,000 appeals per year, an extremely large volume for an appellate court. Court dockets are scheduled unacceptably far into the future, with most courts backlogged at least a year.

Given these increasing caseload demands, the Committee's recommendation includes the requested programmatic increase of \$17,000,000 to add 35 new Immigration Judge [IJ] Teams, for a total of 284 IJ teams. This will allow EOIR to better coordinate with DHS enforcement efforts and to help adjudicate up to 39,000 more cases annually.

Legal Orientation Program [LOP].—The Committee's recommendation includes \$10,024,000, an increase of \$2,824,000 above fiscal year 2014, and equal to the budget request, to cover the expansion of LOP. The Committee supports LOP, which informs detained non-citizens about their legal rights and responsibilities in immigration court. The Committee understands that approximately 80 percent of immigration detainees must act pro se in immigration court, and these individuals greatly benefit from accurate information about their legal claims and removal proceedings. The Committee emphasizes that LOP also benefits taxpayers by increasing the efficiency of immigration proceedings and reducing costs related to immigration detention.

Recognizing that LOP served detained individuals in a limited number of States last year, the Committee directs that attention be paid to geographic equity as LOP expands the reach of its services to additional detention centers. The Committee notes the particular need for legal services at more remote immigration detention sites that are far from legal service providers in urban centers.

The Committee's recommendation includes \$2,000,000, as requested in the budget base for LOP, pursuant to the Trafficking Victims Protection Reauthorization Act of 2008 (Public Law 110–457), for custodians of unaccompanied, undocumented children to address the custodian's responsibility for the child's appearance at all immigration proceedings, and to protect the child from mistreatment, exploitation, and trafficking.

Pilot-Innovation Ideas.—The Committee provides the requested \$5,824,000 to fund the “Pilot-Innovation Ideas” to improve the level and quality of legal representation for unaccompanied minor children. The Committee directs EOIR to work with the Department of Health and Human Services' Office of Refugee Resettlement [ORR] as well as the Department of Homeland Security to ensure that the services provided by each agency are complimentary, rather than duplicative, so that cases can be adjudicated more efficiently. The Committee directs EOIR to submit a report on the status of the pilot program to include a detailed breakout of spending within 45 days of enactment of this act. In addition, the Committee directs EOIR, in consultation with ORR, to submit a plan detailing the responsibilities of each agency, along with recommended funding, to ensure the representation of these children along with the fiscal year 2016 budget.

OFFICE OF INSPECTOR GENERAL

Appropriations, 2014	\$86,400,000
Budget estimate, 2015	88,577,000
Committee recommendation	88,577,000

The Committee's recommendation provides \$88,577,000 for the Office of Inspector General [OIG]. The recommendation is \$2,177,000 above the fiscal year 2014 enacted level and equal to the budget request.

This account finances the activities of the OIG, including audits, inspections, investigations, and other reviews of programs and operations of the Department of Justice to promote efficiency and effectiveness, and to prevent and detect fraud, waste, and abuse, as well as violations of ethical standards arising from the conduct of Department employees in their numerous and diverse activities.

Right to Access.—The Committee has included bill language providing the Inspector General access to documents and other materials at the Department of Justice which may be necessary in the normal conduct of the Inspector General's duties. The Committee asks the Inspector General to report on the effectiveness of this provision within 180 days of enactment.

UNITED STATES PAROLE COMMISSION

SALARIES AND EXPENSES

Appropriations, 2014	\$12,600,000
Budget estimate, 2015	13,308,000
Committee recommendation	13,308,000

The Committee's recommendation provides \$13,308,000 for the United States Parole Commission. The recommendation is \$708,000 above the fiscal year 2014 enacted level and equal to the budget request.

LEGAL ACTIVITIES

SALARIES AND EXPENSES, GENERAL LEGAL ACTIVITIES

Appropriations, 2014	\$867,000,000
Budget estimate, 2015	935,854,000
Committee recommendation	915,000,000

The Committee's recommendation provides \$915,000,000 for General Legal Activities salaries and expenses. The recommendation is \$48,000,000 above the fiscal year 2014 enacted level and \$20,854,000 below the budget request.

This appropriation funds the establishment of litigation policy, conduct of litigation, and various other legal responsibilities, through the Office of the Solicitor General, the Tax Division, the Criminal Division [CRM], the Civil Division [CIV], the Environmental and Natural Resources Division, the Civil Rights Division [CRT], the Office of Legal Counsel, and INTERPOL Washington.

INTERPOL Washington.—From within funds provided for General Legal Activities, the Committee directs the Department to provide \$32,000,000 for INTERPOL Washington, equal to the budget request. The Committee has provided no-year authority in the amount of \$685,000 to ensure sufficient resources are available for INTERPOL Washington's dues payments and help the Department better manage fluctuations in currency exchange rates. The mission of INTERPOL Washington is to provide the United States' Federal, State, local, and tribal law enforcement authorities a central point of communication to the international law enforcement community, and to serve as the official U.S. representative to the International Criminal Police Organization [INTERPOL]. INTERPOL Washington's command center [IOCC] operates 24 hours a day, 7 days a week, 365 days a year, responding to requests for international criminal investigative and humanitarian assistance from more than 18,000 U.S. law enforcement agencies and their counterparts in 189 other INTERPOL-member countries. In fiscal year 2013, the IOCC processed an average of 27,472 individual requests for assistance each month, or 903 requests per day. INTERPOL Washington's responsibility to respond to increasing foreign and domestic requests places additional operational demands on the resources of this organization.

Cybersecurity.—The Committee's recommendation fully funds the requested programmatic increase of \$2,580,000 and 25 positions, including 9 attorneys, for a total of \$31,637,000, to enable the CRM to combat the growing and evolving cyber threat. The Committee expects that these new positions will be devoted solely to

cybersecurity and will allow the Department to bring additional prosecutions of cyber criminals.

Intellectual Property Rights [IPR] Enforcement.—The Committee supports the Department’s request of \$2,200,000, and 11 positions, to support the CRM in combating international theft of IP, which causes losses of hundreds of billions of dollars each year and reduces the incentive for innovation and creativity within the U.S. economy.

Human Trafficking and Slavery.—The Committee’s recommendation provides \$6,500,000 for the Human Trafficking and Slavery Prosecution Unit [HTSPU] in the CRT to fight human trafficking and slavery. The Committee encourages the HTSPU and the Anti-Trafficking Coordination Teams to continue working with victim service providers and non-governmental organizations to ensure victim needs are prioritized as part of the overall strategy to combat human trafficking, forced labor, and slavery in the United States.

Civil Rights.—The Committee provides a total of \$158,000,000 to the CRT to strengthen its efforts to enforce civil rights laws; expand its capacity to prosecute and provide litigation support for human trafficking, hate crimes, and unsolved civil rights era crimes; carry out its responsibilities associated with the civil rights of institutionalized persons and the access rights of the disabled; investigate and prosecute police misconduct; and enhance the enforcement of fair housing and fair lending laws.

Civil Rights Violations in State and Local Prisons and Jails.—The Committee continues to be concerned by reports of civil rights violations in State and local prisons and jails, and directs the CRT to increase efforts to investigate and address violations of the Civil Rights of Institutionalized Persons Act in State and local prisons and jails. The Committee directs the CRT to use such sums as necessary from amounts appropriated in fiscal year 2015 to address such issues in State and local prisons and jails.

Human Rights Crimes.—The Committee remains concerned by the large number of suspected human rights violators from foreign countries who have found safe haven in the United States and directs the CRM to continue its efforts to investigate and prosecute serious human rights crimes, including genocide, torture, use or recruitment of child soldiers, and war crimes. For this purpose, the Committee’s recommendation supports continued funding for the CRM to investigate and prosecute individuals who violate Federal laws regarding serious human rights abuses.

THE NATIONAL CHILDHOOD VACCINE INJURY ACT

Appropriations, 2014	\$7,833,000
Budget estimate, 2015	7,833,000
Committee recommendation	7,833,000

The Committee’s recommendation provides a reimbursement of \$7,833,000 for legal costs. The recommendation is equal to the fiscal year 2014 enacted level and the budget request.

This account covers the Department’s expenses associated with litigating cases under the National Childhood Vaccine Injury Act of 1986 (Public Law 99–660).

SALARIES AND EXPENSES, ANTITRUST DIVISION

Appropriations, 2014	\$160,400,000
Budget estimate, 2015	162,246,000
Committee recommendation	162,246,000

The Committee's recommendation provides \$162,246,000 for the Antitrust Division. The recommendation is \$1,846,000 above the fiscal year 2014 enacted level and equal to the budget request. This appropriation is offset by \$100,000,000 in pre-merger filing fee collections, resulting in a direct appropriation of \$62,246,000.

UNITED STATES ATTORNEYS

SALARIES AND EXPENSES

Appropriations, 2014	\$1,944,000,000
Budget estimate, 2015	1,955,327,000
Committee recommendation	1,950,000,000

The Committee's recommendation provides \$1,950,000,000 for the Executive Office for United States Attorneys [EOUSA] and the 94 U.S. Attorneys' [USAs] offices. The recommendation is \$6,000,000 above the fiscal year 2014 enacted level and \$5,327,000 below the budget request.

As in past years, the Committee directs the USAs to focus their efforts on those crimes where the unique resources, expertise, or jurisdiction of the Federal Government can be most effective.

Adam Walsh Act Implementation.—The Committee expects the EOUSA to continue to focus on investigations and prosecutions related to the sexual exploitation of children, as authorized by the Adam Walsh Child Protection and Safety Act of 2006 (Public Law 109–248), and as part of Project Safe Childhood. The recommendation fully funds the budget request of \$43,998,000 for this purpose in fiscal year 2015.

Combating Financial and Mortgage Fraud.—The Committee's recommendation fully funds the request of \$55,708,000, to hold accountable criminals who perpetrate financial and mortgage fraud, deter future perpetrators of fraud, and recover monies stolen from U.S. taxpayers. The USAs will conduct criminal investigations and prosecutions of mortgage and financial fraud, predatory lending, financial fraud, and market manipulation matters. The USAs will also increase civil enforcement efforts to continue to obtain recoveries from individuals and companies that have defrauded the Government by violating the terms of Federal contracts, grants, loans, and subsidies.

Human Trafficking.—The Committee directs the EOUSA, in consultation with the USAs, to designate a point of contact in each U.S. Attorney's office who shall serve as the coordinator for all activities within that office concerning human trafficking and slavery matters covered by the Trafficking Victims Protection Act. Designating a point of contact improves communication and coordination within each jurisdiction, including with victim service organizations, in order to better serve the victims of human trafficking, forced labor, and slavery.

Intellectual Property Rights [IPR] Enforcement.—The Committee expects the Department to continue to make IPR enforcement an investigative and prosecutorial priority for Federal prosecutors.

National Advocacy Center.—The Committee is aware of the excellent training for U.S. Attorneys, Assistant U.S. Attorneys, and other legal professionals which has been provided for two decades at the National Advocacy Center. The Committee expects the Department to maintain the integrity of the original agreement in light of unavoidable delays impeding the Federal Government's ability to take possession of the facility.

UNITED STATES TRUSTEE SYSTEM FUND

Appropriations, 2014	\$224,400,000
Budget estimate, 2015	225,908,000
Committee recommendation	225,908,000

The Committee's recommendation provides \$225,908,000 for the U.S. Trustee System Fund. The recommendation is \$1,508,000 above the fiscal year 2014 enacted level and equal to the budget request. The appropriation is fully offset by fee collections.

The U.S. Trustee Program, authorized by 28 U.S.C. 581 et seq., is the component of the Department with responsibility for protecting the integrity of the bankruptcy system by overseeing case administration and litigation to enforce the bankruptcy laws. In fiscal year 2015, the U.S. Trustee Program will participate in an estimated 1.4 million business and consumer bankruptcy case filings.

SALARIES AND EXPENSES, FOREIGN CLAIMS SETTLEMENT COMMISSION

Appropriations, 2014	\$2,100,000
Budget estimate, 2015	2,326,000
Committee recommendation	2,326,000

The Committee's recommendation provides \$2,326,000 for the Foreign Claims Settlement Commission. The recommendation is \$226,000 above the fiscal year 2014 enacted level and equal to the budget request.

The Foreign Claims Settlement Commission settles claims of American citizens arising from nationalization, expropriation, or other takings of their properties and interests by foreign governments.

FEES AND EXPENSES OF WITNESSES

Appropriations, 2014	\$270,000,000
Budget estimate, 2015	270,000,000
Committee recommendation	270,000,000

The Committee's recommendation provides \$270,000,000 for fees and expenses of witnesses. The recommendation is equal to the fiscal year 2014 enacted level and the budget request.

This appropriation, which is considered mandatory for scorekeeping purposes, provides for fees and expenses of witnesses who appear on behalf of the Government in cases in which the United States is a party, including fact and expert witnesses. These funds are also used for mental competency examinations, as well as witness and informant protection.

The Committee expects that no funds will be expended for expert witness services, including the payment of fees and expenses of expert witnesses, from any DOJ accounts but Fees and Expenses of Witnesses.

SALARIES AND EXPENSES, COMMUNITY RELATIONS SERVICE

Appropriations, 2014	\$12,000,000
Budget estimate, 2015	12,972,000
Committee recommendation	12,972,000

The Committee's recommendation provides \$12,972,000 for the Community Relations Service [CRS]. The recommendation is \$972,000 above the fiscal year 2014 enacted level and equal to the budget request.

The Community Relations Service, established by title X of the Civil Rights Act of 1964, provides assistance to communities and persons in the prevention and resolution of disagreements arising from discriminatory practices.

Hate Crimes Prevention.—Within the funds provided, the Committee provides \$2,500,000 to handle an increase in workload and responsibilities stemming from passage of the Matthew Shepard and James Byrd, Jr., Hate Crimes Prevention Act [HCPA] (Public Law 111–84). The HCPA has expanded the CRS's mandate, requiring that it help communities prevent and respond to violent hate crimes committed on the basis of gender, gender identity, sexual orientation, religion, and disability, in addition to race, color, and national origin. These enhancements will maximize the CRS crisis response nationwide and enable it to fulfill both its original mandate and expanded mandate under the HCPA.

ASSETS FORFEITURE FUND

Appropriations, 2014	\$20,500,000
Budget estimate, 2015	20,514,000
Committee recommendation	20,514,000

The Committee's recommendation provides \$20,514,000 for the Assets Forfeiture Fund [AFF]. The recommendation is \$14,000 above the fiscal year 2014 enacted level and equal to the budget request.

The AFF provides funds for qualifying expenses of Federal law enforcement agencies and their State or local partners. Funds for these activities are provided from receipts deposited in the AFF resulting from the seizure and liquidation of assets. Expenses related to the management and disposal of assets are also provided from the AFF by a permanent, indefinite appropriation.

UNITED STATES MARSHALS SERVICE

Appropriations, 2014	\$2,727,800,000
Budget estimate, 2015	2,790,107,000
Committee recommendation	2,790,107,000

The Committee's recommendation provides a total of \$2,790,107,000 for the United States Marshals Service [USMS]. The recommendation is \$62,307,000 above the fiscal year 2014 enacted level and equal to the budget request.

SALARIES AND EXPENSES

Appropriations, 2014	\$1,185,000,000
Budget estimate, 2015	1,185,000,000
Committee recommendation	1,185,000,000

The Committee's recommendation provides \$1,185,000,000 for USMS salaries and expenses. The recommendation is equal to the fiscal year 2014 enacted level and the budget request.

The core missions of the USMS include the apprehension of fugitives; protection of the Federal judiciary and witnesses; execution of warrants and court orders; and the custody and transportation of unsentenced prisoners.

Regional Fugitive Task Forces.—The Committee strongly supports the USMS's Regional Fugitive Task Forces [RFTFs], which are effective partnerships with other Federal, State and local law enforcement agencies to apprehend violent fugitives. These task forces exemplify well-coordinated law enforcement efforts. The Committee directs the USMS to ensure that existing RFTFs have the resources and work space necessary to maintain their continued success at capturing fugitives. The Committee directs the USMS to provide a report detailing the space arrangements currently available for each of the RFTFs and any plans for acquiring new or additional space no later than 30 days after the date of enactment of this act.

Tactical Training Space.—The Committee is concerned that the USMS has interpreted the Office of Management and Budget Memorandum [OMB] M–1212, Section 3 “Freeze the Footprint” policy to include tactical training space thereby prohibiting the acquisition of such space by RFTFs. However, the guidance specifically states that agencies “shall not increase the total square footage of their domestic office and warehouse inventory . . .” and defines office space as “buildings primarily used for office space or military headquarters.” The Committee believes that tactical training space does not meet the definition of “office space” included in the memorandum. Tactical training space, including live fire simulations shoot houses, allows Federal law enforcement as well as their State and local partners to train together as cohesive units under realistic conditions through scenario-based training. The RFTFs have developed an intensive, specialized, and comprehensive training curriculum for all task force participants ensuring personnel are trained to the same standards. The Committee directs the USMS to ensure that its application of OMBs “Freeze the Footprint” policy is consistent with the definitions included therein and does not incorporate tactical training space. The USMS is directed to report to Congress on its progress in and plans for obtaining tactical training space for RFTFs not later than 90 days after the date of enactment of this act.

Gang Enforcement.—With some 20,000 violent street gangs, motorcycle gangs, and prison gangs with nearly one million members criminally active in the United States today, the Committee recognizes the urgent need to reduce the proliferation of gang members and gang crime. One of the key strengths of the USMS RFTF model is the ability to conduct short-term, street level enforcement operations. This expertise enhances the Marshals Service's Federal, State, and local law enforcement partners' ability to track down, root out, and prosecute the most dangerous violent gang members, thereby removing gangs and the tools of their trade—illicit weapons, drugs, and laundered money—from communities plagued by violence.

Within the amount provided in the budget request, the USMS shall dedicate no less than \$5,000,000 to operate anti-gang investigative units within the RFTFs, including supporting the supervisory, operational, equipment, and training needs of these units, in order to target gangs of national significance. These units will increase law enforcement's ability to identify, locate, and arrest violent gang fugitives, as well as increase USMS gang training and increase innovative anti-gang and violent crime reduction operations. If necessary, the Committee urges the Department to submit a reprogramming request in 2015 that would reallocate funds from lower priority programs across the Department or from unobligated no-year balances to enable the USMS to expand its gang enforcement mission.

Sex Offender Apprehension.—The Adam Walsh Child Protection and Safety Act of 2006 [AWA] (Public Law 109–248) gives the USMS the authority to treat convicted sex offenders who fail to register as fugitives. The act also directs the USMS to assist jurisdictions in locating and apprehending these individuals. In 2013, the USMS tracked down and arrested more than 11,800 fugitive sex offenders and opened 3,607 Adam Walsh Act investigations.

The USMS currently has on board 160 Deputy Marshals to assist States in locating and apprehending sex offenders who violate sex offender registration requirements. However, the USMS estimates it needs a dedicated force of at least 500 Deputy Marshals to expand AWA enforcement activities in districts across the country. The Committee's recommendation provides not less than \$55,733,000 to continue AWA enforcement.

The funds provided will also continue support for the National Sex Offender Targeting Center and reinforce infrastructure including costs associated with the use of administrative subpoenas so that Deputy Marshals have timely, accurate investigative information to track down and arrest those who prey on our Nation's children.

CONSTRUCTION

Appropriations, 2014	\$9,800,000
Budget estimate, 2015	9,800,000
Committee recommendation	9,800,000

The Committee's recommendation provides \$9,800,000 for construction in space controlled, occupied, or utilized by the USMS in Federal courthouses and buildings, including but not limited to the creation, renovation, and expansion of prisoner movement areas, elevators, and other law enforcement and court security support space. The recommendation is equal to the fiscal year 2014 enacted level and the budget request.

The Committee notes that the budget request will result in funding for this account dropping roughly 63 percent in a span of 5 years, from \$26,625,000 in fiscal year 2010 to \$9,800,000 provided in the recommendation. The USMS has approximately \$47,000,000 in shovel-ready construction and/or renovation projects pending at Federal courthouses and buildings. These upgrades are essential for maintaining the security and safety of judicial officials, courtroom participants, the public, USMS personnel, and prisoners. The

Committee expects future budget submissions to more realistically reflect construction needs.

FEDERAL PRISONER DETENTION

Appropriations, 2014	\$1,533,000,000
Budget estimate, 2015	1,595,307,000
Committee recommendation	1,595,307,000

The Committee's recommendation provides \$1,595,307,000 for Federal Prisoner Detention [FPD]. The recommendation is \$62,307,000 above the fiscal year 2014 enacted level and equal to the budget request.

The Committee expects the USMS to anticipate the true funding needs for this account in order to avoid funding shortfalls and the need for emergency reprogrammings to avert deficiencies. The Committee directs the USMS to report to the Committee on a quarterly basis the current number of individuals in the detention system, the projected number of individuals, and the annualized costs associated with them.

NATIONAL SECURITY DIVISION

SALARIES AND EXPENSES

Appropriations, 2014	\$91,800,000
Budget estimate, 2015	91,800,000
Committee recommendation	91,800,000

The Committee's recommendation provides \$91,800,000 for the National Security Division [NSD]. The recommendation is equal to the fiscal year 2014 enacted level and the budget request.

The NSD coordinates the Department's national security and counterterrorism missions through law enforcement investigations and prosecutions, and handles counterespionage cases. The NSD works in coordination with the FBI, the Intelligence Community, and the U.S. Attorneys. Its primary function is to prevent acts of terrorism and espionage from being perpetrated in the United States by foreign powers.

Combating Cyber Threats to National Security.—The Committee's recommendation funds the full request of \$29,675,000 for cybersecurity activities within the NSD for investigative, prosecutorial, intelligence collection, and oversight abilities that support the Intelligence Community in identifying and disrupting cyber threats to national security. This amount is the same as the fiscal year 2014 enacted level.

INTERAGENCY LAW ENFORCEMENT

INTERAGENCY CRIME AND DRUG ENFORCEMENT

Appropriations, 2014	\$514,000,000
Budget estimate, 2015	505,000,000
Committee recommendation	505,000,000

The Committee's recommendation provides \$505,000,000 for Interagency Crime and Drug Enforcement. The recommendation is \$9,000,000 below the fiscal year 2014 enacted level and equal to the budget request.

The Interagency Crime and Drug Enforcement account funds the Organized Crime and Drug Enforcement Task Forces [OCDETF], which is the centerpiece of the Department's drug enforcement and counternarcotics efforts. The mission of the OCDETF is to ensure a coordinated, multi-agency, intelligence-based, and prosecutor-led approach to identifying, disrupting, and dismantling those drug trafficking and money laundering organizations primarily responsible for the Nation's illicit drug supply and drug-related violence.

Law Enforcement Coordination.—The Committee notes the important role that the OCDETF provides by allowing Federal law enforcement agencies to work together to combat drug trafficking and money laundering. The Committee requests the Department provide non-sensitive law enforcement information regarding how, under the OCDETF program, law enforcement agencies prioritize and coordinate information and activities across the country to combat drug trafficking, especially in areas of the United States that have a disproportionately high level of drug trafficking not later than 90 days after enactment of this act.

FEDERAL BUREAU OF INVESTIGATION

SALARIES AND EXPENSES

Appropriations, 2014	\$8,245,802,000
Budget estimate, 2015	8,278,219,000
Committee recommendation	8,291,233,000

The Committee's recommendation provides \$8,291,233,000 for the Federal Bureau of Investigation [FBI] salaries and expenses. The recommendation is \$45,431,000 above the fiscal year 2014 enacted level and \$13,014,000 above the budget request.

Next Generation Cyber Initiative.—Cyber threats expand and evolve each year with cyber criminals using whatever vulnerabilities they can find, from sandwich menus and heating and cooling systems to relentless, nation-state sponsored assaults to compromise U.S. Government and private sector computer networks. Whether the criminals behind the keyboard are seeking profit, intelligence, or intellectual property, the FBI is in a unique position to counter the threat. The FBI remains the only agency with the statutory authority, expertise, and ability to combine counterterrorism, counterintelligence, and criminal investigatory resources to neutralize, mitigate, and disrupt illegal computer-supported operations domestically.

The Committee recognizes the FBI's efforts to counter cyber threats and recommends continued funding at the fiscal year 2014 enacted level, to further the FBI's investigatory, intelligence gathering, and technological capabilities. These funds will support efforts by the Comprehensive National Cybersecurity Initiative [CNCI] to increase coverage of cyber-terrorist threats and allow the FBI's National Cyber Investigative Joint Task Force [NCIJTF] to continue 24/7 operations. The NCIJTF plays an important role in coordinated national cybersecurity operations. Because threat actors operate globally, a significant volume of cyber threat activity occurs outside of normal business hours. The increasing need for real-time analysis to support operations and provide program man-

agement for multi-agency efforts requires the NCIJTF to boost its after-hours presence.

Cyber Training for Field Agents.—The Committee expects the FBI to continue using, from within funds provided, \$5,000,000 to train FBI cyber agents involved in national security intrusion cases. This will allow the FBI to continue building its cyber threats workforce by increasing the number of cyber agents qualified to understand current techniques and tactics used by those engaged in illicit cyber activities, and stay abreast of emerging technologies that are used to overcome computer systems' defenses and to infiltrate networks, such as those of the U.S. Government, utility companies, defense contractors, and financial institutions.

National Instant Criminal Background Check System [NICS].—The Committee's recommendation fully funds the programmatic increase of \$13,424,000 for a total of \$141,864,000, to maintain the substantial improvements to NICS in fiscal year 2014 that increased the capacity of the existing NICS system to perform background checks on prospective firearms buyers.

National Gang Threat Assessment.—The Committee finds the information provided in the National Gang Intelligence Center's [NGIC] National Gang Threat Assessment useful and urges the NGIC to issue its biannual report not later than the end of the calendar year in which it is due. Additionally, in order to better inform policy makers, the Committee encourages the NGIC to work with State, local, and Federal law enforcement to include as much detailed information about the location of gangs and gang members by State and region as is possible.

Financial and Mortgage Fraud.—The FBI continues to develop new approaches and techniques for detecting, investigating, and combating the highest impact and most complex financial crimes—corporate fraud, securities and commodities fraud, and mortgage fraud. The Committee's recommendation includes the request of \$147,103,000 to support the FBI's ability to combat financial and mortgage fraud at all levels of organizations, and will enable the FBI to adapt as new fraud schemes emerge.

The FBI identifies mortgage fraud as the top white collar crime problem in the United States. The Bureau is currently investigating nearly 1,600 mortgage fraud cases, compared to approximately 700 investigations in fiscal year 2005. Roughly 70 percent of the FBI's pending investigations involve losses exceeding \$1,000,000 per case. Efforts to combat mortgage fraud are paying off and, in 2013, the FBI successfully pursued cases that resulted in nearly 1,300 convictions.

Intellectual Property Rights [IPR] Enforcement.—The Committee expects IPR enforcement to remain an investigative priority at the FBI. A 2012 report by the U.S. Department of Commerce found that IP-intensive industries, including copyright industries, contributed \$5,060,000,000,000, or 34.8 percent of GDP, to the U.S. economy and supported the jobs of 40 million American workers. The FBI shall, as part of the spend plan, provide specific information regarding the number of dedicated agents investigating IPR cases. In addition, the FBI shall provide quarterly updates to the Committee detailing the activities of its dedicated agents investigating IPR cases.

Criminal Justice Information Services [CJIS] Division.—The Committee's recommendation provides \$765,055,511, including fee collections, for the CJIS Division, derived from \$347,031,257 in appropriated funds and \$418,024,254 in anticipated user fees.

FBI Headquarters Consolidation.—The Committee directs the FBI to coordinate closely with the General Services Administration [GSA] to move forward in a timely and transparent way with the full consolidation of FBI Headquarters so that employees currently located at the J. Edgar Hoover building may be co-located with their colleagues who are currently spread out across 20 leased offices in the region. The Committee strongly encourages the FBI and GSA to pursue a strategy for a new FBI Headquarters using federally owned or donated land within a reasonable distance of the White House, the United States Capitol, and the FBI Complex in Quantico, Virginia, that is also within 2 miles of a Metrorail station and 2.5 miles of the National Capital Region Beltway. This consolidation is in the best interest of the FBI's information sharing, collaboration, and integration of strategic priorities. The FBI must have a central headquarters that meets its needs for security and transportation access.

TEDAC.—The Committee recommendation includes \$25,000,000 for the Terrorist Explosive Device Analytical Center for additional FBI staff required to complete the activation of new facilities. This funding will strengthen the role of TEDAC as the U.S. Government's strategic-level improvised explosive device exploitation center and provide the resources necessary to staff the new facility as it comes online. The Committee views TEDAC as a key U.S. Government interagency resource in combating the global threat posed by terrorist use of explosives and in sharing IED threat information and intelligence. The Committee is especially encouraged by the joint initiative of the FBI and the Department of Homeland Security to leverage resources and collaborate on explosives characterization and performance testing at the TEDAC facilities.

Hazardous Devices School.—The Committee is aware that limitations on student capacity at the Hazardous Devices School [HDS] are impacting the ability of the FBI to satisfy demands for both basic and advanced training, resulting in a waiting list for classes. HDS is the sole U.S. Government entity for accrediting and certifying U.S. public safety bomb squads and bomb technicians. Ensuring sufficient training capacity at HDS is critical to providing State and local public safety bomb technicians with the basic and advanced knowledge, tools, and techniques needed as the first line of defense in responding to threats posed by terrorist use of improvised explosive devices. The Committee recommendation includes \$3,000,000 for the HDS within the Salaries and Expenses account for additional training staff to provide expanded course offerings.

Human Rights Violations.—The Committee remains concerned by the large number of suspected human rights violators from foreign countries who have found safe haven in the United States, and directs the FBI to continue its efforts to investigate and support the DOJ's criminal prosecution of serious human rights crimes committed by these foreign nationals, including genocide, torture, use or recruitment of child soldiers, and war crimes. The Commit-

tee's recommendation supports funding at the fiscal year 2014 enacted level for this effort.

Sexual Exploitation and Sex Trafficking of Minors Through Online Web Sites.—The Committee is concerned by the use of online classified advertising Web sites that facilitate human trafficking, and in particular the sexual exploitation and sex trafficking of minors, by expanding an illegal market previously inaccessible to most people. Criminal gangs are increasingly finding human trafficking to be more lucrative than other traditional forms of revenue generation. The Committee directs the FBI to report within 120 days of enactment of this act on any instance where an online classified adult Web site is determined to be the conduit for exploiting trafficked persons, especially minors. The report should include the number of incidents; the location of the incidents, including the city and State; and, with the help of the Department and the Executive Office for United States Attorneys, the number of resulting prosecutions and convictions.

Innocent Images National Initiative [IINI].—The Committee's recommendation provides the \$58,021,000 requested in base funding for the Innocent Images National Initiative, which allows the FBI to target and investigate sexual predators on the Internet. This funding will address the critical requirements for Federal law enforcement in targeting child sexual exploitation and child victimization. The Committee trusts that the budget request is sufficient to cover the current Innocent Images caseload. Should the threat of child predators on the Internet increase, however, the Committee expects that future budget requests for the FBI will include adequate resources dedicated to investigate child predators who prey on children online.

CONSTRUCTION

Appropriations, 2014	\$97,482,000
Budget estimate, 2015	68,982,000
Committee recommendation	93,982,000

The Committee's recommendation provides \$93,982,000 for FBI construction. The recommendation is \$3,500,000 below the fiscal year 2014 funding level and \$25,000,000 above the budget request. Of the amount provided, \$2,000,000 is for the annual operations and maintenance for Terrorist Explosive Device Analytical Center operations facilities, transfer, build-out, and related costs, and \$23,000,000 is provided for construction of additional classrooms, mock training venues, and facilities upgrades of the existing Hazardous Devices School facility.

DRUG ENFORCEMENT ADMINISTRATION

SALARIES AND EXPENSES

Appropriations, 2014	\$2,378,917,000
Budget estimate, 2015	2,384,680,000
Committee recommendation	2,384,680,000

The Committee's recommendation provides total resources of \$2,384,680,000 for the Drug Enforcement Administration [DEA], of which \$366,680,000 is derived from the DEA's Drug Diversion Con-

trol Fee Account. The recommendation is \$5,763,000 above the fiscal year 2014 enacted level and equal to the budget request.

The DEA's mission is to enforce the controlled substances laws and regulations of the United States and bring to the criminal and civil justice system of the United States—or any other competent jurisdiction—those organizations and principal members of organizations involved in the growing, manufacturing, or distribution of controlled substances appearing in or destined for illicit traffic in the United States; and to support non-enforcement programs aimed at reducing the availability of illicit controlled substances on the domestic and international markets.

Diversion Control Program.—Full funding of \$366,680,000 is provided for the Diversion Control Program, which is an increase of \$5,763,000 from the fiscal year 2014 enacted level for expanded forensic support of diversion cases and is fully offset with fee collections.

Prescription Drug Abuse.—The Committee continues to believe that prescription drug abuse is an urgent public health crisis and reiterates its direction to the Department in Public Law 113–76 to provide a report on how the DEA is approaching this growing epidemic. This report was due to the Committee on May 14, 2014, but has not yet been delivered. The Committee directs the DEA to prioritize production of this report.

Prescription Drug Take-Back Days.—The Department shall take steps to ensure that of the funds appropriated for the DEA's Diversion Control Fee Account, sufficient resources shall be allocated to increase the annual number of Prescription Drug Take-Back Days.

International Mission.—The DEA currently assists the Government of Afghanistan in establishing drug enforcement institutions and capabilities needed to enforce the rule of law. The Committee encourages the DEA to continue its counternarcotics activities in Afghanistan including, to the extent practicable, continued funding for Sensitive Investigative Units, National Interdiction Units, and Technical Investigative Units. The Committee directs the DEA to submit an assessment of past effectiveness of its Sensitive Investigative Units and the costs and benefits of expanding the program in Central America and West Africa no later than 90 days after enactment of this act.

Drug Take-Back Operations for Servicemembers and Veterans.—The Committee continues to be concerned about the alarming rate of suicide among servicemembers and veterans. In 2012, the Department of Defense [DOD] reported 349 suicides of military personnel and the Department of Veterans Affairs [VA] estimated 22 veterans a day were lost to suicide based on information gathered from 21 States. A February 2014 report by the DOD Inspector General found that many servicemembers, including high-risk patients such as wounded warriors, do not have a reliable, safe, accessible, and accountable method to dispose of medications no longer needed for treatment. As a result, many may be at risk for overdose or misuse of unneeded medications that could result in unnecessary hospitalization and even death. The report recommended that the Attorney General expedite the decision to allow for DOD medical treatment facility pharmacies to conduct routine take-backs of unnecessary prescription medication.

It is essential that DOD and VA facilities be allowed to fully participate in DEA's drug take-back efforts in order to combat the unique challenge posed by prescription drug misuse and abuse and the continuing crisis of military and veteran suicides. The Committee understands that the rule is currently undergoing review at the Office of Management and Budget, but expects that the DEA's final rule, once published, will provide the DOD and the VA with the means to establish meaningful drug take-back programs for their beneficiaries in order to reduce prescription drug misuse and abuse, and avoid tragic events.

BUREAU OF ALCOHOL, TOBACCO, FIREARMS AND EXPLOSIVES

SALARIES AND EXPENSES

Appropriations, 2014	\$1,179,000,000
Budget estimate, 2015	1,201,004,000
Committee recommendation	1,201,004,000

The Committee's recommendation provides \$1,201,004,000 for the Bureau of Alcohol, Tobacco, Firearms and Explosives [ATF]. The recommendation is \$22,004,000 above the fiscal year 2014 enacted level and equal to the budget request.

The ATF reduces the criminal use of firearms and illegal firearms trafficking, and assists other Federal, State, and local law enforcement agencies in reducing crime and violence. The ATF investigates bombing and arson incidents and assists with improving public safety by reducing the criminal misuse of and trafficking in explosives, combating acts of arson and arson-for-profit schemes, and removing safety hazards caused by improper and unsafe storage of explosive materials.

Combating Gun Violence and Enforcing Gun Laws.—The Committee's recommendation provides the requested increase of \$22,004,000 to enhance the ATF's ability to enforce existing firearms laws and perform regulatory oversight and training, as well as to update and expand the National Integrated Ballistics Information Network [NIBIN]. This will enhance the ATF's ability to collect, report, and share ballistic intelligence with Federal, State, local and tribal law enforcement partners to identify, target, and disrupt violent criminals, including serial shooters. These funds will support the replacement of outdated equipment and software upgrades that will enable firearms examiners to more easily discern distinct markings on the cartridge casings and link evidence for separate cases. Funds will also be used to support work with State and local law enforcement agencies and laboratories to collect ballistic hit information to provide leads to Firearms Intelligence Groups for investigations and document successful prosecutions as a result of NIBIN.

National Integrated Ballistics Information Network Improvements.—The Committee is aware that the ATF has successfully operated NIBIN for over a decade, linking more than 185 State and local law enforcement partner agencies to a database with approximately 2.5 million images of ballistics evidence retrieved from gun crime scenes. To date, nearly 123,000 shootings have been linked, providing crime solving leads to investigators. The Committee supports NIBIN, including the significant investment made by State

and local law enforcement partners to build the current NIBIN database.

Pursuant to direction from the Committee in Public Law 113–76 instructing the Department to take the necessary steps to ensure ballistics information is entered into NIBIN when Federal law enforcement recovers evidence such as fired bullets and cartridge cases at a crime scene, the Committee directs the ATF to provide a report detailing its efforts in that regard not later than 90 days after the date of enactment of this act.

United States-Mexico Firearms Trafficking.—The Committee continues to support the ATF’s efforts to combat weapon trafficking on the border. The ATF shall continue to provide the Committee with annual data on the total number of firearms recovered by the Government of Mexico, and of those, the number for which an ATF trace is attempted, the number successfully traced, and the number determined to have originated in the United States prior to being recovered in Mexico.

National Center for Explosives Training and Research [NCETR].—Preventing the criminal use of explosives is one of the core missions of the ATF, and NCETR serves as the Bureau’s Center of Excellence in this regard. A key goal of NCETR is to foster arson- and explosives-related training and expertise through research and training courses. While the ATF has increased the number of staff and course offerings at NCETR, more is needed. To that end, the Committee directs the ATF to provide \$4,000,000, from within the additional resources provided, to NCETR to restart the advanced fire investigation training course and provide additional advanced explosives disposal techniques courses for public safety bomb technicians.

FEDERAL PRISON SYSTEM

The Committee’s recommendation provides a total of \$6,911,700,000 for the Federal Prison System, or the Bureau of Prisons [BOP]. The recommendation is \$50,000,000 above the fiscal year 2014 enacted level and \$15,000,000 above the budget request.

SALARIES AND EXPENSES

(INCLUDING TRANSFER OF FUNDS)

Appropriations, 2014	\$6,769,000,000
Budget estimate, 2015	6,804,000,000
Committee recommendation	6,804,000,000

The Committee’s recommendation provides \$6,804,000,000 for BOP salaries and expenses. The recommendation is \$35,000,000 above the fiscal year 2014 enacted level and equal to the budget request.

The recommendation shall be expended, consistent with the budget request, in the following manner:

SALARIES AND EXPENSES

[In thousands of dollars]

	Committee recommendation
Inmate Care and Programs	2,560,219
Institution Security and Administration	2,986,408
Contract Confinement	1,051,323
Management and Administration	206,050
Total	6,804,000

By law, the BOP must accept and provide for all Federal inmates, including but not limited to inmate care, custodial staff, contract beds, food, and medical costs. The BOP cannot control the number of inmates sentenced to prison and, unlike other Federal agencies, cannot limit assigned workloads and thereby control operating costs. In effect, the BOP's expenses are mandatory, which leaves the Bureau with extremely limited flexibility.

Prison Overcrowding.—Prison overcrowding has been identified as a programmatic material weakness in every Performance and Accountability Report prepared by the Department since 2006. According to the Office of the Inspector General [OIG], the DOJ faces a significant challenge in “addressing the growing cost of housing a continually growing and aging population of Federal inmates and detainees.” In order to address this challenge, the BOP has contracted with private sector, State, and local facilities to house certain groups of low security inmates, purchased existing facilities, and even constructed new, Federal facilities. None of these efforts, however, have had a significant impact on overcrowding.

Overall prison overcrowding has been decreasing, at 38 percent in fiscal year 2012, 36 percent in fiscal year 2013, and projected to be 33 percent in fiscal year 2014, due to a decrease in the overall institutional prison population, an increase in the number of beds, and greater use of contract bed space. However, medium-security facilities are 41 percent overcrowded, while high-security facilities are 51 percent overcrowded.

While the trends in incarceration rates and overall overcrowding are encouraging, the fact remains that the Bureau's budget consumes 25 percent of the budget for the Department of Justice. Moreover, recent per capita expenditure data from the BOP indicate that it is becoming more expensive each year to incarcerate an inmate in the Federal system. In fact, from fiscal year 2000 to fiscal year 2013 the cost of incarceration rose from approximately \$22,000 per inmate to more than \$29,000 per inmate, an increase of 35.6 percent. These numbers suggest that the BOP could eventually consume an even greater share of the Department's overall budget and potentially lead to an increase in the overall crowding rate as resources become tighter.

In order to address this challenge, the OIG made a number of recommendations in fiscal year 2014 regarding the use of existing programs. While the BOP has limited ability to address crowding in the Federal Prison System due to the requirement of housing inmates commensurate with their sentences, the programs identified by the OIG, as well as the use of contract confinement for low security inmates, are options currently available to the BOP. The Com-

mittee is aware of efforts at the BOP to establish a system for considering compassionate release applications and is pleased that this effort is underway. This is, however, only one step towards the development of a comprehensive plan to address the growth in the Federal prison population as directed last year. The Committee recognizes that there is a comprehensive assessment underway by the GAO that may be beneficial to the BOP in developing such a plan. However, the Committee expects the BOP to provide an update on its progress and any impediments or delays that may inhibit BOP's ability to deliver the plan within the required 180 day deadline. A comprehensive plan that includes the use of authorities vested in the BOP to address crowding issues as well as administrative efforts previously announced by the Attorney General, are essential to inform policymakers as they consider efforts to reduce overcrowding in our Federal prisons.

Oleoresin Capsicum [OC] Aerosol Spray Pilot Program.—The Committee is concerned about the safety of correctional officers and other prison staff and wants to determine if OC spray would help enhance safety needs of the BOP's staff. The Committee directs the BOP to report no later than 90 days after enactment of this act on the status and results of the pilot program authorizing use of OC spray by some corrections officers in 20 BOP facilities. The report should include the BOP's full review of and recommendations regarding the OC program, along with any plans for expanding the program to allow the carrying of OC spray by other BOP employees and at other BOP facilities.

Contract Confinement.—The Committee's recommendation fully funds the request of \$1,051,323,000 for contract confinement needs. This activity provides for the confinement of sentenced Federal offenders in Government-owned, contractor-operated facilities, contracts with State and local facilities, the care of Federal prisoners in contract community residential centers, and assistance by the National Institute of Corrections to State and local corrections. This activity also covers costs associated with management and oversight of contract confinement functions.

Activations and Expansions.—The Committee fully funds the request to activate prisons that currently sit empty or partially empty due to prior year budget constraints. These funds will continue the activation of a high-security prison in Yazoo City, Mississippi, a medium-security prison in Hazelton, West Virginia, and a high-security prison in Thomson, Illinois. With the overcrowding rate at 51 percent at high-security prisons and 41 percent at medium-security prisons, the completion of these three activations will help to reduce these incredibly high overcrowding rates. The Committee expects the BOP to adhere to the activation schedule included in the BOP's budget submission regarding those prison facilities. The BOP shall notify the Committee of any deviations to this schedule.

Strategic Sourcing.—A recent GAO Report entitled, "Audit of the Federal Bureau of Prisons' Efforts to Improve Acquisition Through Strategic Sourcing," found that purchasing operations at the BOP are, "largely de-centralized, with institutions making procurement decisions locally," which resulted in an underutilization of cost-savings efforts. Moreover, the report found that, "BOP had not con-

ducted a comprehensive spend analysis to identify areas where multiple suppliers are providing similar goods and services, and where leveraging the BOP's buying power would be most beneficial." While there are uncontrollable factors that impact the BOP's overall budget, the lack of clarity regarding broad expenditures throughout the Bureau that are, in fact, controllable is troubling. To that end, the Committee directs the BOP to immediately undertake a comprehensive spend analysis as recommended by the GAO. Further, the Committee believes that the Bureau should develop a strategic sourcing plan and take steps to consolidate purchases in order to better leverage the Government's buying power particularly when it comes to medical and healthcare services. Specifically, the Committee believes that efforts to consolidate contracts for the provision of medical services could produce significant overall savings and should be carefully considered. The BOP is directed to report back to the Committee on its progress in achieving these directives no later than 45 days after the date of enactment of this act as well as quarterly thereafter with an accounting of cost savings achieved through these efforts.

Contraband Cell Phones in Prisons.—The Committee continues to be concerned about the use of contraband cell phones in facilities administered by or under contract with the BOP and urges the BOP to accelerate its testing of available technology, including jamming technology and managed access systems, to detect and combat the use of unauthorized cell phones in prisons. The BOP is directed to submit a report to the Committee no later than 90 days after enactment of this act detailing the results of the detection technologies tested and the current cost to implement, in a single, representative BOP facility, a viable cell phone detection technology.

BUILDINGS AND FACILITIES

Appropriations, 2014	\$90,000,000
Budget estimate, 2015	90,000,000
Committee recommendation	105,000,000

The Committee's recommendation provides \$105,000,000 for the construction, modernization, maintenance, and repair of prison and detention facilities housing Federal prisoners. The recommendation is \$15,000,000 above the fiscal year 2014 enacted level and the budget request. Of the amount provided, \$91,000,000 is for modernization and repairs of which \$15,000,000 is for modernization and repairs at USP Thomson.

The Committee includes bill language in Title V—General Provisions stipulating that no BOP resources may be used for facilities to house detainees from the United States Naval Station, Guantánamo Bay, Cuba.

Long-Term Planning.—The Committee is concerned about the seemingly ad hoc process for determining the need for new prison construction or facility expansion, the prioritization of those projects, consideration of capacity needs by region, inmate proximity to home, inmate movement from one facility to another, and communication with impacted communities regarding facility plans. The Committee believes that the consideration of any new facility or facility expansion should be based upon a long-term stra-

tegic plan which incorporates a robust capital planning process including leading capital planning practices as outlined in OMB and GAO guidance. The Committee directs the BOP to undertake the development of a formal process that addresses the issues raised heretofore and memorialize that process in a published plan, not later than 45 days after the date of enactment of this act. The BOP is directed to provide quarterly reports to the Committee on the progress of its efforts.

Construction.—The BOP currently has no plans to activate new prisons, aside from those activations proposed in the fiscal year 2015 request, and the Committee reiterates its direction to BOP in Public Law 113–76 regarding any significant construction appropriation requests in coming fiscal years. After receipt of the GAO’s comprehensive assessment of ways to reduce prison overcrowding, the BOP shall submit to the Committee a comprehensive plan, including funding for new prison construction if merited in future requests.

The Committee directs the BOP to continue providing the Committee the most recent monthly status of construction report, and to notify the Committee of any deviations from the construction and activation schedule identified in that report, including detailed explanations of the causes of delays and actions proposed to address them. These reports are critical to the Committee’s ability to monitor and assess the BOP’s needs. The BOP shall collaborate and coordinate with the Justice Management Division on methods that will efficiently deliver these critical reports to the Committee in a timely manner.

FEDERAL PRISON INDUSTRIES, INCORPORATED

(LIMITATION ON ADMINISTRATIVE EXPENSES)

Appropriations, 2014	\$2,700,000
Budget estimate, 2015	2,700,000
Committee recommendation	2,700,000

The Committee’s recommendation provides a limitation on the administrative expenses of \$2,700,000 for the Federal Prison Industries, Inc. The recommendation is equal to the fiscal year 2014 enacted level and the budget request.

STATE AND LOCAL LAW ENFORCEMENT ACTIVITIES

In total, the Committee recommends \$2,263,300,000 for State and local law enforcement and crime prevention grant programs, including \$2,192,300,000 in discretionary appropriations. The discretionary total is \$1,000,000 below the fiscal year 2014 enacted level and \$10,300,000 above the budget estimate.

Collaboration Between Grants Administering Components.—For many years, the Office on Violence Against Women [OVW], the Office of Justice Programs [OJP], and the Office of Community Oriented Policing Services [COPS] have collaborated on many projects and initiatives to address problems that fall within their respective missions. The Committee expects the OVW, OJP, and COPS to continue and improve upon their collaborative efforts, where feasible, in order to avoid duplication of effort and to make the best possible use of their appropriations.

Management and Administration Expenses.—The Department shall, in preparation of its fiscal year 2015 spending plan, assess management and administration [M&A] expenses against program funding. The Committee directs the Department to ensure that its assessment methodology is equitable and, for programs funded through the Crime Victims Fund, that the assessment reflects a fair representation of the share of each program devoted to common M&A costs. The Committee also directs grant offices to minimize administrative spending in order to maximize the amount of funding that can be used for grants or training and technical assistance. The Committee reiterates the direction provided in Public Law 113–76 that the Department shall detail, as part of its budget submission for fiscal year 2016 and future years, the actual costs for each grant office with respect to training, technical assistance, research and statistics, and peer review for the prior fiscal year, along with estimates of planned expenditures by each grant office in each of these categories for the current year and the budget year.

Evidence-Based Programs.—Faced with an era of budget constraints, the Committee strongly urges the OJP, COPS, and OVW to ensure that, to the greatest extent practicable, competitive grants are used for evidence-based programs and activities of proven effectiveness, innovation, targeted training and technical assistance, and multi-disciplinary collaboration, so as to maximize the result for each dollar spent.

Grants Consolidation.—Many of the initiatives proposed by the Department come at the expense of effective existing grant programs popular with Congress. This leaves the Committee in the position of filling holes, while trying to provide some funding for the administration's priorities. This also means that the number of grant programs grows, and the Committee cannot fund several programs at the levels necessary to be most effective.

While the proposed activities of many of these grant programs are noble, the Committee remains concerned that the perpetual authorization and proposal of new grants programs, while not de-authorizing or omitting redundant and archaic ones, has become unmanageable, particularly during these tight fiscal times. The Committee directs the Department to work more closely with the appropriate congressional committees to seriously consider the modification or omission of existing outdated programs before new proposals and initiatives are unveiled. The Committee once again urges the DOJ, working with Congress and stakeholder groups, to devise a proposal to consolidate and eliminate ineffective grant programs and focus on successful programs that have a proven track record and are cost-effective for the taxpayers' dollars, but reminds the Department that the appropriations process is not the venue for broad authorizing changes.

Grant Funding Set-Asides.—The Committee notes the significant number of reductions in grant funding allowable for various purposes, including training, technical assistance, research, evaluation and statistics activities with set-asides ranging anywhere from 2 percent to 10 percent of total grant funding provided. In years past, the Committee sought to obtain a detailed accounting of these reductions by grant category as specified in the bill to no avail. To

that end, the Committee directs the Department to prepare a comprehensive report to be provided concurrent with the spending plan that details the total amount provided for each grant program in this act, the specific reductions taken, the purpose for those reductions and the final use of those resources, including any transfers that may occur within the OJP, OVW and COPS. The Committee expects that the report will provide a complete analysis of the final amounts externally awarded and the amounts retained internally for other purposes.

Performance Partnership Pilots.—The bill includes language permitting OJP to participate, with other Federal agencies, in the Performance Partnership Pilot program authorized in division H of Public Law 113–76. Performance Partnership Pilots take an evidence-based approach to better serve disconnected youth in our communities. The Committee supports innovative efforts to coordinate programs across the Federal Government that serve these young people. Nonetheless, the Department must remain accountable for the proper use and effectiveness of its grant funds. The proposal for these pilots states that outcome-focused criteria will be used as part of the evaluation process. In addition, jurisdictions receiving funding will be held accountable to a set of cross-agency, data-driven outcomes and interventions will be measured and rigorously evaluated using real-time performance and outcome data.

The OJP shall inform the Committee, not later than 45 days after enactment of this act, on how it intends to participate in Performance Partnership Pilots, including the intended amount and source of funding; how the Department will participate in evaluating and soliciting grant applications including evaluation and accountability criteria; and how the Department will ensure oversight and accountability for its contributions. Not later than 15 days after pilots have been selected, the Department shall brief the Committee with detailed information on the pilots in which it is participating, including detailed information about the grantee, the program being undertaken, specific metrics incorporated to determine outcomes, and the accountability measurements associated with these metrics. The Department's Office of Inspector General should coordinate with the Inspectors General of other participating departments and agencies to ensure timely audits and oversight of these funds.

The Committee encourages the Department to work with appropriate authorizing committees to share lessons learned from the pilots, including recommendations to improve DOJ-administered grant programs.

One-Year Prison Rape Elimination Act [PREA] Exemption.—The Committee has included bill language providing a 1 year exemption from the penalties required under the PREA for the following grant programs: the OVW's Services, Training, Officers, and Prosecutors [STOP] Grants; the OJP's Edward Byrne Memorial Justice Assistance Grant Program; and the Office of Juvenile Justice and Delinquency Prevention's Title II Formula Grant Program.

Blue Alert System.—Similar to the AMBER Alert system, a Blue Alert system would rapidly notify law enforcement agencies, the media, and the public to aid in the apprehension of violent criminals who kill or seriously injure local, State, or Federal law en-

forcement officers. The Committee directs the Department to report, not later than 180 days after the date of enactment of this act, on the costs and feasibility of establishing a national Blue Alert communications network to issue alerts in coordination with State and local law enforcement agencies, and other appropriate entities. The report should include an evaluation of the potential use of existing systems of infrastructure that could facilitate the implementation of this type of alert.

OFFICE ON VIOLENCE AGAINST WOMEN

VIOLENCE AGAINST WOMEN PREVENTION AND PROSECUTION PROGRAMS

Appropriations, 2014	\$417,000,000
Budget estimate, 2015	422,500,000
Committee recommendation	430,000,000

The Committee's recommendation provides \$430,000,000 for OVW grants. The recommendation is \$13,000,000 above the fiscal year 2014 enacted level, and \$7,500,000 above the budget request. Resources are provided to the OVW above the budget request to respond to the needs of all victims of domestic violence, sexual assault, dating violence, and stalking, including, but not limited to, Native women, immigrants, LGBT victims, college students, youths, and public housing residents.

Timeliness of Grant Awards.—The Committee expects the OVW to award grants within the same fiscal year that funds are appropriated. While the Committee recognizes there may be exceptions to this rule, such as the creation of or substantial funding for a new grant program, the Committee has made it a priority to provide adequate funding for the OVW salaries and expenses in order to ensure the timeliness of grant awards. The Committee expects the OVW to discuss, calculate, and plan in detail the best way to administer a grant program. However, the OVW cannot allow the perfect to become the enemy of the good when too much preparation results in unnecessary delays of getting grants out the door and on the ground to help victims. Not later than 45 days after the end of the current fiscal year, the OVW shall submit to the Committee a report on grants appropriated but not awarded in that year, including a detailed explanation of such delays and the expected award dates, as well as the OVW's end-of-year unobligated balances from both fiscal year 2015 and prior years.

The table below displays the Committee's recommendations for the programs under this office.

VIOLENCE AGAINST WOMEN PREVENTION AND PROSECUTION PROGRAMS

[In thousands of dollars]

Program	Committee recommendation
STOP Grants	195,000
Transitional Housing Assistance	26,000
National Institute of Justice Research and Evaluation on Violence Against Women	3,000
Consolidated Youth Oriented Program	10,000
Grants to Encourage Arrest Policies	50,000
Homicide Reduction Initiative	(4,000)
Sexual Assault Victims Services	30,000

VIOLENCE AGAINST WOMEN PREVENTION AND PROSECUTION PROGRAMS—Continued

[In thousands of dollars]

Program	Committee recommendation
Rural Domestic Violence Assistance Grants	33,000
Violence on College Campuses	12,000
Civil Legal Assistance	42,500
Elder Abuse Grant Program	4,500
Family Civil Justice	16,000
Education and Training for Disabled Female Victims	6,000
National Center on Workplace Responses	500
Research—Violence Against Indian Women	1,000
Sex Assault in Indian Country Clearinghouse	500
Total	430,000

STOP Grants.—Within the discretionary budget authority appropriated, \$195,000,000 is for formula grants to the States. This is \$2,000,000 above both the budget request and the fiscal year 2014 enacted level. The fiscal year 2015 recommendation will allow jurisdictions to implement mandatory pro-arrest and prosecution policies to prevent, identify, and respond to violent crimes against women, support coordination of State victim services, assist Native victims in Indian country, and provide secure settings and specialized procedures for visitation and exchange of children in families experiencing domestic violence. The recommendation supports increasing access to comprehensive legal services for victims, providing short-term housing assistance and support services for domestic violence victims, and education and training to end violence against and abuse of women with disabilities.

Sexual Assault Services Act [SASA].—The Committee's recommendation provides \$30,000,000, which is \$3,000,000 above both the fiscal year 2014 enacted level and the budget request, to fund directly the needs of sexual assault victims.

As part of the VAWA 2005 and reauthorized by VAWA 2013, the Sexual Assault Services Program addresses considerable gaps in services to sexual assault victims. The Committee supports a dedicated stream of funding to provide a broad range of services to male, female, and child sexual assault victims and their families through the well-established and well-regarded system of community-based rape crisis centers throughout the United States, and maintains its strong commitment to ensuring that these rape crisis centers have access to technical assistance, training, and support.

OFFICE OF JUSTICE PROGRAMS

The Office of Justice Programs [OJP] is responsible for providing leadership, coordination, and assistance to its Federal, State, local, and tribal partners to enhance the effectiveness and efficiency of the United States justice system in preventing, controlling, and responding to crime. As most of the responsibility for crime control and prevention falls to law enforcement officers in States, cities, and other localities, the Federal Government is effective in these areas only to the extent that it can enter into successful partnerships with these jurisdictions. Therefore, the OJP is tasked with administering grants; collecting statistical data and conducting

analyses; identifying emerging criminal justice issues; developing and testing promising and innovative approaches to address these issues; evaluating program results; and disseminating these findings and other information to State, local, and tribal governments.

The Committee directs the OJP to submit a quarterly report on grant programs that do not receive a sufficient number of applicants.

Gang Prevention Grants and Crime Rates.—The Committee remains concerned about gang activity and violent crime throughout the country, noting that Federal partnership with law enforcement is essential—not only in our largest cities, but also in suburban and rural jurisdictions, where gang activity and violent crime rates can exceed national averages. To strengthen Federal partnership across all jurisdictions, the Committee directs the OJP to review the criteria by which OJP awards discretionary grants relating to gang violence and prevention under the State and Local Law Enforcement Assistance and Juvenile Justice Programs on a per capita basis, of applicant cities and jurisdictions where gang activity and violent crime rates exceed national averages. The Committee encourages the OJP to report on the relative success rate of awards granted to applicant cities and jurisdictions with disproportionately high gang and violent crime activity, including the murder rates of those cities and jurisdictions. The report should also consider the relative success rate of applicant cities and jurisdictions that have an established gang commission or community planning body, have completed the Office of Juvenile Justice Delinquency Prevention [OJJDP] gang assessment, and have consulted with or received technical assistance from the OJJDP National Gang Center regarding gang initiatives in the community.

Safe Return.—Each year more than 600,000 “wandering” incidences occur that involve autistic children, placing these children at risk of death or serious injury, and resulting in enormous strains on families and responding law enforcement agencies. The Committee encourages OJP to evaluate autism spectrum disorders [ASD] wandering safe return strategies, which may serve as the basis for launching a coordinated nationwide response to meet the needs of the 1-in-88 Americans with ASD, their families, and law enforcement. To the extent appropriate, OJP should explore ways for law enforcement to quickly and efficiently share information that will aid in identifying children with ASD who have wandered. The Committee is pleased that the Department expanded eligibility under the Byrne-JAG program to include wandering-prevention technology for those with ASD in February 2014 and encourages OJP to make potential pools of grant awardees aware of this expanded offering for fiscal year 2015.

RESEARCH, EVALUATION AND STATISTICS

Appropriations, 2014	\$120,000,000
Budget estimate, 2015	136,900,000
Committee recommendation	115,000,000

The Committee’s recommendation provides \$115,000,000 for the Research, Evaluation and Statistics account. The recommendation is \$5,000,000 below the fiscal year 2014 enacted level and \$21,900,000 below the budget request.

Funding in this account provides assistance in the areas of research, evaluation, statistics, hate crimes, DNA and forensics, criminal background checks, and gun safety technology, among others.

The Committee's recommendations are displayed in the following table:

RESEARCH, EVALUATION AND STATISTICS
[In thousands of dollars]

Program	Committee recommendation
Bureau of Justice Statistics	42,000
National Institute of Justice	38,000
Regional Info Sharing Activities	30,000
Forensic Initiative	5,000
Transfer to NIST	(4,000)
Total	115,000

Spending Plans.—The Department shall submit to the Committee as part of its spending plan for State and Local Law Enforcement Activities a plan for the use of all funding administered by the National Institute of Justice and the Bureau of Justice Statistics [BJS], respectively, for approval by the Committee prior to the obligation of any such funds.

National Institute of Justice [NIJ].—The Committee's recommendation provides \$38,000,000 for the NIJ, in addition to \$1,000,000 transferred from the OVW for research and evaluation on violence against women and Indian women. The NIJ's mission is to advance scientific research, development, and evaluation to advance the administration of justice and public safety.

Forensic Initiative.—The Committee provides \$5,000,000 for a forensics initiative, of which \$4,000,000 is provided by transfer to the National Institute of Standards and Technology [NIST] to support Scientific Working Groups. The Department of Justice shall coordinate its forensics initiative activities with NIST.

Building Digital Forensics Capabilities.—The Committee continues to stress the importance of training and equipping State and local law enforcement with the tools and expertise needed to investigate and prosecute electronic crime. As smartphones and the Internet have become fundamental parts of daily life, these technologies have also become a fundamental part of criminal acts and enterprises, including drug deals and murder hits ordered by text, to ATM heists via laptops, to child pornography Web sites.

Given that more than 95 percent of all criminal cases are investigated and prosecuted at the State and local levels, the Committee remains concerned that the ability of State and local law enforcement to investigate and effectively prosecute cases involving digital evidence- and computer-based crimes will diminish without the Department's support of training and research. The Committee encourages the Department to prioritize State and local assistance for computer forensics tool development and digital evidence training for investigations surrounding drug, violent, and financial crimes, and crimes against children.

Regional Information Sharing Activities.—The Committee recommends \$30,000,000, an increase of \$5,000,000 above the budget request, to support activities that enable the sharing of nationwide criminal intelligence and other resources with State, local, and other law enforcement agencies and organizations. Such activities should address critical and chronic criminal threats, including gangs, terrorism, narcotics, weapons and officer safety or “event deconfliction,” and should reflect regional as well as national threat priorities. In addition, funds shall be available to support local-to-local law enforcement data and information sharing efforts focused on solving routine crimes, especially in rural areas, by sharing law enforcement information not categorized as criminal intelligence. All activities shall be consistent with national information-sharing standards and requirements as determined by the Bureau of Justice Assistance.

Gun Safety Technology.—From within funds made available under the set-aside for criminal justice research, evaluation, and statistics, the Committee supports the administration’s request for an additional \$2,000,000 for a gun safety technology initiative to encourage the development of innovative and cost-effective gun safety technology.

The fiscal year 2014 enacted bill also provided funding for this purpose. The Committee directs the Department to provide a report detailing the use of these resources within 45 days of enactment of this act.

Missing Persons and Unidentified Remains Databases.—Tens of thousands of Americans go missing every year, while at the same time, there are an estimated 40,000 sets of unidentified human remains being held or disposed of across the country. Due to gaps in the Nation’s missing persons systems, missing persons and unidentified remains are rarely matched. While Federal law mandates that law enforcement report missing children, there are no such requirements for adults, or for unidentified decedents. Even when missing adults and remains are reported, the wide range of unconnected Federal, state, local, and non-profit databases to help match the missing with unidentified remains makes finding a match an often insurmountable challenge. The Committee directs the Government Accountability Office [GAO] to conduct a review on how to better integrate national missing persons databases, particularly the NIJ’s National Missing and Unidentified Persons System [NamUs] and the FBI’s National Crime Information Center [NCIC], including technical challenges that may exist. The GAO should also examine ways to facilitate reporting of missing persons by States, local law enforcement authorities, medical examiners, and coroners to NamUs and NCIC.

STATE AND LOCAL LAW ENFORCEMENT ASSISTANCE

Appropriations, 2014	\$1,171,500,000
Budget estimate, 2015	1,032,900,000
Committee recommendation	1,149,500,000

The Committee’s recommendation provides \$1,149,500,000 for State and local law enforcement assistance. The recommendation is \$22,000,000 below the fiscal year 2014 enacted level, and \$116,600,000 above the budget request.

The Committee's recommendations are displayed in the following table:

STATE AND LOCAL LAW ENFORCEMENT ASSISTANCE

[In thousands of dollars]

Program	Committee recommendation
Byrne Memorial Justice Assistance Grants	376,000
SLATT Intelligence State and Local Training	(1,000)
State & Local Help Desk and Diagnostic Center	(2,000)
VALOR Initiative	(15,000)
Smart Policing	(10,000)
Smart Prosecution	(5,000)
Firearm Safety & Gun Locks	(3,000)
State Criminal Alien Assistance Program	150,000
Byrne Competitive Grants	10,000
Victims of Trafficking Grants	15,000
Drug Courts	41,000
Mentally Ill Offender Courts	9,000
Residential Substance Abuse Treatment	12,000
Capital Litigation/Wrongful Prosecution Review	2,000
Economic, High-Tech, and Cybercrime Prevention	15,000
IP Enforcement	(2,500)
John R. Justice Grant Program	2,000
Adam Walsh Act Implementation	20,000
Children Exposed to Violence Initiative	8,000
Byrne Criminal Justice Innovation Program	17,000
Bulletproof Vests Partnership	23,000
Transfer to NIST/OLES	(1,500)
National Sex Offender Public Web site	1,000
Violent Gang and Gun Crime Reduction	8,500
National Instant Criminal Background Check System [NICS] Initiative	58,500
NICS Improvements	(12,000)
Paul Coverdell Forensic Science	12,000
DNA Initiative	125,000
Debbie Smith DNA Backlog Grants	(117,000)
Kirk Bloodsworth Post-Conviction DNA Testing Grants	(4,000)
Sex Assault Exam Kits	(4,000)
Community-Based Sexual Assault Response Reform	41,000
Court-Appointed Special Advocates [CASA]	6,000
Second Chance Act	70,000
Smart Probation	(7,000)
Children of Incarcerated Parents Demo Grants	(5,000)
Pay for Success	(15,000)
Veterans Treatment Courts	5,000
Prescription Drug Monitoring	7,000
Campus Public Safety	2,000
Justice Reinvestment Initiative	22,000
Project HOPE	4,000
Vision 21	12,500
Comprehensive School Safety Program	75,000
Total	1,149,500

Edward Byrne Memorial Justice Assistance Grant Program.—The Committee recommends \$376,000,000 for Edward Byrne Memorial Justice Assistance Grants (Byrne-JAG). Funding is not available for luxury items, real estate, or construction projects. The Department should expect State, local, and tribal governments to target funding to programs and activities that conform with evidence-based strategic plans developed through broad stakeholder involvement. The Committee directs the Department to make technical as-

sistance available to State, local, and tribal governments for the development or updating of such plans.

VALOR Initiative.—The Committee’s recommendation fully funds the budget request of \$15,000,000 within Byrne-JAG for the Preventing Violence Against Law Enforcement Officer Resilience and Survivability Initiative [VALOR]. This is a national training initiative that promotes a culture of safety within Federal, State, local, and tribal law enforcement agencies by training officers to respond to and react better in deadly situations, such as ambush attacks, while on duty. The Committee expects Federal law enforcement to continue and expand on efforts to provide local police with information as to whether or not a suspect has a violent history, to the extent that transfer of such information is allowable and available via Federal law enforcement databases, in an effort to prevent officer deaths.

National Instant Criminal Background Check System [NICS] Initiative Grants.—The Committee recommends funding the program at \$58,500,000, equal to the fiscal year 2014 enacted level, to continue to improve the submission of State criminal and mental health records to the National Instant Criminal Background Check System [NICS]. This investment will strengthen the national background check system by assisting States in finding ways to make more records available in the NICS system, especially mental health records, thereby addressing gaps in Federal and State records currently available in NICS. Those gaps significantly hinder the ability of NICS to quickly confirm whether a prospective purchaser is prohibited from acquiring a firearm.

National Technical Assistance and Training.—The Committee encourages the Department to continue its efforts to assist States in the development and use of criminal justice information systems that accelerate the automation of identification processes for fingerprints and other criminal justice data, and which improve the compatibility of State and local law enforcement systems with the FBI’s Integrated Automated Fingerprint Identification System [IAFIS].

Human Trafficking.—The United States is a destination country for thousands of men, women, and children trafficked largely from Mexico and East Asia, as well as countries in South Asia, Central America, Africa, and Europe, for the purposes of sexual and labor exploitation. Trafficking victims are subjected to physical, mental, and sexual abuse. Victims need various types of assistance to begin healing and recovery, including counseling, housing, medical care, support groups, and legal assistance.

The Committee’s recommendation provides \$15,000,000 for task force activities and services for U.S. citizens, permanent residents, and foreign nationals who are victims of trafficking, including no less than \$7,000,000 for victim services for foreign national victims of trafficking. The OJP shall consult with stakeholder groups in determining the overall allocation of Victims of Trafficking funding and shall provide to the Committee a plan for the use of these funds as part of the Department’s fiscal year 2015 spending plan. The spending plan should be guided by the best information available on the regions of the United States with the highest incidence of trafficking.

An effective national criminal justice response to human trafficking requires quick and accurate identification of victims along with immediate protection and support. The Committee supports further efforts to pursue evidence-based approaches that ensure trafficking victims' services are comprehensive, culturally competent, and use a trauma-informed care approach that maximizes safety, trust, and choice for survivors.

The Committee notes that funding provided in this program may be used for victims of sex trafficking who are minors, which is authorized under VAWA 2013. Child trafficking victims require specialized care, and grant funding can be used for items like residential care, emergency social services, mental health counseling, and legal services.

Byrne Criminal Justice Innovation Program.—Persistent crime and public safety problems, especially gang activity and youth violence, cannot be addressed solely by law enforcement. These issues require a comprehensive interagency approach that enables law enforcement, educators, social services agencies, and community organizations to address both public safety problems and their underlying causes.

The Committee provides \$17,000,000 to support the Byrne Criminal Justice Innovation Program, which provides demonstration grants in communities to support innovative, evidence-based approaches to fighting crime and improving public safety, as well as addressing its underlying problems. The OJP will coordinate with the Department of Housing and Urban Development [HUD] and other agencies to promote interagency collaboration and enable a wide range of new and existing partners to further stabilize neighborhoods that face the most severe violence and crime. This program builds upon the approach of supporting communities with strategies that combine law enforcement, community policing, prevention, intervention, treatment, and neighborhood restoration.

Byrne Competitive Grants.—The Committee's recommendation includes \$10,000,000 for competitive, peer-reviewed grants to programs of national significance to prevent crime, improve the administration of justice or assist victims of crime. The Committee expects that the OJP will take all steps necessary to ensure fairness and objectivity in the award of these and future competitive grants.

Violent Gang and Gun Crime Reduction.—Violent crime and homicide continue to exact a heavy toll on victims, families, and neighborhoods. The Committee's recommendation provides \$8,500,000, equal to the fiscal year 2014 enacted level and \$3,500,000 above the request, for competitive grants aimed at reducing homicides and gun-related violent crime in communities overwhelmed by gangs of national significance, and illegally purchased and trafficked guns. Popularly known as the Project Safe Neighborhoods model, this funding shall be used to hire new Federal and State prosecutors, support investigators, provide investigative and litigation training, deter juvenile gun crime, and develop and promote community outreach efforts, as well as to support other gun and gang violence reduction strategies.

Drug, Mental Health, and Problem Solving Courts.—For the seventh straight year, the Committee's recommendation rejects the ad-

ministration's proposal for a new Drug, Mental Health, and Problem Solving Courts grant program.

The Committee notes the distinct success of the Drug Courts and Mentally-Ill Offender Courts grant programs. While the Committee recognizes the Department's attempt to consolidate grant programs, the Committee rejects this proposal given that professionals in the field have made a clear distinction between the two programs, and congressional support for maintaining separate programs remains strong.

Veterans Treatment Courts.—The recommendation provides \$5,000,000 for veterans treatment courts, an increase of \$1,000,000 over the fiscal year 2014 enacted level. The Committee expects the Department to work in conjunction with the Department of Veterans Affairs, as appropriate, to provide grant support for collaborative, rehabilitative approaches for continuing judicial supervision of offenders who are veterans.

Bulletproof Vests.—Within the \$23,000,000 provided for bulletproof vests, \$1,500,000 is to be transferred directly to the NIST Office of Law Enforcement Standards [OLEs] to continue supporting ballistic- and stab-resistant material compliance testing programs. The Committee expects the BJA to continue strengthening internal controls to manage the Bulletproof Vest Partnership program. Improving grantee accountability in the timely use of Federal funds to purchase body armor will help every police officer who needs a vest to get one, thus saving officers' lives.

Second Chance Act/Offender Reentry Programs.—The recommendation provides \$70,000,000 for Second Chance Act [SCA] grants. The Committee expects that SCA funding will support grants that foster the implementation of strategies that have been proven to reduce recidivism and ensure safe and successful reentry back to their communities of adults released from prisons and jails. The SCA supports activities such as employment assistance, substance abuse treatment, housing, mentoring, family programming, and victim support. SCA grants will also support demonstration projects designed to test the impact of new strategies and frameworks. Within the amount provided, the Committee's recommendation makes targeted investments in initiatives requested by the administration to test and replicate new models of improving criminal justice efficiencies and recidivism outcomes.

The Department is directed to submit as part of its spending plan for State and Local Law Enforcement Assistance a plan for the use of all funds appropriated for Second Chance Act programs, including new initiatives requested by the Department that are funded in this recommendation. It is expected that such a plan will designate funds for proven, evidence-based programs that will further the goal of maximizing public safety, as well as for promising new approaches and projects.

Criminal Justice Reform and Recidivism Reduction.—The Committee provides \$22,000,000 for a justice reinvestment initiative, which expands OJP's investment in data-driven approaches to improve public safety, drive down corrections and related criminal justice spending, and reinvest savings in effective strategies that can reduce crime and recidivism and strengthen neighborhoods. The Committee supports the OJP's steps to make justice reinvest-

ment a national model for much-needed criminal justice reform. Funds may be used to provide technical assistance and competitive financial support to States, counties, cities, and tribes that are either currently engaged in justice reinvestment activities or are preparing to undertake such work.

Colson Task Force.—The Committee looks forward to reviewing the report from the Charles Colson Task Force on Federal Corrections, which was established and fully funded in the Consolidated Appropriations Act of 2014 (Public Law 113–76). The bi-partisan task force is expected to address challenges in the Federal corrections system including overcrowding and violence in BOP facilities and prisoner reentry programs by developing practical, data-driven policy options to increase public safety, improve offender accountability, reduce recidivism, and control growth of spending on corrections.

DNA Backlog/Crime Lab Improvements.—The Committee continues its strong support for DNA backlog and crime lab improvements by recommending \$125,000,000 to strengthen and improve Federal and State DNA collection and analysis systems that can be used to accelerate the prosecution of the guilty while simultaneously protecting the innocent from wrongful prosecution. Within the funds provided, \$117,000,000 is for Debbie Smith DNA Backlog Reduction grants, \$4,000,000 is for Kirk Bloodsworth Post-Conviction DNA Testing grants, and \$4,000,000 is for Sexual Assault Nurse Examiners grants. From within the funding provided for Debbie Smith DNA Backlog Reduction grants, the Committee expects the Department to prioritize reducing rape kit backlogs, given that it is the primary reason why the Committee continues to provide robust funding for these grants.

The Committee expects that the OJP will make funding for DNA analysis and capacity enhancement a priority to meet the purposes of the Debbie Smith DNA Backlog Grant Program. The Committee directs the Department to submit to the Committee as part of its spending plan for State and Local Law Enforcement Activities a plan with respect to funds appropriated for DNA-related and forensic programs, including the alignment of appropriated funds with the authorized purposes of the Debbie Smith DNA Backlog Grant Program.

Community-Based Sexual Assault Response Reform.—Untested sexual assault kits represent lost opportunities for survivors to heal as well as sexual assault for perpetrators to be brought to justice. The Committee has a strong track record of supporting DNA and forensics grants, including the Debbie Smith DNA Backlog Grant Program, that tests kits backlogged in crime labs, and this bill continues that support. However, it is estimated that as many as 400,000 sexual assault kits are languishing in police evidence lockers nationwide. Once a backlog is acknowledged and kits begin to be tested, communities are still left to grapple with the enormous task of not just finding a way to test all of their backlogged kits, but also investigating and prosecuting these cases, reengaging victims in the process, and addressing any systemic failures that led to the creation of the backlog in the first place.

In 2011, the NIJ supported two action research studies in Houston, Texas, and Detroit, Michigan, focusing on the issue of untested

sexual assault kits, the need to improve sexual assault investigations and improving services to sexual assault victims. The projects were conducted in several phases that included planning, cataloging and accounting of untested kits, testing, and follow up, including investigation, prosecution, and victim services. In Detroit, for example, law enforcement, prosecutors, researchers and advocates worked together to understand the causes of the backlog and develop and implement a plan for testing kits and resolving cases.

The Committee provides \$41,000,000 for a competitive grant program to support multi-disciplinary community response teams tasked with developing and implementing comprehensive reform regarding sexual assault, including reducing the backlog of sexual assault kits at law enforcement agencies. The Committee notes that this effort is to compliment and not duplicate other DNA-related efforts focused on the testing of sexual assault kits at crime labs. The Committee directs that this new grant program be predicated on the lessons learned from the NIJ's initial research projects in Detroit and Houston and that the OJP establish a record of best practices for community-based sexual assault response reform. These best practices shall be disseminated nationwide along with the results of grantees' projects so other jurisdictions can capitalize on this work to implement their own processes for change.

Grant applications shall specifically include planning, implementation, and long-term evaluation. The planning phase shall include an inventory of backlogged rape kits and development of a comprehensive approach to addressing the resolution of all cases in the backlog. In the implementation phase, grants may be used to test kits, develop "cold case" units to pursue new investigative leads, and support victims throughout the process. Grants shall also be used to develop evidence-tracking systems, train law enforcement on sexual assault investigations, and conduct research on outcomes in sexual assault cases. The Committee expects the NIJ to brief the Committee on the design of this program not less than 45 days after the enactment of this act, including design and evaluation criteria for the program, ideal grant size, and the number of jurisdictions where this intervention is needed. The Committee encourages the administration to work with appropriate authorizing committees to develop a comprehensive approach to ending the backlog of untested sexual assault kits regardless of where they are stored.

Economic, High-Tech, and Cybercrime Prevention.—The Committee recommends \$15,000,000 to assist State and local law enforcement agencies in the prevention, investigation, and prosecution of economic, high-tech, and Internet crimes. Given the importance of protecting our Nation's new technologies, ideas, and products, the Committee includes the request of \$2,500,000 for competitive grants that help State and local law enforcement tackle intellectual property [IP] thefts, such as counterfeiting and piracy.

The Committee also supports the continued efforts of the Department to provide State and local law enforcement with the training, technical assistance, and outreach support needed to prevent, investigate, and prosecute economic and cybercrimes. The Committee directs the OJP to provide \$2,000,000 for operational support of existing or proposed computer forensics and digital evidence at the State and local levels.

Flexible Tribal Assistance.—The Committee recommends funding tribal grant programs by permitting 5 percent of discretionary grant and reimbursement program funds made available to the OJP to be used for tribal criminal justice assistance, and continues to strongly support efforts to help tribes improve the capacity of their criminal justice systems. The OJP is expected to consult closely with tribal stakeholders in determining how tribal assistance funds will be awarded for detention facilities, courts, alcohol and substance abuse programs, civil and criminal legal assistance, and other priorities. The Committee directs the OJP to submit, as part of the Department's spending plan for fiscal year 2015, a plan for the use of these funds that has been informed by such consultation. The Committee notes that the bill includes additional grant funding for tribal law enforcement programs through COPS and OVW.

HOPE Grants.—As part of the Committee's efforts to reduce recidivism, the Committee's recommendation includes \$4,000,000 for a nationwide program based on the successful court-based HOPE model. HOPE identifies probationers with a high risk for re-offending, focusing on reducing drug use, new crimes, and incarceration. Offenders are deterred from using drugs and committing crimes by frequent and random drug tests, backed by swift and certain jail stays, along with treatment, when necessary. This funding will be used for replicating the use of "swift and certain" sanctions in probation at additional sites.

Vision 21: Transforming Victim Services.—The Committee's recommendation provides \$12,500,000 for Vision 21. The Committee directs the Department to submit as part of its spending plan for State and Local Law Enforcement Activities a plan for the use of all funding administered by the Office for Victims of Crime [OVC] for Vision 21.

Rather than follow the administration's proposal to fund this program out of the mandatory Crime Victims Fund, the Committee chooses to provide funding through discretionary resources. The Committee encourages the Department to work with Congress on legislation that will best meet the needs of crime victims in the 21st century including submitting a proposal to authorize Vision 21.

The Committee supports Vision 21's goals of funding initiatives that will address the need for more data-driven research and evaluation on victimization and services; holistic legal assistance for crime victims; resources to reach tribal and rural victims in areas where service providers do not exist; support of national emergency hotlines, online, and other programs that serve American crime victims at the national and international level; and capacity building to provide technology- and evidence-based training and technical assistance.

Comprehensive School Safety.—The Committee's recommendation includes \$75,000,000 to continue a competitive grant program as part of the comprehensive school safety initiative started in fiscal year 2014. The NIJ shall provide competitively awarded grants with strong research and evaluation components to local school districts and State educational agencies to support the implementation of school safety interventions under the existing construct. The Committee directs the NIJ to provide a report not later than 120

days after the date of enactment of this act, on its progress in developing a strategy and model for comprehensive school safety as required by Public Law 113–76.

JUVENILE JUSTICE PROGRAMS

Appropriations, 2014	\$254,500,000
Budget estimate, 2015	299,400,000
Committee recommendation	257,500,000

The Committee’s recommendation provides \$257,500,000 for juvenile justice programs. The recommendation is \$3,000,000 above the fiscal year 2014 enacted level and \$41,900,000 below the budget request.

The mission of the Office of Juvenile Justice and Delinquency Prevention [OJJDP] is to provide national leadership, coordination and resources to prevent and respond to juvenile delinquency and victimization. The OJJDP supports States, tribes and local communities in efforts to develop, implement and improve the juvenile justice system in order to protect the public safety, hold offenders accountable, and provide treatment and rehabilitative services tailored to the needs of juveniles and their families.

The Committee’s recommendations are displayed in the following table:

JUVENILE JUSTICE PROGRAMS

[In thousands of dollars]

	Committee recommendation
Part B—State Formula	61,500
Emergency Planning—Juvenile Detention Facilities	(500)
Youth Mentoring Grants	53,000
Title V—Delinquency Prevention	37,000
Tribal Youth	(5,000)
Gang and Youth Violence Education and Prevention	(3,000)
Alcohol Prevention	(1,000)
Juvenile Justice and Education Collaboration Assistance	(8,000)
Victims of Child Abuse (VOCA)	19,000
Community-Based Violence Prevention	11,000
Missing & Exploited Children Programs	68,000
Child Abuse Training for Judicial Personnel	1,500
National Forum on Youth Violence Prevention	1,000
Children of Incarcerated Parents Web Portal	500
Girls in the Justice System	2,000
Juvenile Indigent Defense	3,000
Total	257,500

Any deviation from the above plan is subject to the reprogramming requirements of section 505 of this act.

Part B: State Formula Grants.—The Committee provides \$61,500,000 for grants to implement comprehensive State juvenile justice plans, including community-based prevention and intervention programs and activities for juvenile offenders. This amount is \$6,000,000 above the fiscal year 2014 level and \$11,500,000 above the budget request.

Within the amount provided, the Committee recommends \$500,000 for competitive demonstration grants for State, local, and tribal juvenile justice detention facilities and systems to meet the

needs of children and adolescents housed in detention facilities in preparation for, during, and after a disaster, as detailed in the 2011 emergency planning guidance issued by the OJJDP.

The Committee directs the OJP to submit as part of its spending plan for State and Local Law Enforcement Activities a plan for the administration of Part B State Formula Grants. The Committee expects this plan to include details pertaining to the formulas utilized in awarding grants under this heading.

The Committee urges DOJ to encourage title II grant recipients to coordinate with their State education agencies to support continuity of education opportunities for adjudicated youth.

Youth Mentoring Grants.—To support the critical work of national, regional, and local organizations in nurturing and mentoring at-risk children and youths, the Committee recommends \$53,000,000 for competitive, peer-reviewed youth mentoring grants. Within 45 days of enactment of this act, the OJP is directed to provide a report and spend plan to the Committee detailing the criteria and methodology that will be used to award these grants as well as an explanation of any deviations from the criteria used in fiscal year 2014. The Committee expects that the OJJDP will take all steps necessary to ensure fairness and objectivity in the award of these and future competitive grants.

Victims of Child Abuse Act.—The Committee's recommendation provides \$19,000,000 for the various programs authorized under the Victims of Child Abuse Act [VOCA] (Public Law 101-647) and directs the OJJDP to ensure that not less than 90 percent of the grants awarded are for the purposes of developing and maintaining child advocacy centers, including training and accreditation. The Committee rejects the administration's request to eliminate this program. Within the funds provided, \$5,000,000 shall be for Regional Children's Advocacy Centers [RCACs] Programs. The RCACs were established to provide information, consultation, training, and technical assistance to communities, and to help establish child-focused programs that facilitate and support coordination among agencies responding to child abuse.

Missing and Exploited Children Programs.—The OJP works with law enforcement agencies to find missing children and to target and prosecute predatory child molesters and those who traffic in child pornography. The Committee recommends \$68,000,000 for Missing and Exploited Children Programs and expects the Department to allocate no less than the current funding level for task force grants, training and technical assistance, research and statistics, and administrative costs for the Internet Crimes Against Children [ICAC] program. The Committee directs the OJP to provide a spending plan for the use of these funds as part of the Department's spending plan for fiscal year 2015.

The Committee supports efforts across the country to train child protection professionals beginning with undergraduate and graduate curricula and following up with ongoing training for professionals in the field, including the development of State forensic interviewing courses. The Committee directs the OJJDP to provide training and technical assistance to improve forensic interview training for investigation and prosecution professionals, evidence-based community prevention programs for child protection profes-

sionals, and undergraduate and graduate curricula on the maltreatment and exploitation of children.

Improving Juvenile Indigent Defense.—The Committee provides \$3,000,000 for a new program within the OJJDP to develop and implement standards of practice and policy for the management of effective model juvenile indigent defender offices. The program will also provide cost-effective and innovative training for the juvenile indigent defense bar, and court-appointed counsel working on behalf of juvenile indigent defendants, particularly in rural, remote, and underserved areas.

PUBLIC SAFETY OFFICERS BENEFITS

Appropriations, 2014	\$97,300,000
Budget estimate, 2015	87,300,000
Committee recommendation	87,300,000

The Committee's recommendation provides \$87,300,000 for public safety officers benefits. The recommendation is \$10,000,000 below the fiscal year 2014 enacted level and equal to the budget estimate. This program provides a one-time death benefit payment to eligible survivors of Federal, State, and local public safety officers whose death was the direct and proximate result of a traumatic injury sustained in the line of duty or certain eligible heart attacks or strokes. Within funds provided, \$71,000,000 is for death benefits for survivors, an amount estimated by the Congressional Budget Office and considered mandatory for scorekeeping purposes.

The Committee also recommends \$16,300,000, as requested, for disability benefits for injured officers and education benefits for the families of officers who have been permanently disabled or killed in the line of duty.

COMMUNITY ORIENTED POLICING SERVICES

COMMUNITY ORIENTED POLICING SERVICES PROGRAMS

Appropriations, 2014	\$214,000,000
Budget estimate, 2015	274,000,000
Committee recommendation	224,000,000

The Committee's recommendation provides \$224,000,000 for community oriented policing services. The recommendation is \$10,000,000 above the fiscal year 2014 enacted level and \$50,000,000 below the budget request.

Local law enforcement is not only essential to ensuring the safety of the public but also plays a critical role in preventing and responding to terrorist threats. Since its creation, the Community Oriented Policing Services [COPS] office has assisted State and local law enforcement agencies by providing grants, training, and technical assistance that not only ensure public safety from traditional crime, but also better enable law enforcement officers to address the growing threat from terrorist organizations.

The Committee's recommendations are displayed in the following table:

COMMUNITY ORIENTED POLICING SERVICES

[In thousands of dollars]

Program	Committee recommendation
Methamphetamine Lab Cleanup (Transfer to DEA)	7,000
Tribal Resources Grant Program	16,500
COPS Hiring Grants	180,500
Transfer to Tribal Resources Grant Program	(16,500)
Community Policing Development/Training and Technical Assistance	(7,500)
Collaborative Reform Model	(5,000)
Anti-Meth Task Forces	10,000
Anti-Heroin Task Forces	10,000
Total	224,000

Any deviations from the above plan are subject to the reprogramming requirements of section 505.

COPS Hiring Program.—The Committee recommends \$180,500,000 for COPS Hiring grants to help State, local, or tribal law enforcement agencies to create and preserve police officer positions and to increase community policing capacity and crime prevention efforts. Like the request, the grants will have an award cap of \$125,000 and require grantees to provide a 25 percent local match.

Training and Technical Assistance.—The Committee's recommendation provides \$7,500,000 within the COPS Hiring Program to provide Training and Technical Assistance to assist agencies with developing innovative community policing strategies through applied research and evaluation initiatives.

Due to limited tax bases and growing poverty levels, public safety professionals in rural areas face unique challenges when attempting to secure crime-fighting tools and personnel. The Committee encourages the COPS Office to focus on efforts to provide training and technical assistance to increase the capacity of law enforcement agencies, executives, and managers serving rural communities. This will allow these communities to enhance the use of community policing practices and innovations in policing to increase the effectiveness of limited resources.

Methamphetamine Hot Spots.—The Committee's recommendation includes a \$7,000,000 transfer to reimburse the DEA for assistance to State and local law enforcement for proper removal and disposal of hazardous materials at clandestine methamphetamine labs, and to initiate container programs. This is the level the DEA estimates will be sufficient in fiscal year 2015 to operate the full cleanup program for States to transition to container program cleanups, and to cover the costs of smaller methamphetamine cleanups in States where the problem is intermittent.

Anti-Methamphetamine Task Forces.—The Committee's recommendation provides \$10,000,000 for the COPS Office to make competitive grants to law enforcement agencies in States with high seizures of precursor chemicals, finished methamphetamine, laboratories, and laboratory dump seizures. These funds shall be utilized for investigative purposes to locate or investigate illicit activities such as precursor diversion, laboratories, or methamphetamine traffickers.

Anti-Heroin Task Forces.—The DEA’s 2013 National Drug Threat Assessment Summary notes the troubling trend of increases in the numbers of heroin seizures and overdose deaths caused by heroin in recent years. Heroin is relatively inexpensive, readily available, and highly addictive. The Committee’s recommendation provides \$10,000,000 for the COPS Office to make competitive grants to law enforcement agencies in States with high per capita levels of primary treatment admissions for both heroin and other opioids. These funds shall be utilized for drug enforcement, including investigations and activities related to the distribution of heroin or unlawful diversion and distribution of prescription opioids. Priority shall be given to those drug task forces, managed and operated by the State, serving a majority of counties in the State.

Tribal Resources.—The Committee has provided a total of \$33,000,000 in programs targeted entirely to tribal communities through the Tribal Resources Grant Program [TRGP]. Within the TRGP, \$16,500,000 is provided through direct appropriations and \$16,500,000 is provided by transfer from the COPS Hiring program. All funds available to the TRGP can be used for equipment and hiring or training of tribal law enforcement. This will allow tribes maximum flexibility to respond to the priorities they deem most urgent.

School Resource Officers.—The placement of law enforcement officers in schools carries a risk of contributing to a “school-to-prison pipeline” process where students are arrested or cited for minor, non-violent behavioral violations and then diverted to the juvenile court system. This pipeline wastes community resources and can lead to academic failure and greater recidivism rates for these students. The Committee takes note of the guidance and resource documents for schools issued by the Departments of Justice and Education which notes that schools using school-based law enforcement officers such as school resource officers or other school security should provide memoranda of understanding or other written agreements that clearly define these officers’ roles and responsibilities on campus, focus officers’ roles on safety, and provide proper training and monitoring of the program’s activities, including data collection and evaluation. The Committee directs that the COPS Office continue to implement requirements and procedures regarding written memorandum of understanding and proper training for any COPS Hiring Grant funds used to hire school-based law enforcement officers.

GENERAL PROVISIONS—DEPARTMENT OF JUSTICE

The Committee recommends the following general provisions:

Section 201 limits the amount of funding the Attorney General can use for official reception and representation.

Section 202 prohibits the use of funds in this title to pay for an abortion except where the life of the mother would be in danger.

Section 203 prohibits the use of funds in this title to require a person to perform or facilitate an abortion.

Section 204 requires female prisoners to be escorted when off prison grounds.

Section 205 allows the Department of Justice, subject to the Committee’s reprogramming procedures, to transfer up to 5 percent

between appropriations, but limits to 10 percent the amount that can be transferred into any one appropriation.

Section 206 authorizes the Attorney General to extend a personnel management demonstration project.

Section 207 limits the placement of maximum or high security prisoners to appropriately secure facilities.

Section 208 restricts Federal prisoner access to certain amenities.

Section 209 requires review by the Deputy Attorney General and the Department's Investigative Review Board prior to the obligation or expenditure of funds for major technology projects.

Section 210 requires the Department to follow reprogramming procedures prior to any deviation from the program amounts specified in this title or the reuse of specified deobligated funds provided in previous years.

Section 211 prohibits the use of funds for OMB Circular A-76 competitions for work performed by employees of the Bureau of Prisons or of the Federal Prison Industries, Incorporated.

Section 212 prohibits U.S. Attorneys from simultaneously holding multiple jobs outside of the scope of a U.S. Attorney's professional duties.

Section 213 permits up to 3 percent of grant and reimbursement program funds made available to the Office of Justice Programs to be used for training and technical assistance, permits up to 2 percent of grant and reimbursement program funds made available to that office to be transferred to the National Institute of Justice or the Bureau of Justice Statistics for criminal justice research and statistics, and permits up to 5 percent of discretionary grant and reimbursement program funds made available to OJP to be used for tribal criminal justice assistance. The Committee continues to support strongly efforts to help tribes improve the capacity of their criminal justice systems.

Section 214 gives the Attorney General the authority to waive matching requirements for Second Chance Act adult and juvenile reentry demonstration projects; State, tribal and local reentry courts; and drug treatment programs.

Section 215 waives the requirement that the Attorney General reserve certain funds from amounts provided for offender incarceration.

Section 216 prohibits funds, other than funds for the national instant criminal background check system established under the Brady Handgun Violence Prevention Act, from being used to facilitate the transfer of an operable firearm to a known or suspected agent of a drug cartel where law enforcement personnel do not continuously monitor or control such firearm.

Section 217 requires the Department to provide documents to the Inspector General that are necessary as part of audits and investigations.

Section 218 exempts the penalties required by the Prison Rape Elimination Act on certain grant programs for 1 year.

Section 219 permits the Department of Justice to participate in Performance Partnership Pilot collaboration programs.

TITLE III

SCIENCE

OFFICE OF SCIENCE AND TECHNOLOGY POLICY

Appropriations, 2014	\$5,555,000
Budget estimate, 2015	5,555,000
Committee recommendation	5,555,000

The Committee's recommendation provides \$5,555,000. The recommendation is the same as the fiscal year 2014 enacted level and the budget request.

The Office of Science and Technology Policy [OSTP] was created by the National Science and Technology Policy, Organization, and Priorities Act of 1976 (Public Law 94–282) and coordinates science and technology policy for the White House. OSTP provides scientific and technological information, analysis, and advice for the President and the executive branch; participates in formulation, coordination, and implementation of national and international policies and programs that involve science and technology; maintains and promotes the health and vitality of the U.S. science and technology infrastructure; reviews and analyzes, with the Office of Management and Budget, the research and development budgets for all Federal agencies; and coordinates research and development efforts of the Federal Government to maximize the return on the public's investment in science and technology and to ensure Federal resources are used efficiently and appropriately.

Open Access to Federal Research.—The Committee has received a report by OSTP on the progress of all Federal agencies in developing and implementing policies to increase public access to federally funded scientific research. The Committee is pleased by the progress being made and expects all plans currently under review by OSTP to be finalized and approved by the relevant agencies by the end of calendar year 2014. The Committee expects that a majority of Federal agencies will have entered into the implementation phase for their plan in early calendar year 2015. As these plans are finalized, OSTP is directed to report to the Committee every quarter on the implementation timelines for each participating agency and component. The report should also include an estimate of the associated implementation costs for each agency and associated components, as well as the cumulative cost and a timeline for full implementation.

Medical Imaging Research Initiative.—The Committee believes there is potential in the near future to accelerate revolutionary new imaging technology for medical professionals and researchers to combat disease and support high-skilled manufacturing jobs in the United States. Such advances will require inter-agency coordination of Federal medical imaging research and development initia-

tives to accelerate the transfer of new technologies into commercial products manufactured in the United States and strengthen innovative research programs. Since many Federal agencies have existing and complementary roles on medical imaging research, there is a strong need for a Federal strategy that will coordinate and accelerate such research. The Committee directs OSTP, in cooperation with the National Institutes of Health as the lead agency, to establish, through the National Science and Technology Council's Committee on Science, a Medical Imaging Subcommittee [MIS] to coordinate Federal investments in imaging research. The MIS should be required to develop a roadmap for the full scope of imaging research and development, including: basic STEM science and technology creation, medical and translational research, evidence generation, clinical implementation, workforce and training support, and export-oriented manufacturing incentives.

Ensuring American Manufacturing Competitiveness.—The Committee supports the goal of creating a national manufacturing strategy and believes updating the National Science and Technology Council's National Strategic Plan for Advanced Manufacturing is the best manner for creating such a plan. Consequently, the Committee directs OSTP to report to Congress within 180 days of enactment of this act identifying steps the agency can take to revise its National Strategic Plan for Advanced Manufacturing to include a recurring national strategic plan for manufacturing. This report should include an identification of agencies that should be included in the development of a national manufacturing strategy, topics to be addressed, stakeholders that should be consulted, how a comparative international perspective could improve the plan, what resources may be needed to produce an expanded plan, and an identification of metrics by which the success of a strategy can be measured, along with other matters that OSTP deems important. In drafting the report the Advanced Manufacturing Partnership Steering Committee of the President's Council of Advisors on Science and Technology [PCAST] should provide recommendations to assist OSTP.

Science, Technology, Engineering, and Mathematics Education.—Within the fiscal year 2015 budget request, the administration has again proposed a government-wide consolidation of STEM education programs. The Committee is encouraged that, unlike fiscal year 2014, the administration refrained from transferring existing STEM education programs from NOAA, NASA, NIST and other Federal science agencies into new lead STEM institutions—the National Science Foundation, the Department of Education, and the Smithsonian Institution—until a more viable transition plan is formulated. The Committee is also encouraged that the administration listened to the Committee and voices outside of the administration that the list of programs slated for elimination in fiscal year 2014 was over-reaching, resulting in a perception that the administration was only focused on reducing the number of programs and the amount of STEM funding rather than improving the quality of federally supported STEM education.

For fiscal year 2015, the administration responded with a more focused and scaled-down proposal. However, while the Committee maintains its support of greater efficiencies and consolidation, sev-

eral proven and successful programs have again been eliminated with no evaluation on why they were deemed duplicative or ineffective. The Committee still has concerns that the proposal as a whole has not been thoroughly communicated with the education community or congressional authorizing committees, and lacks thorough guidance and input from Federal agencies affected by this proposal.

Therefore, the Committee continues to support effective mission-oriented STEM education programs at NASA, NOAA, and NIST within this bill, and encourages OSTP to work with the non-Federal education and outreach communities to present a proposal that supports efficiencies while garnering wider support. In seeking efficiencies for STEM programs, OSTP and its partners should be mindful of ensuring that scientists supported by the Federal Government are not absolved of responsibility to educate and train the next generation. OSTP should also take care to preserve effective training and education programs designed to directly fulfill the unique STEM-related mission needs of the agencies administering them.

NATIONAL AERONAUTICS AND SPACE ADMINISTRATION

Appropriations, 2014	\$17,646,500,000
Budget estimate, 2015	17,460,600,000
Committee recommendation	17,900,000,000

The Committee's recommendation provides \$17,900,000,000 for the National Aeronautics and Space Administration [NASA]. The recommendation is \$253,500,000 above the fiscal year 2014 enacted level and \$439,400,000 above the budget request.

NASA was established by the National Aeronautics and Space Act of 1958 (Public Law 85-568) to conduct space and aeronautical research and development and to conduct flight activities for peaceful purposes. NASA's unique mission of exploration, discovery, and innovation is intended to preserve the United States' role as both a leader in world aviation and as the pre-eminent space-faring nation. It is NASA's mission to: advance human exploration, use and development of space; advance and communicate scientific knowledge and understanding of the Earth, the solar system, and the universe; and research, develop, verify, and transfer advanced aeronautics and space technologies.

The budget request for NASA is below the fiscal year 2014 level with unbalanced priorities resulting in a reduction of \$179,200,000 to the Science directorate and a combined reduction of \$363,900,000 to the Space Launch System and Orion Multi Purpose Crew Vehicle. The Committee is concerned that the budget request does not invest adequately in current or future missions, as evident by proposed cuts and cancellations for top priority missions. The Committee's recommendation seeks to reinstate a balanced space program that adequately funds science, space exploration, and aeronautics, all made possible by reliable and safe space transportation. For Science, the Committee's recommendation strives to keep NASA's near-term launches on track to continue progress in exploring our solar system and the universe, understanding the sun, and observing and protecting our planet. The Committee expects NASA to continue making progress on the rec-

ommendations of National Academies' decadal surveys, now and in the future.

The Committee believes this bill represents a solid path forward for human spaceflight that reaches beyond low-Earth orbit with affordable crew and launch vehicles; invests in the burgeoning commercial launch industry that is bringing cargo, and eventually crew, to the International Space Station [ISS]; and revitalizes NASA science and technology programs. These elements should be viewed as complementary pieces of a balanced whole.

NASA utilizes a broad variety of launch vehicles, from suborbital to heavy configurations, in order to successfully execute its missions. Missions are planned and payloads are designed and configured based upon the launch vehicle that will be used. While there are a variety of vehicles that NASA may choose in planning a mission, the Committee believes that NASA must weigh the needs of a mission when choosing a launch vehicle, including the ability of a launch provider to meet the intended launch schedule. In some cases, missions have launch windows of just seconds and delays due to conflicting launch manifests and vehicle oversubscription could have negative effects, including additional mission costs that could be avoided. The Committee encourages NASA to choose those launch vehicles that prioritize their manifests such that NASA has a reasonable confidence level that its missions can be reliably launched when scheduled. The Committee directs NASA to provide the Committee with a quarterly launch schedule, by mission, that describes risks associated with launch delays due to problems with the launch vehicle; impacts of launch delays to other missions in the launch queue, and a budget estimate of the anticipated carrying costs for missed launch windows.

The Committee is counting on NASA to maintain focus on improving oversight and accountability throughout the agency. NASA's acquisition management remains on the Government Accountability Office's [GAO] "high risk" list, though the Committee notes that NASA is making progress in strengthening financial management. GAO's most recent assessment of NASA's large-scale projects found the agency's cost and schedule performance on major projects has improved since GAO's first assessment in 2009. The average cost overrun is down from 4 percent to 3 percent, while average launch delays are down from 4 months to under 3 months. NASA is directed to cooperate fully and to provide timely program analysis, evaluation data, and relevant information to the GAO so that GAO can report to Congress shortly after the annual budget submission of the President and semiannually thereafter on the status of large-scale NASA programs, projects, and activities based on its review of this information.

In addition, NASA is directed to include in its budget justification the reserve assumed by NASA to be necessary within the amount proposed for each directorate, theme, program, project, and activity, or, if the proposed funding level for a directorate, theme, program, project, or activity is based on confidence level budgeting, the confidence level assumed in the proposed funding level.

This bill attempts to make tough choices in order to afford a balanced space program. To do that, the Committee was informed by the priorities of the Senate as well as the administration. However,

the Committee does not always agree with the administration. The Committee grants NASA flexibility to craft spending plans that manage funds appropriately and, where necessary, address funding shortfalls that were not foreseen by the Congress or the agency prior to passage of annual appropriations. However, that latitude should not be viewed as a license to disregard the Congress' choices about where limited resources should be spent. The Federal funding priorities for NASA set forth in this bill should not be interpreted as a suggestion from the Committee; rather they should be interpreted like any other statutory requirement levied upon NASA. The Committee objects to NASA's efforts in recent fiscal years to redirect funding away from priorities clearly set by the Congress in law. Continued use of section 505 of this bill in this manner will result in limited funding flexibility in the future.

The Committee has chosen to articulate the funding levels of programs within the account structure for NASA in the form of tables. Major mission and program funding is listed within the tables and, if necessary, supplemented with explanatory report language.

SCIENCE

Appropriations, 2014	\$5,151,200,000
Budget estimate, 2015	4,972,000,000
Committee recommendation	5,200,000,000

The Committee provides \$5,200,000,000 for Science, which is \$48,800,000 above the fiscal year 2014 level and \$228,000,000 above the budget request. The Science account encompasses five lines of study: Earth Science, Planetary Science, Astrophysics, the James Webb Space Telescope, and Heliophysics. This funding seeks to answer fundamental questions concerning the ways in which Earth's climate is changing; the comparison of Earth with other planets in the solar system and around other stars; the connections between the Sun and Earth; and the origin and evolution of planetary systems, the galaxy, and the universe, including the origin and distribution of life in the universe. These objectives are achieved through robotic flight missions, ground-based scientific research and data analysis, and the development of new technologies for future missions.

SCIENCE

[In thousands of dollars]

	Committee recommendation
Earth Science:	
Earth Science Research	447,200
Earth Systematic Missions	850,600
Earth System Science Pathfinder	266,100
Earth Science Multi-Mission Operations	176,100
Earth Science Technology	55,600
Applied Sciences	36,300
Subtotal, Earth Science	1,831,900
Planetary Science:	
Planetary Science Research	215,500
Discovery	250,800
New Frontiers	281,400

SCIENCE—Continued
[In thousands of dollars]

	Committee recommendation
Mars Exploration	345,000
Outer Planets	79,000
Technology	130,000
Subtotal, Planetary Science	1,301,700
Astrophysics:	
Astrophysics Research	164,300
Cosmic Origins	260,300
Physics of the Cosmos	108,800
Exoplanet Exploration	47,500
Astrophysics Explorer	126,900
Subtotal, Astrophysics	707,800
James Webb Space Telescope	645,400
Heliophysics:	
Heliophysics Research	220,800
Living with a Star	256,400
Solar Terrestrial Probes	70,400
Heliophysics Explorer	123,600
Subtotal, Heliophysics	671,200
Education	42,000
Total, Science	5,200,000

Earth Science Missions.—The Committee maintains the ongoing development of the Tier I Earth Science missions, and provides the full budget requests for the Soil Moisture Active and Passive [SMAP] and the Ice, Cloud and land Elevation Satellite [IceSat-2] missions.

Given the importance to water resource management, ice dynamics measurement, and earthquake and tsunami research, the Committee directs NASA to provide sufficient funding to ensure that the dual L-band and S-band synthetic aperture radar mission can pass into formulation in mid-fiscal year 2015.

Pre-Aerosol, Clouds, Ecosystem.—The Committee maintains support for the Pre-Aerosol, Clouds, Ecosystem [PACE] mission, and provides an additional \$25,000,000 to begin technology risk reduction and formulation studies. By starting this mission in fiscal year 2015, the gap in the essential Ocean Color time-series will be reduced by 2 to 3 years. Restoring this data stream will better equip the ocean ecology, ocean biology, aerosol and cloud science communities to address challenges highlighted in the National Academies' Earth Science Decadal Survey.

Landsat Data Continuity.—The Committee provides \$68,100,000, \$4,000,000 above the request, for a land imaging mission successor to Landsat 8. With Landsat 7 at risk for ending its mission life as early as 2017, the Committee is deeply troubled at the potential loss of 8-day continuous terrestrial coverage now provided through the Landsat satellite series. The Committee does not concur with various administration efforts to develop alternative “out of the

box” approaches to this data collection—whether they are dependent on commercial or international partners. Given the constraints in Federal funding, and the absence of credible alternatives to a conventional land imaging mission that ensures Landsat data continuity, NASA should proceed with an acquisition in fiscal year 2015 for a mission to launch a follow on to Landsat 8 by not later than 2020 that does not exceed a cost cap of \$650,000,000, inclusive of all launch vehicle costs. Such a mission shall maximize the utilization of non-recurring engineering efforts from Landsat 8 to maintain a relatively low level of project risk. In addition, as a follow on to Landsat 8, program reserves shall be limited to not more than 10 percent for the duration of the mission’s development and all hardware contracts should be firm fixed price and reflect steep discounts over the price paid for comparable components for Landsat 8. The Committee notes that the notional land imaging fiscal year 2016 budget is now more than \$100,000,000 below what is needed for a 2020 launch. Hence, the Committee expects the 2016 budget to reflect resources necessary to meet that launch date.

Carbon Monitoring.—Of the funds provided within the Earth Science research and analysis activity, the Committee recommends no less than \$8,000,000 to continue efforts for the development of a carbon monitoring system. The majority of the funds should be directed toward acquisition, field sampling, quantification, and development of a prototype monitoring, reporting and verification system. Priority should be given to mapping States that have previously demonstrated the ability and willingness to map forests on a county level to enable the program to demonstrate how to cost effectively scale these measurements.

Jason-3 and DSCOVR.—The Committee transfers development costs and responsibility of Jason-3 and the Deep Space Climate Observatory [DSCOVR] from the National Oceanic and Atmospheric Administration [NOAA] to NASA within the funding provided for Earth Systematic Missions. The Committee provides additional funds on top of the requested amounts for these two missions to account for funding that had been requested within NOAA, which results in \$25,600,000 for Jason-3 and \$24,800,000 for DSCOVR. NASA is directed to complete the construction and launch of these important Earth science missions on schedule and on budget, which NASA is already facilitating on behalf of NOAA. NASA shall continue to partner with NOAA to transfer operational components of both programs as planned.

Planetary Science.—With the exception of increased funding for Mars Exploration and the Discovery Program, the Committee supports Planetary Science at the budget request levels, including \$137,200,000 for Technology, \$40,000,000 for Near Earth Object Observations within Planetary Science Research, and \$281,400,000 for New Frontiers, which includes \$224,800,000 for the OSIRIS-REx mission.

Discovery Program.—The Committee recommends \$250,800,000 for the Discovery Program in fiscal year 2015, an increase of \$20,000,000 above the budget request. The additional funds should be allocated for future Discovery lines in other missions and data analysis to initiate Phase B activities consistent with an upcoming

announcement of opportunity [AO]. The Committee is concerned by the Agency's delays in issuing this AO and for the proposed scheduling of Discovery launches every 36 months rather than the 24-month cycle long supported by the Committee and recommended by the Planetary Science Decadal Survey "Visions Voyages for Planetary Sciences 2013–2022". The Committee opposes any lengthening of the launch cycle for Discovery missions.

New Frontiers.—The Committee is concerned about the dearth of opportunities for medium-sized planetary missions after fiscal year 2015. The Juno and New Horizons missions will deliver new science discoveries over the next 2 years, followed by the launch of OSIRIS-REx in 2016. However, beyond these opportunities, NASA lacks a plan for the next set of medium class missions. As a result, the Committee directs NASA to initiate a New Frontiers announcement of opportunity as soon as practicable with the expectation of launching the next New Frontiers mission within 48 months of the award. The fiscal year 2016 budget submission should reflect an enhanced profile to accommodate this effort.

New Horizons.—The Committee notes that the Planetary Science Decadal Survey that recommended the New Horizons mission also recommended that NASA retarget the spacecraft toward Kuiper Belt objects following the encounter with Pluto in July 2015. The Committee encourages the planetary science community to select the secondary destination as soon as possible in order to maximize the opportunity for success during an extended mission. The Committee strongly supports surveying the accessible region of space that the New Horizons spacecraft will be able to transit in order to determine if potential targets of opportunity exist that the spacecraft can explore.

Europa.—A mission to Europa represents one of the highest large mission priorities of the Planetary Science Decadal Survey. As one of these top priorities, Europa presents NASA with an opportunity to capitalize on investments it has made in producing a heavy lift launch vehicle capability. The Committee believes that any planning for a Europa mission should seek to maximize the scientific return and utilize the capabilities of NASA's own heavy lift launch vehicle. The Committee directs NASA, in setting the baseline Europa mission highlighted in the decadal survey, to use the Space Launch System as the launch vehicle.

Mars Exploration.—The Committee provides \$345,000,000, which is \$65,700,000 above the request level, for Mars Exploration. The Committee does not support the budget request to cut funding for robotic rovers and in-space observatories expected to culminate in a Mars sample return, which was identified as the top priority for planetary science by the Planetary Science Decadal Survey.

Astrophysics.—Within funds provided to advance scientific knowledge of the origins of the universe, the Committee provides \$98,600,000 for the Hubble Space Telescope [HST], \$87,000,000 for the Stratospheric Observatory for Infrared Astronomy [SOFIA], and \$38,000,000 for the Balloon Project.

The Committee disagrees with NASA's position that a change in HST's grants administration offers any significant savings over fiscal year 2014 operations. In the history of NASA, HST has proven to be the agency's premier scientific observatory. Therefore, HST's

operations and grant awards, particularly in an era of fiscal constraint, should not be used as a budget gimmick to achieve artificial savings. In order to plan for the remaining life of HST and provide for an initial overlap with the James Webb Space Telescope through 2020, NASA is directed to undertake a study of operations and associated budget for fiscal years 2015 through 2020. This study should consider the full range of science capabilities, operational staffing, and risk reduction to assure a scientifically productive HST program.

The Committee disagrees with NASA's effort to terminate the SOFIA mission and believes that such decisions for science missions should be made only after a senior review that evaluates the relative scientific benefit and return from continued investment.

Wide-Field Infrared Survey Telescope [WFIRST] Science Mission.—Within the funds provided, the Committee provides \$56,000,000 for NASA to proceed with further risk reduction and detailed formulation on a science mission that meets the exoplanet and dark energy science objectives of WFIRST. This recommendation builds upon the Agency's work with both the Hubble Space Telescope and the James Webb Space Telescope to ensure that the synergies and discoveries from those missions enhance WFIRST's scientific objectives so that they can be achieved in a way that is both cost effective and advances the field of study in astrophysics to guarantee world class results.

Senior Review Panel for Astrophysics.—The Committee is aware that the Senior Review Panel for NASA's Astrophysics program deliberated after the fiscal year 2015 budget was submitted. The Committee notes that the panel's May 2014 report states: "The operation of the nation's space borne observatories is so severely impacted by the current funding climate in Washington that the Senior Review Panel feels that American pre-eminence in the study of the Universe from space is threatened to the point of irreparable damage if additional funds cannot be found to fill the projected funding gaps." The Committee believes that the decision to continue supporting large-scale science missions, such as these astrophysics resources, should first be considered for their scientific merit and viability and then in the context of any fiscal constraints. The Committee directs NASA to take into account the panel's recommendations when allocating funding for astrophysics programs in the agency's spending plan.

James Webb Space Telescope.—The Committee maintains strong support for the completion of the James Webb Space Telescope [JWST], and provides \$645,400,000, the same as the budget request. The bill maintains an overall development cost ceiling for JWST at \$8,000,000,000, and the Committee intends to hold NASA and its contractors to that commitment. The Committee expects to be kept fully informed on issues relating to program and risk management, achievement of cost and schedule goals, and program technical status. The Committee appreciates GAO's continuing work to monitor JWST progress, costs, and schedule.

Heliophysics.—Within funds provided to advance scientific knowledge of the Sun's impact on the Earth, the Committee recommends \$43,900,000 for the Research and Analysis program, an increase of \$10,000,000 above the budget request. The Committee

directs NASA to implement the multiagency “Diversify, Realize, Integrate, Venture, and Educate” [DRIVE] initiative as recommended in the Heliophysics Decadal Survey in order to take advantage of new opportunities yielded by the Heliophysics Systems Observatory assets and data.

The Committee provides \$48,500,000 for the Magnetospheric Multiscale [MMS] mission. The Committee expects NASA to maintain the current MMS launch profile and to keep the Committee apprised on this matter.

The Committee also provides \$145,600,000 for the Solar Probe Plus mission, the same as the budget request. The Committee strongly affirms its multiyear commitment to a 2018 launch for the solar probe plus mission as advanced technology development funds provided to NASA in prior years have retired substantial technical risk and made the funding profile for the mission manageable, points independently verified by outside reviews. The Committee fully expects that all future NASA budget submissions will adhere to a funding profile that guarantees a 2018 launch.

The Committee provides the budget request of \$123,600,000 for the Heliophysics Explorer Program. The Committee believes that this program and other programs of opportunity are crucial to a robust space science program, and that each Explorer selection round should be adequately funded to guarantee one full mission for astrophysics and a corresponding one for heliophysics. The Committee expects to monitor this activity carefully since this program is one of NASA’s longest running most successful programs, and more than 90 explorer missions have launched, including Explorer 1, which discovered the Earth’s radiation belts, and the Nobel Prize-enabling Cosmic Background Explorer mission.

Science Mission Directorate, Education.—The Committee is encouraged by the administration’s attempt to follow the Committee’s direction to preserve education funding within the Science Mission Directorate [SMD] by requesting \$15,000,000 in fiscal year 2015. However, the administration touts this request as a generous new initiative when the amount is actually \$27,000,000 below the fiscal year 2014 level of \$42,000,000. For fiscal year 2015, the Committee provides no less than \$42,000,000 for education as reflected in a more transparent single line within the SMD funding chart. This includes the \$15,000,000 education funding included in the budget submission within the Astrophysics program. However, the Committee supports the recommendation that the Astrophysics program administer this SMD-wide education funding.

The Committee notes that the \$42,000,000 is well below the authorized mandate that 1 percent of all NASA science funds are allocated to education-related efforts. Thus, this amount does not represent a cumulative total of all on-going and longstanding education activities that will be conducted throughout SMD in fiscal year 2015.

AERONAUTICS

Appropriations, 2014	\$566,000,000
Budget estimate, 2015	551,100,000
Committee recommendation	551,100,000

The Committee provides \$551,100,000 for Aeronautics, which is \$14,900,000 below the fiscal year 2014 level and equal to the budget request. The Aeronautics account funds research in key areas related to the development of advanced aircraft technologies and systems, including those related to aircraft safety, environmental compatibility and fuel efficiency, and research that supports the Next Generation Air Transportation System in partnership with the Joint Planning and Development Office.

The Committee supports the budget reorganization for the Aeronautics directorate that is proposed with the fiscal year 2015 budget. However, the Committee is disappointed in the requested reduction in rotary craft research and encourages NASA to increase funding for this activity within funds provided.

The Committee supports the budget request level of \$25,000,000 for the Advanced Composites Project within the Advanced Air Vehicles Program.

The Committee also supports the requested level of \$127,000,000 for the Integrated Aviation Systems Program. The Committee notes that the Federal Aviation Administration [FAA] recently identified six sites it will use to establish unmanned aerial systems [UAS] safety standards and develop technology required to integrate UAS safely into the National Airspace System [NAS]. The Committee urges NASA to coordinate its UAS activities with the test sites to the greatest extent possible to ensure the safest and most efficient integration of these platforms into the NAS.

SPACE TECHNOLOGY

Appropriations, 2014	\$576,000,000
Budget estimate, 2015	705,500,000
Committee recommendation	580,200,000

The Committee provides \$580,200,000 for Space Technology, which is \$4,200,000 above the fiscal year 2014 level and \$125,300,000 below the budget request. The Space Technology Program funds basic research that can advance multi-purpose technologies to enable new approaches to NASA's current missions. It includes NASA's Small Business Innovative Research [SBIR] and Small Business Technology Transfer [STTR] programs.

Within Space Technology, the Committee prioritizes funding for ongoing activities including Crosscutting Space Technology. The Committee recommends Space Technology continue to fund satellite servicing in concert with the Space Operations directorate. This funding will contribute to a competitive demonstration mission and shall be managed by the Space Operations mission directorate.

The Committee recognizes the importance of the SBIR program and its previous success in commercialization of results from federally funded research and development projects. The SBIR program encourages domestic small businesses to engage in Federal research and development, and creates jobs. The Committee therefore directs NASA to place an increased focus on awarding SBIR awards to firms with fewer than 50 employees.

Within the funds provided for Crosscutting Space Technology Development, the Committee provides \$17,000,000 for Flight Opportunities.

EXPLORATION

Appropriations, 2014	\$4,113,200,000
Budget estimate, 2015	3,976,000,000
Committee recommendation	4,367,700,000

The Committee provides \$4,367,700,000 for Exploration, which is \$254,500,000 above the fiscal year 2014 level and \$391,700,000 above the budget request. The Exploration account funds the capabilities required to develop, demonstrate, and deploy the transportation, life support, and surface systems that will enable sustained human presence throughout the solar system, including at the International Space Station [ISS], in low-Earth orbit, and beyond low-Earth orbit.

The Committee believes the Nation deserves a safe, robust human spaceflight program. This program aims to regularly and reliably provide access to the ISS and enable exploration beyond low-Earth orbit. Capabilities to reach the ISS with U.S. vehicles and to explore beyond low-Earth orbit must work hand in hand. The United States must continue building a heavy lift rocket to complement emerging domestic capabilities for a sustainable human spaceflight program that can accomplish both of these goals.

Furthermore, the United States must engage its international partners to have a truly robust and successful program. With the funds provided here, the United States will be able to contribute heavy lift launch technology to that effort, including the capability to launch humans beyond low-Earth orbit.

EXPLORATION

[In thousands of dollars]

	Committee recommendation
Exploration Research and Development	311,400
Commercial Space Flight	805,000
Orion Multipurpose Crew Vehicle	1,200,000
Space Launch System	1,700,000
Exploration Ground Systems	351,300
TOTAL	4,367,700

Human Exploration Capabilities.—The Committee is committed to the development of a U.S. capability that will enable NASA to access space beyond low-Earth orbit and do so, carrying U.S. astronauts. The development of the Space Launch System [SLS] and Orion Multi-Purpose Crew Vehicle [MPCV] will ensure the United States has the inherent capability to take humans to destinations well beyond current capabilities. SLS and Orion MPCV will also provide a capability that is not achievable by the vehicles currently under development in the commercial crew program. The goal of our human space program has always been to explore beyond our own planet. To attain NASA's goal, proper resources are essential to ensure that the development of SLS and Orion MPCV will be successful. Unfortunately, the requested funding levels for these vehicles have again fallen below what is necessary. In fact, since the inception of the program, the Committee has repeatedly in-

cluded the funding necessary to keep these programs on schedule and on budget because the budget request itself has fallen far short of requirements by providing unreliable and unsubstantiated cost estimates.

The Committee remains disappointed that the funding requested by NASA for SLS and the Orion MPCV once again bears little relation to either funding levels provided in previous years or NASA's own cost estimates and policies. NASA has yet to provide independent cost and schedule assessments for SLS and Orion MPCV, which the Committee has requested since the programs began. To preserve the current schedule and maintain proper funding for planned work and reserve levels, the Committee must rectify NASA's planned budget shortfall for SLS and Orion MPCV. The bill provides \$1,700,000,000 for SLS rocket development to keep the program on a path toward successfully meeting its launch milestones. The proposed funding for SLS, by NASA's own cost and schedule standards, is not sufficient to deliver an initial test launch by the planned December 2017 date. Moreover, insufficient funding for SLS will lead to cost escalation and unnecessary schedule delays that will have to be addressed in future budget years. The Committee has consistently supported funding for SLS and has done so again this year. The additional resources provided in this bill will ensure that NASA can make the investments necessary, including those required for risk mitigation, to maintain a 2017 launch date.

The Committee also provides \$1,200,000,000 for the Orion MPCV. The Committee believes the funds above the request are necessary to maintain the consistent progress this program has achieved, including a path to achieve Exploration Mission-1, scheduled for 2017, the first mission to integrate Orion MPCV and the SLS.

In response to longstanding issues with cost overruns and schedule delays in NASA missions, NASA issued NASA Procedural Requirements [NPR] 7120.5E which instituted the joint cost and schedule confidence level [JCL] process. The JCL is intended to assess potential risk and cost of a mission and consequently determine the likelihood of completing all remaining work at or below the budgeted levels on or before the mission's planned completion date. The standard JCL that NASA requires is 70 percent meaning the mission has a 70 percent chance of meeting budget and schedule targets. The Government Accountability Office [GAO], in its annual assessment of NASA's large-scale projects, has indicated that the JCL process helps ensure estimates are more realistic, but cautions that NASA has a cultural tendency to be optimistic. In addition, GAO's 2014 annual report states that overall, the JCL process "has likely contributed to the recent decrease in cost and schedule growth in [NASA's] portfolio compared to historical levels."

During the course of the Committee's annual budget hearings, NASA testified that SLS did not need a JCL of 70 percent, as specified in NPR 7120.5E, yet NASA has not provided any documentation to substantiate this claim. A budget proposal resulting in a low JCL ties NASA's hands by limiting its ability to mitigate technical risks, control program cost growth, and minimize schedule delays.

These risks are contrary to the stated purpose of NPR 7120.5E to “improve program and project performance.”

To ensure that NASA follows its own guidance and does not require SLS and Orion MPCV to incur a higher risk profile than other major missions, the bill directs NASA to formulate a reliable and realistic JCL. In doing so, NASA shall provide the Committee with an annual budget profile based upon NASA’s own 70 percent JCL standard which is to be submitted concurrently with the annual budget submission. Any JCL that is less than 70 percent shall be justified and documented, and NASA shall still provide the Committee with the full cost estimates that would be needed to achieve a 70 percent JCL.

Commercial Crew.—The Committee has been consistent in its direction that NASA use a FAR-based contract for the development of a domestic crew capability. The use of the FAR was considered necessary due to the risks associated with transporting humans. Additionally, the Committee felt that a FAR-based contract was the only contracting vehicle that would provide NASA the transparency necessary to ensure the appropriateness of cost and pricing data and the insight into the ongoing work. While NASA has chosen to use a FAR-based contract, it has also waived significant portions of the standard FAR-based contract, including verifiable cost data, capping repayment of funds in case of inability to perform, and rights in data. NASA has informed the Committee that these deviations were necessary to ensure competition. However, with multiple entrants that collectively have extensive Federal contracting experience, the Committee questions the true need to waive these traditional requirements.

While the Committee appreciates NASA’s commitment to a firm, fixed-price contract for a commercial crew launch vehicle, it remains concerned that NASA may use other funding vehicles to provide additional resources. Given the importance of the commercial crew program to the long-term viability of the International Space Station, the need for transparency only grows in importance. As with any such project, the technical risk and probability for cost growth is high. Without the proper foundation and necessary requirements for certified cost and pricing data, NASA will have no insight into ongoing cost growth that could jeopardize the viability of the program.

In order for NASA and Congress to have the appropriate level of transparency to ensure that the cost of the program is in line with the activities undertaken and that it does not grow exponentially, the Committee directs NASA to maintain FAR 15.403–4, related to certified cost and pricing data for prime contractors, for any contracts entered into to support the development of a commercial crew vehicle. Further, NASA shall require quarterly reports to be submitted to NASA and the Committee that detail the funds invested by NASA and by the awardees during the previous quarter and cumulatively, including legacy launch systems that may be integrated with the crew vehicle.

The Committee agrees with concern expressed by the Aerospace Safety Advisory Panel, the OIG, and others that Space Act agreements may not give NASA sufficient oversight to correct safety defects. The Committee directs NASA to only place astronauts on a

commercial crew vehicle that NASA acquired under a FAR contract that allows NASA to require the company to meet all safety requirements. The Committee encourages NASA to continue working closely with commercial companies, even under Space Act agreements, so that those companies know what will be acceptable should NASA eventually contract for crew transportation services aboard those companies' vehicles. The Committee encourages NASA to develop plans to fully utilize NASA-owned rocket testing infrastructure for commercially developed launch vehicles to ensure that these vehicles are not only tested in the same manner as Government-developed launch vehicles but at the same facilities to ensure consistency in testing across all potential vehicles.

Advanced Exploration Systems.—Within Exploration Research and Development, the Committee recommends the request level of \$182,900,000 for Advanced Exploration Systems. The Committee encourages NASA to continue to develop and test technology for supporting human spaceflight, including the use of expandable habitats, per the budget request.

SPACE OPERATIONS

Appropriations, 2014	\$3,778,000,000
Budget estimate, 2015	3,905,400,000
Committee recommendation	3,830,800,000

The Committee provides \$3,830,800,000 for Space Operations, which is \$52,800,000 above the fiscal year 2014 level and \$74,600,000 below the budget request. The Space Operations account funds the International Space Station [ISS], and the supporting functions required to conduct operations in space. The ISS is a complex of research laboratories in low-Earth orbit in which American, Russian, Canadian, European, and Japanese astronauts are conducting unique scientific and technological investigations in a microgravity environment.

International Space Station.—The Committee provides \$3,012,800,000 for the ISS Program, which includes ISS Operations, ISS Research, and ISS Crew and Cargo Services. This Committee has consistently supported the construction and operation of the ISS on the promise that it would support world-class, international science that could improve life on Earth. The Committee is encouraged by NASA's recent announcement in January 2014 to extend the life of International Space Station [ISS] to 2024, and encourages NASA to work with its international partners to ensure this new goal is financially viable to maintain a high level of safety and sufficient research production. The Committee considers astronaut safety its highest priority and maintains support for the Aerospace Safety Advisory Panel's recommendation that NASA reconsider its criteria for future human spaceflight to the ISS. NASA must ensure that safety standards for transportation to, and ongoing operations at, the ISS improve should NASA begin to purchase crew transportation services from commercial providers.

Commercial Cargo Resupply.—The Committee recommends the requested amount of \$1,530,700,000 for ISS resupply transportation. NASA, in partnership with private industry, has successfully developed and enabled a domestic cargo resupply capability for the ISS. This capability would not have been possible without

significant Federal investment. The additional investments NASA is currently making to advance crew vehicle development will ultimately enable greater competition for ISS cargo resupply missions through the creation of more viable entrants than were originally available. With a more mature competitive environment, the Committee believes that exceptions to procurement practices to provide reliable cargo transport may be unnecessary. As NASA begins soliciting participants for the second round of cargo resupply missions, certified cost and pricing data should be required and made available to NASA.

Satellite Servicing.—The Committee recommends \$130,000,000 for satellite servicing within Space Operations, which includes funds transferred from the Space Technology directorate. Funds should be used for: space technology developments including continued work related to demonstrations on the International Space Station; continuing a Restore Pathfinder mission to be achieved no later than 2017 and which may be used for either a low-earth orbit or geostationary orbit servicing of government assets only; and recommendations for a Restore mission beyond 2017.

The Committee notes that the replacement value of existing government assets in space, including operational weather satellites and other platforms critical to essential government activities, is in the tens of billions. Given constraints imposed by the Budget Control Act, satellite servicing offers a unique and valuable means to stagger the capital requirements for new missions by significantly extending the useful life of existing ones. The Committee continues to be deeply concerned with, and highly frustrated by, the agency's most senior leadership not embracing this transformational approach to managing the Nation's governmental space assets. The Committee expects NASA to provide for a full program of record on satellite servicing that includes technology development, the Restore Pathfinder, and recommendations for a Restore follow-on mission in the fiscal year 2016 budget. The Committee remains resolute in its commitment to this mission and believes it to be in the best interests of taxpayers and agencies with a large portfolio of space assets whose replacement value continues to increase at a time when resources are greatly constrained.

21st Century Launch Complex Program.—The Committee provides \$33,900,000 for the 21st Century Space Launch Complex, which is \$8,000,000 above the request. The Committee is concerned about the ability of commercial space launch providers to plan for the future, given the preponderance of funding that is dedicated from the 21st Century Space Launch Complex to the facilities at Kennedy Space Center. The program's authorized purposes include projects at all NASA-owned launch facilities. The Committee directs that any new Commercial Space Flight infrastructure investment proposals for the 21st Century Space Launch Complex program take into account the cargo mission needs also demonstrated at the Wallops Flight Facility [WFF]. There are now growing capacity issues at WFF that, if not resolved, could soon prevent the center from taking on small and large missions due to limitations associated with spacecraft processing and fueling facility and associated facilities that need to be addressed. Therefore, the Committee provides the increased funding to fill maintenance gaps at

the WFF launch complex, and further directs NASA to take to consideration the full potential of all NASA-owned launch complexes.

EDUCATION

Appropriations, 2014	\$116,600,000
Budget estimate, 2015	88,900,000
Committee recommendation	108,000,000

The Committee provides \$108,000,000 for Education, which is \$8,600,000 below the fiscal year 2014 level and \$19,100,000 above the budget request. The Education account funds science, technology, engineering, and mathematics [STEM] education activities to educate and inspire our next generation of explorers and innovators.

EDUCATION

[In thousands of dollars]

	Committee recommendation
NASA Space Grant	40,000
Experimental Program to Stimulate Competitive Research	18,000
Minority University Research and Education Program	30,000
STEM Education and Accountability Projects	20,000
TOTAL	108,000

Workforce Development.—The Committee continues to direct NASA to review all existing programs that offer internships, fellowships, and other related undergraduate and graduate programs and identify those programs that are directly associated with NASA's mission, and those that are of general value which may be more effectively coordinated through the National Science Foundation. NASA should also consider whether fellowships funded in Space Technology are more appropriate for the Education mission directorate.

Space Grant.—The Committee provides \$40,000,000 for Space Grant, and directs NASA to support an extension of the current Space Grant program, and to allocate the funding for consortia-led institutions in all 52 participating jurisdictions according to the percentage allocation provided to States in the current 5-year grant award.

STEM Education and Accountability Program.—The Committee provides no more than \$10,000,000 for the Competitive Program for Science, Museums, Planetariums and NASA Visitors Centers within the STEM Education and Accountability Program [SEAP]. This competitive grant program creates interactive exhibits, professional development activities, and community-based programs to engage students, teachers, and the public in science, technology, engineering, and mathematics.

CROSS AGENCY SUPPORT

Appropriations, 2014	\$2,793,000,000
Budget estimate, 2015	2,778,600,000
Committee recommendation	2,778,600,000

The Committee provides \$2,778,600,000 for Cross Agency Support, which is \$14,400,000 below the fiscal year 2014 level and the same as the budget request. The Cross Agency Support account funds agency management, including headquarters and each of the nine NASA field centers, as well as the design and execution of non-programmatic Construction of Facilities and Environmental Compliance and Restoration activities.

Independent Verification and Validation [IV&V] Program.—Within the amounts provided for cross-agency support, the Committee recommends \$39,100,000 for NASA’s IV&V Program.

Cybersecurity.—NASA spends more than \$1,500,000,000 annually on approximately 550 IT systems used to control spacecraft; collect, process, and archive scientific data; and communicate within NASA as well as with contractors, academia, and the public. NASA is an attractive target for hackers whether they are seeking recognition for attacking a well-known agency, or seeking to obtain personal information for identity theft and fraud, or intellectual property.

The Inspector General [IG] testified in May 2014 that NASA’s IT governance structure remains one of NASA’s top management challenges. On May 15, 2014, the IG reported to the Committee that NASA is expected to fully implement the IG’s recommendations from the June 2013 report “NASA’s Information Technology Governance” by the end of calendar year 2014.

The Committee’s recommendation includes the full request of \$183,600,000 for Agency Information Technology [IT] Services to support shifting NASA’s IT model to one with strong governance and strong information security practices.

Employee Performance Communications System [EPCS].—The EPCS is the performance appraisal system used by NASA as the basis for training, rewarding, reassigning, promoting, reducing in grade, retaining, and removing employees. The Committee notes that EPCS data from some NASA centers indicates significantly lower performance ratings for African-American, Hispanic and Asian-American employees compared to non-minority employees during each of the last 5 years of this system’s implementation. This 5-year trend also indicates managerial employees receiving superlative ratings at a significantly higher rate than those in non-supervisory positions.

As a means of mitigating the effect of any sources of bias resulting in these disparities and adverse outcomes, the Committee encourages NASA to work with agency management, employee representatives, employee resource groups, and other stakeholders at NASA centers to reform and implement more fair and equitable performance-related criteria.

CONSTRUCTION AND ENVIRONMENTAL COMPLIANCE AND RESTORATION

Appropriations, 2014	\$515,000,000
Budget estimate, 2015	446,100,000
Committee recommendation	446,100,000

The Committee provides \$446,100,000 for Construction and Environmental Compliance and Restoration, which is \$68,900,000 below the fiscal year 2014 level and the same as the budget request. The Construction and Environmental Compliance and Remediation account provides for design and execution of programmatic, discrete

and minor revitalization, construction of facilities projects, facility demolition projects, and environmental compliance and remediation activities.

In order to maintain continuity within the projects for major construction, NASA shall prioritize available funding towards activities that have initiated demolition, site preparation, or construction activities during the previous fiscal year, followed by projects that were deferred in previous budget requests and have since been requested again for funding in the fiscal year 2015 request.

OFFICE OF INSPECTOR GENERAL

Appropriations, 2014	\$37,500,000
Budget estimate, 2015	37,000,000
Committee recommendation	37,500,000

The Committee's recommendation provides \$37,500,000 for the Office of Inspector General [IG], which is the same as the fiscal year 2014 level and \$500,000 above the budget request. The Office is responsible for promoting efficiency and preventing and detecting crime, fraud, waste, and mismanagement.

ADMINISTRATIVE PROVISIONS

The Committee includes bill language regarding the availability of funds for certain prizes. The Committee also includes bill language regarding transfers of funds between accounts and the NASA spending plan for fiscal year 2015.

NATIONAL SCIENCE FOUNDATION

Appropriations, 2014	\$7,171,918,000
Budget estimate, 2015	7,255,000,000
Committee recommendation	7,255,000,000

The Committee's recommendation provides \$7,255,000,000 for the National Science Foundation [NSF]. The recommendation is \$83,082,000 above the fiscal year 2014 enacted level and the same as the budget request.

The National Science Foundation was established as an independent agency by the National Science Foundation Act of 1950 (Public Law 81-507) and is authorized to support research and education programs that promote the progress of science and engineering in the United States. The Foundation supports research and education in all major scientific and engineering disciplines through grants, cooperative agreements, contracts, and other forms of assistance in all parts of the United States. The Foundation also supports unique, large-scale research facilities and international facilities.

RESEARCH AND RELATED ACTIVITIES

Appropriations, 2014	\$5,808,918,000
Budget estimate, 2015	5,807,460,000
Committee recommendation	5,838,690,000

The Committee's recommendation provides \$5,838,690,000. The recommendation is \$29,772,000 above the fiscal year 2014 enacted level and \$31,230,000 above the budget request.

The Research and Related Activities [R&RA] appropriation funds scientific discovery, trains a dynamic workforce, and supports broadly accessible state-of-the-art tools and facilities. Research activities will contribute to the achievement of these outcomes through expansion of the knowledge base; integration of research and education; stimulation of knowledge transfer among academia and public and private sectors; and international activities, and will bring the perspectives of many disciplines to bear on complex problems important to the Nation. The Foundation's discipline-oriented R&RA account includes: Biological Sciences; Computer and Information Science and Engineering; Engineering; Geosciences; Mathematical and Physical Sciences; Social, Behavioral and Economic Sciences; Office of Cyberinfrastructure; Office of International Science and Engineering; Office of Polar Programs; Integrative Activities; and the U.S. Arctic Research Commission.

The Committee's fiscal year 2015 recommendation renews its support for Federal long-term basic research that has the potential to be transformative to our economy and our way of life in the context of a stagnant Federal budget.

Scientific Facilities and Instrumentation.—A critical component of the Nation's scientific enterprise is the infrastructure that supports researchers in discovery science. Investments to advance the frontiers of research and education in science and engineering are critical to the Nation's innovation enterprise. The Committee expects the NSF to fully fund world-class U.S. scientific research facilities and instruments to adequately support scientists and students engaged in research to maximize sustained investments in science.

Astronomy.—U.S.-based astronomy facilities continue to make groundbreaking discoveries and maintain excellent world-class scientific research even as operating budgets have been continually constrained. The Committee expects NSF to sustain support for the scientific facilities funded by the Astronomical Sciences division, including the National Radio Astronomy Observatory, which shall be funded at no less than the fiscal year 2014 level of \$43,140,000.

Advanced Manufacturing.—The Committee recognizes the importance of domestic biomanufacturing and the considerable investments made by U.S. competitors in this field. As part of its Advanced Manufacturing initiative, the Committee encourages NSF to include at least \$15,000,000 for new research in biomanufacturing to advance the U.S. global competitiveness in this area.

High Performance Computing.—The Committee requests a plan from NSF on how the agency plans to maintain and modernize its high performance computing infrastructure, software, and applications that support all areas of its scientific research and education. The plan should also include how the agency plans to transition research using high performance computers to operations that will require similar computing capacity. The plan should include NSF's estimate of cost for any modernization efforts as well as any costs associated with maintaining these systems.

Cybersecurity.—The Committee's recommendation includes the fiscal year 2014 level of \$159,000,000 for cybersecurity research, including support for core computer science research at academic institutions. The discovery and innovation in cybersecurity supported

by NSF will form the intellectual foundations for practical applications that make our information networks safer, more secure, and better able to predict, resist, repel, and recover from cyber attacks.

Experimental Program To Stimulate Competitive Research [EPSCoR].—Within the amount provided, the Committee provides \$159,690,000 for EPSCoR, an amount equal to the fiscal year 2015 request.

Ocean Science Infrastructure.—The Committee supports the requested increase in funding for the planning and design of the regional class research vessels. The Committee directs NSF to ensure that these vessels will soon be approved for inclusion in the Major Research Equipment and Facilities Construction account.

Icebreakers.—The Committee supports the interagency process to develop requirements for a new polar-class icebreaker, recognizing the strategic importance of Arctic operations to our Nation's future security and prosperity and the critical support that such a vessel will provide to NSF's research and logistics in Antarctica. NSF is encouraged to work with its interagency partners to support this effort, which should result in an operational requirements document no later than 180 days after the date of enactment of this act.

Southeast Tornado Research.—NSF has previously worked with NOAA on tornado related research in the Midwest with the Vortex I and Vortex II research campaigns. This research provides valuable insight into the formation of storms in this region and assists in lengthening the warning time for these violent storms. The Southeast region of the country also experiences tornado activity, but under different environmental and geologic conditions. The Southeast has not been the focus of previous Vortex research campaigns. Therefore, the Committee directs NSF to collaborate with NOAA's Weather and Air Chemistry Research Programs to focus on tornadic activity in the Southeast through a Vortex Southeast [Vortex-SE] research campaign. NSF shall report to the Committee within 180 days after the enactment of this act on these efforts.

Science, Engineering, and Education for Sustainability [SEES].—The Committee supports the full budget request for SEES and encourages NSF to expand efforts in the Hazard SEES Interdisciplinary Research in Hazards and Disasters program and the Sustainable Chemistry, Engineering, and Materials program.

MAJOR RESEARCH EQUIPMENT AND FACILITIES CONSTRUCTION

Appropriations, 2014	\$200,000,000
Budget estimate, 2015	200,760,000
Committee recommendation	200,760,000

The Committee's recommendation provides \$200,760,000. The recommendation is \$760,000 above the fiscal year 2014 enacted level and is the same as the budget request.

The major research equipment and facilities construction appropriation supports the acquisition, procurement, construction, and commissioning of unique national research platforms and facilities as well as major research equipment. Projects supported by this appropriation will push the boundaries of technology and offer significant expansion of opportunities, often in new directions, for the science and engineering community. Preliminary design and development activities, on-going operations, and maintenance costs of

the facilities are provided through the Research and Related Activities appropriation account.

The Committee's recommendation includes funding at the requested level for the following ongoing projects: the Advanced Laser Interferometer Gravitational Wave Observatory; the Daniel K. Inouye Solar Telescope; the Ocean Observatories Initiative; the National Ecological Observatory Network; and the Large Synoptic Survey Telescope.

EDUCATION AND HUMAN RESOURCES

Appropriations, 2014	\$846,500,000
Budget estimate, 2015	889,750,000
Committee recommendation	889,750,000

The Committee's recommendation provides \$889,750,000 for this account. The recommendation is \$43,250,000 above the fiscal year 2014 enacted level and the same as the budget request.

The Education and Human Resources appropriation supports a comprehensive set of programs across all levels of education in science, technology, engineering, and mathematics [STEM]. The appropriation supports activities that unite school districts with institutions of higher learning to improve precollege education. Other precollege activities include the development of the next generation of precollege STEM education leaders, instructional materials, and the STEM instructional workforce. Undergraduate activities support curriculum, laboratory, and instructional improvement; expand the STEM talent pool; attract STEM participants to teaching; augment advanced technological education at 2-year colleges; and develop dissemination tools. Graduate support is directed to research and teaching fellowships and internships and instructional workforce improvement by linking precollege systems with higher education. Programs also seek to broaden the participation of groups underrepresented in the STEM enterprise and promote informal science education. Ongoing evaluation efforts and research on learning strengthen the base for these programs.

Committee on STEM Education.—The Committee believes that NSF is well suited to handle undergraduate and graduate fellowships, internships, and specific grants similar to its current mission and, if there are general needs across Government, that NSF could similarly serve as a clearinghouse for such students. However, the Committee remains concerned that moving all or too many graduate related fellowships and scholarships to NSF will not meet the long-term, mission-specific, STEM workforce needs of the entire Government. The Committee requests that NSF continue to work with OSTP on refining a plan for ways NSF could implement a broader program for graduate and undergraduate programs across the entire Federal Government, and to identify which programs across Government could benefit from such a program.

Advanced Technological Education.—The Committee supports the full request level of \$64,000,000 for Advanced Technological Education.

Robert Noyce Scholarship Program.—The Committee provides the budget request level of \$60,890,000 for the Robert Noyce Scholarship program. This program helps fill the critical need for STEM teachers in elementary and secondary schools by funding institu-

tions of higher education to provide scholarships, stipends, and programmatic support to recruit and prepare STEM majors and professionals to become K–12 teachers. Scholarship and stipend recipients are required to complete 2 years of teaching in a high-need school district for each year of support.

CyberCorps: Scholarships for Service.—The CyberCorps: Scholarships for Service program helps the Federal Government respond to threats to our information technology infrastructure by providing scholarships to train cybersecurity professionals. In return, scholarship recipients agree to serve in a Federal Government agency position, building the Government’s capacity to understand, respond to, and prevent cyber threats. More than 900 students have completed the program, which was initiated in fiscal year 2001; 92.6 percent of students have placed with more than 120 Federal agencies. The Committee provides \$45,000,000, which is \$20,000,000 above the requested level and the same as the fiscal year 2014 level, for the Federal Cyber Service: Scholarships for Service program.

Not less than \$5,000,000 of the additional amount should be used to continue work with community colleges that have been designated a Center of Academic Excellence in Information Assurance 2-Year Education [CAE2Y] by the National Security Agency and the Department of Homeland Security.

Informal Science Education.—The Committee maintains its strong support for NSF’s informal science education program and supports the requested levels of \$55,000,000 for Advancing Informal STEM Learning and \$57,080,000 for STEM–C Partnerships. The Committee encourages the NSF to coordinate and provide necessary support for investments in and out of school time STEM education programs across Federal agencies, including support for extracurricular STEM programs. The Committee also encourages NSF to include components to STEM–C Partnerships that could improve geographic literacy.

Division on Human Resource Development.—The Committee continues its longstanding support for existing initiatives to broaden participation in STEM fields and recognizes these programs have various purposes and engage students in a different manner. The Committee notes support for these programs has stagnated in spite of increases to the overall NSF budget. The Committee recommends \$32,000,000 for the Historically Black Colleges and Universities [HBCUs] Undergraduate Program, \$8,000,000 for the Alliance for Graduate Education and the Professoriate, \$46,000,000 for the Louis Stokes Alliances for Minority Participation, \$13,500,000 for the Tribal Colleges and Universities Program, and \$24,000,000 for Centers for Research Excellence in Science and Technology. In proposal selection, the Committee encourages NSF to give priority to grant proposals that have demonstrated maturity, including previous partnerships with other Federal agencies.

Innovation Corps.—The Committee supports the NSF’s request to increase the size and scope of the Innovation Corps [I–Corps] program to build on the initial successes of this innovative public-private partnership model. However, the Committee is concerned that despite over 140 I–Corps awards to date, none have been made to HBCUs. This trend of failing to include HBCUs does little

to connect minority-serving institutions to local innovation ecosystems that create new economic opportunities in all communities. NSF's budget justification states that the agency will support approximately 15 new Innovation Corps sites. The Committee encourages that no fewer than three of these awards shall be made to qualified HBCU applicants using the standard peer review processes.

HBCUs Excellence in Research.—HBCUs often lack human capital and the research infrastructure to effectively compete for Federal research funding. Currently, institutions that are modestly successful in winning Federal research investments are concentrated at a very small number of HBCU research universities, which significantly limits the access of underrepresented populations to benefit at the graduate or undergraduate levels from meaningful research experiences. With the Committee's urging, NSF has developed some research experience programs through its Education and Human Resources directorate. However, NSF's primary research directorates have a far more anemic track record in this support—a reality that the Committee believes must change if the Nation is to take advantage of the country's growing diversity to enhance America's economic competitiveness. No later than 120 days after enactment of this act, the NSF Director shall convene a high-level panel to devise a comprehensive strategy to accelerate significant competitive opportunities for HBCUs that can continuously tap NSF's core research directorates rather than its education and human resources program base. The strategy should include measurable milestones, and the panel should be comprised primarily of leaders from the Nation's HBCUs with an emphasis on those institutions with strong graduate programs that are successful at capturing Federal research funding.

Transformative Learning Initiative.—The Committee is aware of complaints from the business community that recent college graduates are often poorly prepared for the workforce, and specifically lack necessary critical thinking, reasoning, and problem solving skills. While this problem does not have one source or solution, there is research that suggests that college professors can use teaching methods that increase the chances for students to experience a “transformative learning experience” that both improves subject knowledge and boosts these needed critical thinking skills. The Committee directs NSF to report to the Committee within 120 days from enactment of this act on a description of the agency's existing research on transformative learning and professional development approaches, particularly within respect to undergraduate programs at urban universities and HCBUs. If NSF is not currently conducting any transformative learning research or education initiatives, then, as part of the report, NSF shall provide the Committee with recommendation on establishing such an initiative including scope and costs.

Life STEM.—The Committee believes that without targeted interventions at an early age, it will become increasingly difficult to guarantee a stable pipeline of minority applicants who can become candidates for degrees in STEM-related fields. While some institutions of higher education in urban areas have experimented with programs to generate greater minority candidates for STEM

fields, they have generally not been sustained for long periods of time or subject to sufficient evaluation to determine their effectiveness. NSF, with its longstanding efforts to examine the means to address STEM-related challenges through use of innovative intervention, has the ability to pursue a rigorous program of record to experiment with various models on how best to create a pipeline for life and bioscience careers for minorities beginning with elementary school.

For this reason, the Committee directs NSF to use up to \$7,500,000 within existing programs targeting broadening participation, particularly at HBCUs, to create effective models of intervention to nurture students from elementary school through undergraduate studies with an emphasis on life sciences. NSF shall report to the Committee not later than 180 days from enactment of this act on the prospects for creating a mechanism for evaluating effective models of creating or retaining pipelines that would increase the numbers of underrepresented minorities in advanced science fields targeting minority serving institutions with an emphasis on STEM sciences that partner with elementary, middle and high schools near their institutions. The evaluation should examine formal and informal educational experiences on a year-round basis, including curriculum development, teacher support, and engagement in after school and related activities.

Hispanic-Serving Institutions [HSI] Program.—Investment in STEM education is vital for American economic competitiveness, and Hispanic Americans are underrepresented in science and engineering disciplines. The Committee provides \$5,000,000 as authorized under 42 U.S.C. 1862o–12 for NSF to implement a Hispanic-Serving Institutions [HSI] Program that is designed to increase the recruitment, retention, and graduation rates of Hispanic students pursuing associate or baccalaureate degrees in STEM fields.

AGENCY OPERATIONS AND AWARD MANAGEMENT

Appropriations, 2014	\$298,000,000
Budget estimate, 2015	338,230,000
Committee recommendation	307,000,000

The Committee's recommendation provides \$307,000,000. The recommendation is \$9,000,000 above the fiscal year 2014 enacted level and \$31,230,000 below the budget request.

The appropriation provides salaries and expenses funds for staff salaries, benefits, travel, training, rent, advisory and assistance services, communications and utilities expenses, supplies, equipment, and other operating expenses necessary for management of the National Science Foundation's research and education activities.

The Committee reiterates its direction to NSF to find savings from operating expenses and future headquarters planning.

The Committee reiterates its long-standing requirement that NSF submit reprogrammings when initiating new programs or activities of more than \$500,000 or when reorganizing components. The Committee expects to be notified of reprogramming actions which involve less than the above-mentioned amount if such actions would have the effect of changing the agency's funding re-

quirements in future years, or if programs or projects specifically cited in the Committee's reports are affected.

OFFICE OF THE NATIONAL SCIENCE BOARD

Appropriations, 2014	\$4,300,000
Budget estimate, 2015	4,370,000
Committee recommendation	4,370,000

The Committee's recommendation provides \$4,370,000. The recommendation is \$70,000 above the fiscal year 2014 enacted level and equal to the budget request.

The National Science Board is the governing body of NSF and is charged with serving as an independent adviser to the President and Congress on policy matters related to science and engineering research and education.

OFFICE OF INSPECTOR GENERAL

Appropriations, 2014	\$14,200,000
Budget estimate, 2015	14,430,000
Committee recommendation	14,430,000

The Committee's recommendation provides \$14,430,000. The recommendation is \$230,000 above the fiscal year 2014 enacted level and equal to the budget request.

The Office of Inspector General appropriation provides audit and investigation functions to identify and correct deficiencies that could create potential instances of fraud, waste, or mismanagement.

ADMINISTRATIVE PROVISION

The bill includes one administrative provision to allow limited transfers of funds among accounts.

TITLE IV RELATED AGENCIES

COMMISSION ON CIVIL RIGHTS

SALARIES AND EXPENSES

Appropriations, 2014	\$9,000,000
Budget estimate, 2015	9,400,000
Committee recommendation	9,400,000

The Committee's recommendation provides \$9,400,000 for the salaries and expenses of the Commission on Civil Rights. The recommendation is \$400,000 above the fiscal year 2014 enacted level and equal to the budget request.

EQUAL EMPLOYMENT OPPORTUNITY COMMISSION

SALARIES AND EXPENSES

Appropriations, 2014	\$364,000,000
Budget estimate, 2015	365,531,000
Committee recommendation	365,000,000

The Equal Employment Opportunity Commission [EEOC] is the leading Federal agency dedicated to eradicating employment discrimination in both the public and private sectors on the basis of race, color, national origin, sex, religion, pregnancy, age, disability, and family medical history or genetic information. The EEOC serves both U.S. public and private workplaces by helping provide a fair and inclusive workplace, which engenders employee satisfaction and commitment, and enhances employee retention, productivity, and profitability.

The Committee's recommendation provides \$365,000,000 for EEOC salaries and expenses. This recommendation is \$1,000,000 above the fiscal year 2014 enacted level, and \$531,000 below the request. This funding will support the EEOC's obligations to investigate and prosecute charges of employment discrimination. The Committee notes that the EEOC has also undertaken reforms that should enable it to reduce its pending inventory of private sector charges, enhance efficiency in the Federal sector, and help prevent employment discrimination.

Implementing Efficiencies and Cost Savings.—The EEOC should continue its efforts to leverage technology to increase productivity and streamline customer service. These efforts include the establishment of an electronic portal for private sector charges for intake inquiries, scheduling, uploading charge documents, and checking the status of a charge online, as well as an electronic portal for Federal sector cases. The Committee encourages the EEOC, during implementation of its Strategic Plan and Strategic Enforcement Plan, to also review other proposals that may increase efficiencies

and generate cost savings, which in turn may improve services provided to the public.

Transparency of EEOC Processes and Commitment to Bipartisan Efforts.—The Committee commends the EEOC for its transparency during the development of its Strategic Plan, Strategic Enforcement Plan, and Quality Control Plan, as well as for the bipartisan manner in which the Commission operates. The Committee expects the Commission will continue its efforts at transparency and bipartisanship.

State and Local Enforcement Assistance.—The Committee recommends up to \$30,000,000 to assist State and local enforcement agencies. This will ensure that EEOC provides adequate resources to its State partners.

INTERNATIONAL TRADE COMMISSION

SALARIES AND EXPENSES

Appropriations, 2014	\$83,000,000
Budget estimate, 2015	86,459,000
Committee recommendation	85,000,000

The Committee's recommendation provides \$85,000,000. The recommendation is \$2,000,000 above the fiscal year 2014 level and is \$1,459,000 below the budget request.

The International Trade Commission [ITC] is an independent, quasi-judicial agency responsible for conducting trade-related investigations and providing Congress and the President with independent technical advice related to United States international trade policy.

The Committee appreciates ITC's timely responses to Committee inquiries and continued on-time delivery of mandated reports.

LEGAL SERVICES CORPORATION

PAYMENT TO THE LEGAL SERVICES CORPORATION

Appropriations, 2014	\$365,000,000
Budget estimate, 2015	430,000,000
Committee recommendation	400,000,000

The Committee's recommendation provides \$400,000,000 for payment to the Legal Services Corporation [LSC]. The recommendation is \$35,000,000 above the fiscal year 2014 enacted level, and \$30,000,000 below the budget request.

The Committee's recommendation provides \$367,000,000 for basic field programs, to be used for competitively awarded grants and contracts; \$19,000,000 for management and administration; \$4,000,000 for client self-help and information technology; \$4,000,000 for the Office of the Inspector General [OIG]; \$1,000,000 for loan repayment assistance, and \$5,000,000 for the LSC's Pro Bono Innovation Fund.

Governance and Management.—The LSC must continue its governance and management improvement efforts in order to further restore the credibility of the organization and direct additional funds into legal aid, where they are desperately needed. The Committee expects the Inspector General of the LSC to continue conducting annual audits of LSC grantees to ensure that funds are not

being used in contravention of the restrictions by which LSC grantees are required to abide.

Pro Bono Innovation Fund.—The Committee’s recommendation provides full funding of \$5,000,000 to continue the Pro Bono Innovation Fund. This fund will support innovative projects that promote and enhance pro bono initiatives throughout the Nation, as well as leverage Federal dollars to increase free legal aid for low-income Americans by engaging private attorneys.

Consideration of Catastrophic Events.—The Committee recognizes that catastrophic natural disasters can have disparate impacts on the funding allocations provided to States. The LSC is encouraged to consider the circumstances resulting in widespread displacement of residents which might drastically alter the poverty level when making state allocations.

ADMINISTRATIVE PROVISION—LEGAL SERVICE CORPORATION

The Committee’s recommendation continues the administrative provisions contained in the fiscal year 1998 appropriations act (Public Law 105–119) regarding operation of this program to provide basic legal services to disadvantaged individuals and the restrictions on the use of LSC funds.

LSC funds cannot be used to engage in litigation and related activities with respect to a variety of matters including: (1) redistricting; (2) class action suits; (3) representation of illegal aliens; (4) political activities; (5) abortion; (6) prisoner litigation; (7) welfare reform; (8) representation of charged drug dealers during eviction proceedings; and (9) solicitation of clients. The exception to the restrictions occurs in a case where there is imminent threat of physical harm to the client or prospective client.

The bill makes no changes to the permanent restrictions established under the Legal Services Corporation Act (42 U.S.C. § 2996 et seq.). The Committee provides language that affects only the 1996 appropriations rider in the following manner: (1) keeps the restriction on use of funds from all private and public sources for abortion-related litigation, representation of prisoners, and class action suits; and (2) lifts the restriction on use of funds from all private sources—but keeps the restriction on use of all public sources—for all other activities currently restricted by the rider. This provision was included to level the playing field between legal aid attorneys and their counterparts in the private sector and open potentially crucial sources of additional revenue to legal aid providers given that State and private funding sources have declined in recent years.

MARINE MAMMAL COMMISSION

SALARIES AND EXPENSES

Appropriations, 2014	\$3,250,000
Budget estimate, 2015	3,431,000
Committee recommendation	3,431,000

The Committee recommendation provides \$3,431,000. The recommendation is \$181,000 above the fiscal year 2014 enacted level and is the same as the budget request.

The Marine Mammal Commission and its Committee of Scientific Advisors on Marine Mammals provide oversight and recommend actions on domestic and international topics to advance policies and provisions of the Marine Mammal Protection Act. The Commission provides precise, up-to-date scientific information to Congress on issues related to the safety of marine mammals.

OFFICE OF THE UNITED STATES TRADE REPRESENTATIVE

SALARIES AND EXPENSES

Appropriations, 2014	\$52,601,000
Budget estimate, 2015	56,170,000
Committee recommendation	55,000,000

The Committee's recommendation provides \$55,000,000 for the Office of the United States Trade Representative [USTR]. The recommendation is \$2,399,000 above the fiscal year 2014 level and is \$1,170,000 below the budget request.

USTR is responsible for developing and leading international negotiations for the United States on policies regarding international trade, direct investment, and commodities. Its areas of responsibility include all matters relating to the World Trade Organization; trade, commodity, and direct investment matters dealt with by certain international institutions; industrial, agricultural and services trade policy; and trade-related protection of intellectual property and the environment. The Committee's recommendation supports the Interagency Trade Enforcement Center [ITEC].

Economy Act Transfers.—USTR is directed to continue isolating Economy Act payments as individual transfers, and to submit documentation of and justification for all Economy Act transfers, regardless of amount, to and from other Federal agencies, to the House and Senate Committees on Appropriations not less than 15 days before such transfers of sums are made.

Responsiveness.—The Committee is concerned by USTR's lack of responsiveness and attention to Committee inquiries and requests. USTR leads an aggressive trade agenda for the Administration, participating in various trade negotiation and enforcement activities that have a significant impact on all sectors of our economy. The Committee serves a crucial oversight role ensuring that funds provided for USTR activities are spent effectively and responsibly in order to protect and advance our Nation's interests. To ensure that the Committee is able to provide necessary and appropriate oversight, USTR is directed to provide monthly travel reports detailing all trips outside of the United States, including the purposes and costs of such trips. In addition, beginning in the second quarter of fiscal year 2015, USTR shall provide the Committee quarterly reports outlining ongoing trade negotiations as well as enforcement activities and objectives achieved for existing trade agreements.

Interagency Trade and Enforcement Center.—The Committee supports ITEC's efforts to facilitate activities among Federal agencies involved in trade enforcement. However, the Committee is concerned that ITEC's role in the trade enforcement process are not clearly defined or well understood.

ITEC is directed to work with participating trade enforcement agencies to develop a publicly available document that describes

the types of trade violations, the available remedies for each, and the role each agency plays in the trade enforcement process, including ITEC. The Committee feels that this information will enable businesses, intellectual property holders, government officials, and other stakeholders to better understand, support, and participate in the trade enforcement process.

STATE JUSTICE INSTITUTE

SALARIES AND EXPENSES

Appropriations, 2014	\$4,900,000
Budget estimate, 2015	5,121,000
Committee recommendation	5,121,000

The Committee's recommendation provides \$5,121,000 for the State Justice Institute. The recommendation is \$221,000 above the fiscal year 2014 enacted level and equal to the budget request.

The Institute was created in 1984 to further the development and adoption of improved judicial administration in State courts.

TITLE V
GENERAL PROVISIONS
(INCLUDING RESCISSIONS)

The Committee recommends the following general provisions for the departments, agencies and commissions funded in the accompanying bill. Similar provisions were included in the fiscal year 2014 act.

Section 501 prohibits the use of appropriations for certain publicity and propaganda purposes. The Committee directs the Departments of Commerce and Justice and the National Aeronautics and Space Administration to provide, within 180 days of enactment, a detailed summary of any advertising funded by the Department or Administration, including the total amount spent for development and placement of the advertising, the authority under which the advertising was conducted, and what the advertising is intended to accomplish. This summary shall be provided to the Committees on Appropriations and may be provided to relevant authorizing committees.

Section 502 prohibits any appropriations contained in this act from remaining available for obligation beyond the current fiscal year unless expressly provided.

Section 503 limits funds for certain consulting purposes.

Section 504 provides that should any provision of the act be held to be invalid, the remainder of the act would not be affected.

Section 505 stipulates the policy and procedures by which funding available to the agencies funded under this act may be reprogrammed for other purposes.

Section 506 provides for a penalty for persons found to have falsely mislabeled products.

Section 507 requires agencies to provide quarterly reports to the Appropriations Committees regarding unobligated balances.

Section 508 requires agencies and departments funded in this act to absorb any necessary costs related to downsizing or consolidation within the amounts provided to the agency or department.

Section 509 limits funds for the sale or export of tobacco or tobacco products.

Section 510 stipulates obligation of receipts available under the Crime Victims Fund.

Section 511 prohibits the use of Department of Justice funds for programs that discriminate against, denigrate, or otherwise undermine the religious beliefs of students participating in such programs.

Section 512 limits transfers of funds between agencies.

Section 513 provides that funding for E-government initiatives are subject to reprogramming guidelines established by this act.

Section 514 requires the Inspectors General of the Departments of Commerce and Justice, the National Aeronautics and Space Administration, the National Science Foundation, and the Legal Services Corporation to conduct reviews of activities funded in this act; prohibits the use of funds for certain banquets and conferences; and requires certifications regarding conflicts of interest.

Section 515 prohibits funds for information technology acquisitions unless the acquiring department or agency has assessed the supply chain risk of the technology.

Section 516 prohibits the use of funds to support or justify the use of torture.

Section 517 limits funds pertaining to certain activities related to the export of firearms.

Section 518 limits funds to process permits to import certain products.

Section 519 prohibits funds for activities that seek to include certain language in new trade agreements.

Section 520 prohibits funds to authorize a national security letter in contravention of the statutes authorizing the FBI to issue national security letters.

Section 521 requires notification to the Committees in the event of cost overruns.

Section 522 authorizes funds appropriated for intelligence activities for the Department of Justice during fiscal year 2015 until the enactment of the Intelligence Authorization Act for Fiscal Year 2015.

Section 523 prohibits contracts or grant awards in excess of \$5,000,000 unless the prospective contractor or grantee has certified in writing that he or she has filed all Federal tax returns, has not been convicted of a criminal offense under the IRS Code of 1986, and has no unpaid Federal tax assessment.

Section 524 specifies rescissions of prior appropriations.

Section 525 prohibits the use of funds to purchase first class or premium airline travel in contravention of current regulations and improves reporting.

Section 526 prohibits the use of funds to pay for the attendance of more than 50 employees at any single conference outside the United States.

Section 527 prohibits the use of funds in a manner that is inconsistent with the principal negotiating objective of the United States with respect to trade remedy laws.

Section 528 prohibits the use of funds in this act for the transfer or release of certain individuals detained at Naval Station, Guantánamo Bay, Cuba, to or within the United States, its territories or possessions.

Section 529 prohibits the use of funds in this act to construct, acquire, or modify any facility in the United States, its territories, or possessions to house certain individuals who, as of June 24, 2009, were located at Naval Station, Guantánamo Bay, Cuba, for the purposes of detention or imprisonment in the custody or control of the Department of Defense.

Section 530 requires, when practicable, the use of “Energy Star” or “Federal Energy Management Program” designated light bulbs.

Section 531 requires agencies funded in this act to report on undisbursed balances.

Section 532 prohibits funds made available by this act from being used to deny the importation of certain shotgun models.

Section 533 prohibits the use of funds to establish or maintain a computer network that does not block pornography, except for law enforcement purposes.

Section 534 requires the Department of Commerce, the National Aeronautics and Space Administration and the National Science Foundation to submit spending plans to the House and Senate Appropriations Committees within 45 days of enactment of this act.

Section 535 prohibits funds made available by this act from being used for contract, memorandum of understanding, cooperative agreement, grant, or loan activities if the proposed recipient has been convicted of a felony criminal violation.

Section 536 prohibits funds made available by this act from being used for contract, memorandum of understanding, cooperative agreement, grant, or loan activities if the proposed recipient has unpaid Federal tax liabilities.

Section 537 specifies reporting requirements regarding vehicle fleets for all agencies and departments funded by this act.

Section 538 prohibits funds in this act to be used for portraits.

Section 539 requires agencies to report conference spending to the Inspectors General.

COMPLIANCE WITH PARAGRAPH 7, RULE XVI OF THE STANDING RULES OF THE SENATE

Rule XVI, paragraph 7 requires that every report on a general appropriation bill filed by the Committee must identify items of appropriation not made to carry out the provisions of an existing law, a treaty stipulation, or an act or resolution previously passed by the Senate during that session.

The Committee is filing an original bill, which is not covered under this rule, but reports this information in the spirit of full disclosure.

The Committee recommends funding for the following programs or activities that currently lack an authorization for fiscal year 2015, either in whole or in part, and therefore fall under this rule:

APPROPRIATIONS NOT AUTHORIZED BY LAW—FISCAL YEAR 2015

Agency/program	Last year of authorization
Department of Commerce:	
International Trade Administration:	
Export Promotion	1996
Bureau of Industry and Security:	
Export Administration	2001
Economic Development Administration:	
Salaries and Expenses	2008
Economic Development Assistance Programs:	
Public Works and Economic Development	2008
Trade Adjustment Assistance	2013
Investing in Manufacturing Communities Fund	2013
Regional Export Challenge Programs	2013
Regional Innovation Research and Information	2013
Bureau of the Census:	
Salaries and Expenses	2014
National Telecommunications and Information Administration:	
Salaries and Expenses	1993
National Institute of Standards and Technology:	
Scientific and Technical Research and Services	2013
Industrial Technology Services	2013
Construction of Research Facilities	2013
National Oceanic and Atmospheric Administration:	
Operations, Research, and Facilities:	
National Ocean Service:	
Coral Reef Conservation	2004
Hydrographic Services	2007
Coastal Zone Management	1999
Marine Protection, Research, Preservation & Sanctuaries	2005
Estuary Restoration	2012
National Marine Fisheries Service:	
Endangered Species Act Amendment	1992
Marine Mammal Protection	1999
NOAA Marine Fisheries Program	2000
Interjurisdictional Fisheries	2012
Magnuson-Stevens Fishery Conservation and Management	2013
Oceanic and Atmospheric Research:	
National Sea College Program	2008

APPROPRIATIONS NOT AUTHORIZED BY LAW—FISCAL YEAR 2015—Continued

Agency/program	Last year of authorization
Procurement, Acquisition and Construction:	
National Ocean Service:	
Marine Protection, Research, Preservation & Sanctuaries	2005
Department of Justice:	
General Administration:	
Salaries and Expenses	2009
Justice Information Sharing Technology	2009
Administrative Review & Appeals:	
Salaries and Expenses	2009
Office of Inspector General:	
Salaries and Expenses	2009
U.S. Parole Commission:	
Salaries and Expenses	2009
Legal Activities:	
General Legal Activities:	
Salaries and Expenses	2009
Antitrust Division:	
Salaries and Expenses	2009
U.S. Attorneys:	
Salaries and Expenses	2009
Foreign Claims Settlement Commission:	
Salaries and Expenses	2009
Fees and Expenses of Witnesses	2009
Community Relations Service:	
Salaries and Expenses	2009
Assets Forfeiture Fund Current Budget Authority	2009
U.S. Marshals Service	2009
Salaries and Expenses	N/A
Federal Prison Detention	N/A
Construction	N/A
National Security Division:	
Salaries and Expenses	N/A
Interagency Law Enforcement:	
Interagency Crime and Drug Enforcement	2009
Federal Bureau of Investigation	2009
Salaries and Expenses	N/A
Construction	N/A
Drug Enforcement Administration:	
Salaries and Expenses	2009
Bureau of Alcohol, Tobacco, Firearms and Explosives:	
Salaries and Expenses	2009
Federal Prison System	2009
Salaries and Expenses	N/A
Buildings and Facilities	N/A
Office on Violence Against Women Programs:	
STOP Grants	2018
Transitional Housing Assistance	2018
National Institute of Justice Research and Evaluation on Violence Against Women	N/A
Consolidated Youth Oriented Program	N/A
Grants to Encourage Arrest Policies	2018
Homicide Reduction Initiative	N/A
Sexual Assault Victims Services	2018
Rural Domestic Violence Assistance Grants	2018
Violence on College Campuses	2018
Civil Legal Assistance	2018
Elder Abuse Grant Program	2018
Family Civil Justice	2018
Education and Training for Disabled Female Victims	2018
National Center on Workplace Responses	2018
Research—Violence Against Indian Women	2015
Sex Assault in Indian Country Clearinghouse	N/A
Office of Justice Programs:	
Research, Evaluation, and Statistics:	
National Institute of Justice	1995

APPROPRIATIONS NOT AUTHORIZED BY LAW—FISCAL YEAR 2015—Continued

Agency/program	Last year of authorization
Bureau of Justice Statistics	1995
Regional Information Sharing Activities	2003
Evaluation Clearinghouse	2013
Forensic Sciences	N/A
Forensic Science Advisory Committee	N/A
State and Local Law Enforcement Assistance:	
Byrne Memorial Justice Assistance Grants	2012
SLATT Intelligence State and Local Training	N/A
State and Local Help-Desk & Diagnostic Center	2013
VALOR Initiative	2013
Smart Policing	N/A
Smart Prosecution	N/A
John R. Justice Grant Program	2014
Byrne Competitive Grants	N/A
Byrne Criminal Justice Innovation Program	N/A
Adam Walsh Act	2009
Children Exposed to Violence Initiative	2013
State Criminal Alien Assistance Program	2011
Victims of Trafficking Grants	2011
Residential Substance Abuse Treatment	2000
Mentally Ill Offender Act	2014
Drug Courts	2008
Capital Litigation (and Wrongful Prosecution review)	2009
Economic, High Tech and Cybercrime Prevention	N/A
Second Chance Act/Offender Reentry	2010
Smart Probation	2013
Children of Incarcerated Parents Demo Grants	N/A
Pay for Success (Discretionary)	N/A
Pay for Success (Permanent Supportive Housing Model)	N/A
Coverdell Forensic Science Grants	2009
Violent Gang and Gun Crime Reduction	2013
Bulletproof Vests	2012
NIST/OLES Transfer	N/A
National Sex Offender Website	N/A
Court-Appointed Special Advocates	2013
National Instant Criminal Background Check System (NICS)	2013
Criminal Records Upgrade (NCHIP)	2007
DNA Initiative:	
Debbie Smith DNA Backlog	N/A; 2014
Post-Conviction DNA Testing	2009
Sexual Assault Nurse Examiners	N/A; 2009
Veterans Treatment Courts Program	2013
National Center for Campus Public Safety	2013
Justice Reinvestment Initiative	N/A
Project HOPE Opportunity Probation with Enforcement	N/A
Vision 21	N/A
Comprehensive School Safety Initiative	N/A
Juvenile Justice Programs:	
Part B—State Formula	2007
Emergency Planning in Juvenile Justice Research Facilities	2013
Part G—Youth Mentoring	N/A; 2007
Title V—Local Delinquency Prevention Incentive Grants	2008
Tribal Youth	N/A
Gang/Youth Violence Education and Prevention	N/A
Enforcing Underage Drinking Laws	N/A; 2007
Juvenile Justice & Education Collaboration Assistance (JECA)	N/A
Juvenile Justice Realignment Incentive Grants	N/A
Victims of Child Abuse Act	2005
Community-Based Violence Prevention Initiatives	N/A
Training for Judicial Personnel	N/A
Missing and Exploited Children Programs	2018
National Forum on Youth Violence Prevention	N/A
Competitive Grants for Girls in the Justice System	N/A

APPROPRIATIONS NOT AUTHORIZED BY LAW—FISCAL YEAR 2015—Continued

Agency/program	Last year of authorization
Children of Incarcerated Parents Web Portal	N/A
COPS Programs:	
COPS Hiring Program	2009
Transfer to DEA for Methamphetamine Clean-Up	2013
Comprehensive School Safety Program	N/A
Anti-Methamphetamine Task Forces	N/A
National Aeronautics and Space Administration:	
Science	2013
Aeronautics	2013
Exploration	2013
Space Operations	2013
Education	2013
Cross-Agency Support Programs	2013
Construction and Environmental Compliance and Restoration	2013
Office of the Inspector General	2013
National Science Foundation	2013
Related Agencies:	
U.S. Equal Employment Opportunity Commission:	
Salaries and Expenses	2000
Commission on Civil Rights:	
Salaries and Expenses	1995
International Trade Commission:	
Salaries and Expenses	2004
Payment to the Legal Services Corporation:	
Salaries and Expenses	1980
Marine Mammal Commission:	
Salaries and Expenses	1999
Office of the U.S. Trade Representative:	
Salaries and Expenses	2004
State Justice Institute:	
Salaries and Expenses	2008

¹ NOAA authorizations are spread across over 60 separate statutory authorities. In many cases, the authorizations do not match exactly to specific programs.

COMPLIANCE WITH PARAGRAPH 7(c), RULE XXVI OF THE
STANDING RULES OF THE SENATE

Pursuant to paragraph 7(c) of rule XXVI, on June 5, 2014, the Committee ordered favorably reported an original bill making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes, provided, that the bill be subject to amendment and that the bill be consistent with the subcommittee allocation, by a recorded vote of 30–0, a quorum being present. The vote was as follows:

Yeas

Nays

Chairwoman Mikulski

Mr. Leahy

Mr. Harkin

Mrs. Murray

Mrs. Feinstein

Mr. Durbin

Mr. Johnson

Ms. Landrieu

Mr. Reed

Mr. Pryor

Mr. Tester

Mr. Udall

Mrs. Shaheen

Mr. Merkley

Mr. Begich

Mr. Coons

Mr. Shelby

Mr. Cochran

Mr. McConnell

Mr. Alexander

Ms. Collins

Ms. Murkowski

Mr. Graham

Mr. Kirk

Mr. Coats

Mr. Blunt

Mr. Moran

Mr. Hoeven

Mr. Johanns

Mr. Boozman

COMPLIANCE WITH PARAGRAPH 12, RULE XXVI OF THE
STANDING RULES OF THE SENATE

Paragraph 12 of the rule XXVI requires that Committee reports on a bill or joint resolution repealing or amending any statute or

part of any statute include “(a) the text of the statute or part thereof which is proposed to be repealed; and (b) a comparative print of that part of the bill or joint resolution making the amendment and of the statute or part thereof proposed to be amended, showing by stricken-through type and italics, parallel columns, or other appropriate typographical devices the omissions and insertions which would be made by the bill or joint resolution if enacted in the form recommended by the Committee.”

In compliance with this rule, the following changes in existing law proposed to be made by this bill are shown as follows: existing law to be omitted is enclosed in black brackets; new matter is printed in italic; and existing law in which no change is proposed is shown in roman.

**OMNIBUS CONSOLIDATED RESCISSIONS AND
APPROPRIATIONS ACT OF 1996, PUBLIC LAW 104-134**

**DEPARTMENTS OF COMMERCE, JUSTICE, AND STATE,
THE JUDICIARY, AND RELATED AGENCIES APPROPRIATION ACT**

TITLE V—RELATED AGENCIES

LEGAL SERVICES CORPORATION

ADMINISTRATIVE PROVISIONS—LEGAL SERVICES CORPORATION

SEC. 504. (a) None of the funds appropriated in this Act to the Legal Services Corporation may be used to provide financial assistance to any person or entity (which may be referred to in this section as a “recipient”) *that uses Federal funds (or funds from any source with regard to paragraphs (7), (14) and (15)) in a manner—*

(1) that makes available any funds, personnel, or equipment for use in advocating or opposing any plan or proposal, or represents any party or participates in any other way in litigation, that is intended to or has the effect of altering, revising, or reapportioning a legislative, judicial, or elective district at any level of government, including influencing the timing or manner of the taking of a census;

* * * * *

[(d)(1) The Legal Services Corporation shall not accept any non-Federal funds, and no recipient shall accept funds from any source other than the Corporation, unless the Corporation or the recipient, as the case may be, notifies in writing the source of the funds that the funds may not be expended for any purpose prohibited by the Legal Services Corporation Act or this title.

[(2) Paragraph (1) shall not prevent a recipient from—

[(A) receiving Indian tribal funds (including funds from private nonprofit organizations for the benefit of Indians or Indian tribes) and expending the tribal funds in accordance with the specific purposes for which the tribal funds are provided; or

[(B) using funds received from a source other than the Legal Services Corporation to provide legal assistance to a covered individual if such funds are used for the specific purposes

for which such funds were received, except that such funds may not be expended by recipients for any purpose prohibited by this Act or by the Legal Services Corporation Act.】

* * * * *

【(e)】 (d) Nothing in this section shall be construed to prohibit a recipient from using funds derived from a source other than the Legal Services Corporation to comment on public rulemaking or to respond to a written request for information or testimony from a Federal, State or local agency, legislative body or committee, or a member of such an agency, body, or committee, so long as the response is made only to the parties that make the request and the recipient does not arrange for the request to be made.

【(f)】 (e) As used in this section:

(1) The term “controlled substance” has the meaning given the term in section 102 of the Controlled Substances Act (21 U.S.C. 802).

(2) The term “covered individual” means any person who—

(A) except as provided in subparagraph (B), meets the requirements of this Act and the Legal Services Corporation Act relating to eligibility for legal assistance; and

(B) may or may not be financially unable to afford legal assistance.

(3) The term “public housing project” has the meaning as used within, and the term “public housing agency” has the meaning given the term, in section 3 of the United States Housing Act of 1937 (42 U.S.C. 1437a).

BUDGETARY IMPACT OF BILL

PREPARED IN CONSULTATION WITH THE CONGRESSIONAL BUDGET OFFICE PURSUANT TO SEC. 308(a), PUBLIC LAW 93–344, AS AMENDED

[In millions of dollars]

	Budget authority		Outlays	
	Committee allocation	Amount in bill	Committee allocation	Amount in bill
Comparison of amounts in the bill with the subcommittee allocation for 2015: Subcommittee on Commerce, Justice, Science, and Related Agencies:				
Mandatory	317	317	308	¹ 308
Discretionary	51,202	51,202	63,795	¹ 61,664
Security	5,031	5,031	NA	NA
Nonsecurity	46,171	46,171	NA	NA
Projections of outlays associated with the recommendation:				
2015				² 39,217
2016				13,495
2017				3,061
2018				1,466
2019 and future years				4,798
Financial assistance to State and local governments for 2015	NA	–7,677	NA	47

¹ Includes outlays from prior-year budget authority.

² Excludes outlays from prior-year budget authority.

NA: Not applicable.

COMPARATIVE STATEMENT OF NEW BUDGET (OBLIGATIONAL) AUTHORITY FOR FISCAL YEAR 2014 AND BUDGET ESTIMATES AND AMOUNTS RECOMMENDED IN THE BILL
FOR FISCAL YEAR 2015
[In thousands of dollars]

Item	2014 appropriation	Budget estimate	Committee recommendation	Senate Committee recommendation compared with (+ or -)	
				2014 appropriation	Budget estimate
TITLE I—DEPARTMENT OF COMMERCE					
International Trade Administration					
Operations and administration	470,000	506,731	480,000	+ 10,000	— 26,731
Offsetting fee collections	— 9,439	— 9,439	— 10,000	— 561	— 561
Direct appropriation	460,561	497,292	470,000	+ 9,439	— 27,292
Bureau of Industry and Security					
Operations and administration	69,450	74,549	69,549	+ 99	— 5,000
Defense function	32,000	36,000	36,000	+ 4,000	
Total, Bureau of Industry and Security	101,450	110,549	105,549	+ 4,099	— 5,000
Economic Development Administration					
Economic development assistance programs	209,500	210,000	195,000	— 14,500	— 15,000
Salaries and expenses	37,000	38,182	37,000		— 1,182
Total, Economic Development Administration	246,500	248,182	232,000	— 14,500	— 16,182
Minority Business Development Agency					
Minority business development	28,000	28,286	28,286	+ 286	
Economic and Statistical Analysis					
Salaries and expenses	99,000	111,033	106,000	+ 7,000	— 5,033
Bureau of the Census					
Salaries and expenses	252,000	248,000	252,200	+ 200	+ 4,200

COMPARATIVE STATEMENT OF NEW BUDGET (OBLIGATIONAL) AUTHORITY FOR FISCAL YEAR 2014 AND BUDGET ESTIMATES AND AMOUNTS RECOMMENDED IN THE BILL
FOR FISCAL YEAR 2015—Continued
[In thousands of dollars]

Item	2014 appropriation	Budget estimate	Committee recommendation	Senate Committee recommendation compared with (+ or -)	
				2014 appropriation	Budget estimate
Periodic censuses and programs	693,000	963,428	896,744	+ 203,744	- 66,684
Total, Bureau of the Census	945,000	1,211,428	1,148,944	+ 203,944	- 62,484
National Telecommunications and Information Administration					
Salaries and expenses	46,000	51,000	48,500	+ 2,500	- 2,500
United States Patent and Trademark Office					
Salaries and expenses, current year fee funding	3,024,000	3,458,000	3,458,000	+ 434,000	
Offsetting fee collections	- 3,024,000	- 3,458,000	- 3,458,000	- 434,000	
Total, United States Patent and Trademark Office					
National Institute of Standards and Technology					
Scientific and technical research and services	651,000	680,000	685,000	+ 34,000	+ 5,000
Industrial technology services	143,000	161,000	156,000	+ 13,000	- 5,000
Manufacturing extension partnerships	(128,000)	(141,000)	(141,000)	(+ 13,000)	
Advanced manufacturing technology consortia	(15,000)	(15,000)	(15,000)		
Manufacturing innovation institutes coordination		(5,000)			(- 5,000)
Construction of research facilities	56,000	59,000	59,000	+ 3,000	
Working Capital Fund (by transfer)	(2,000)	(9,000)	(9,000)	(+ 7,000)	
Total, National Institute of Standards and Technology	850,000	900,000	900,000	+ 50,000	
National Oceanic and Atmospheric Administration					
Operations, research, and facilities	3,157,392	3,237,993	3,228,964	+ 71,572	- 9,029
(by transfer)	(115,000)	(123,164)	(116,000)	(+ 1,000)	(- 7,164)

Subtotal	3,157,392	3,237,993	3,228,964	+ 71,572	— 9,029
Procurement, acquisition and construction	2,022,864	2,206,392	2,131,686	+ 108,822	— 74,706
Pacific coastal salmon recovery	65,000	50,000	65,000		+ 15,000
Fishermen's Contingency Fund	350	350	350		
Fisheries disaster assistance	75,000			— 75,000	
Fisheries finance program account	— 6,000	— 6,000	— 6,000		
Total, National Oceanic and Atmospheric Administration	5,314,606	5,488,735	5,420,000	+ 105,394	— 68,735
Departmental Management					
Salaries and expenses	55,500	57,637	56,000	+ 500	— 1,637
Renovation and modernization	4,000	11,733	10,000	+ 6,000	— 1,733
Office of Inspector General	30,000	30,596	30,596	+ 596	
Total, Departmental Management	89,500	99,966	96,596	+ 7,096	— 3,370
Total, title I, Department of Commerce	8,180,617	8,746,471	8,555,875	+ 375,258	— 190,596
(By transfer)	117,000	132,164	125,000	+ 8,000	— 7,164
TITLE II—DEPARTMENT OF JUSTICE					
General Administration					
Salaries and expenses	110,000	128,851	115,000	+ 5,000	— 13,851
Justice information sharing technology	25,842	25,842	25,842		
Total, General Administration	135,842	154,693	140,842	+ 5,000	— 13,851
Administrative review and appeals	315,000	351,072	351,072	+ 36,072	
Transfer from immigration examinations fee account	— 4,000	— 4,000	— 4,000		
Direct appropriation					
Office of Inspector General	311,000	347,072	347,072	+ 36,072	
United States Parole Commission	86,400	88,577	88,577	+ 2,177	
Salaries and expenses	12,600	13,308	13,308	+ 708	
Legal Activities					
Salaries and expenses, general legal activities	867,000	935,854	915,000	+ 48,000	— 20,854

COMPARATIVE STATEMENT OF NEW BUDGET (OBLIGATIONAL) AUTHORITY FOR FISCAL YEAR 2014 AND BUDGET ESTIMATES AND AMOUNTS RECOMMENDED IN THE BILL
FOR FISCAL YEAR 2015—Continued
[In thousands of dollars]

Item	2014 appropriation	Budget estimate	Committee recommendation	Senate Committee recommendation compared with (+ or -)	
				2014 appropriation	Budget estimate
Vaccine Injury Compensation Trust Fund	7,833	7,833	7,833		
Salaries and expenses, Antitrust Division	160,400	162,246	162,246	+ 1,846	
Offsetting fee collections—current year	— 103,000	— 100,000	— 100,000	+ 3,000	
Direct appropriation	57,400	62,246	62,246	+ 4,846	
Salaries and expenses, United States Attorneys	1,944,000	1,955,327	1,950,000	+ 6,000	— 5,327
United States Trustee System Fund	224,400	225,908	225,908	+ 1,508	
Offsetting fee collections	— 224,400	— 225,908	— 225,908	— 1,508	
Direct appropriation					
Salaries and expenses, Foreign Claims Settlement Commission	2,100	2,326	2,326	+ 226	
Fees and expenses of witnesses	270,000	270,000	270,000		
Salaries and expenses, Community Relations Service	12,000	12,972	12,972	+ 972	
Assets Forfeiture Fund	20,500	20,514	20,514	+ 14	
Total, Legal Activities	3,180,833	3,267,072	3,240,891	+ 60,058	— 26,181
United States Marshals Service					
Salaries and expenses	1,185,000	1,185,000	1,185,000		
Construction	9,800	9,800	9,800		
Federal prisoner detention	1,533,000	1,595,307	1,595,307	+ 62,307	
Total, United States Marshals Service	2,727,800	2,790,107	2,790,107	+ 62,307	
National Security Division					
Salaries and expenses	91,800	91,800	91,800		

Interagency Law Enforcement									
Interagency crime and drug enforcement	514,000	505,000	505,000	— 9,000					
Federal Bureau of Investigation									
Salaries and expenses	3,345,322	3,358,219	3,363,753	+ 18,431	+ 5,534				
Counterintelligence and national security	4,900,480	4,920,000	4,927,480	+ 27,000	+ 7,480				
Subtotal	8,245,802	8,278,219	8,291,233	+ 45,431	+ 13,014				
Construction	97,482	68,982	93,982	— 3,500	+ 25,000				
Total, Federal Bureau of Investigation	8,343,284	8,347,201	8,385,215	+ 41,931	+ 38,014				
Drug Enforcement Administration									
Salaries and expenses	2,378,917	2,384,680	2,384,680	+ 5,763					
Diversion control fund	— 360,917	— 366,680	— 366,680	— 5,763					
Total, Drug Enforcement Administration	2,018,000	2,018,000	2,018,000						
Bureau of Alcohol, Tobacco, Firearms and Explosives									
Salaries and expenses	1,179,000	1,201,004	1,201,004	+ 22,004					
Federal Prison System									
Salaries and expenses	6,769,000	6,804,000	6,804,000	+ 35,000					
Buildings and facilities	90,000	90,000	105,000	+ 15,000	+ 15,000				
Limitation on administrative expenses, Federal Prison Industries, Incorporated	2,700	2,700	2,700						
Total, Federal Prison System	6,861,700	6,896,700	6,911,700	+ 50,000	+ 15,000				
State and Local Law Enforcement Activities									
Office on Violence Against Women:									
Prevention and prosecution programs	417,000	422,500	430,000	+ 13,000	+ 7,500				
Office of Justice Programs:									
Research, evaluation and statistics	120,000	136,900	115,000	— 5,000	— 21,900				
State and local law enforcement assistance	1,171,500	1,032,900	1,149,500	— 22,000	+ 116,600				
Juvenile justice programs	254,500	299,400	257,500	+ 3,000	— 41,900				

COMPARATIVE STATEMENT OF NEW BUDGET (OBLIGATIONAL) AUTHORITY FOR FISCAL YEAR 2014 AND BUDGET ESTIMATES AND AMOUNTS RECOMMENDED IN THE BILL
FOR FISCAL YEAR 2015—Continued
[In thousands of dollars]

Item	2014 appropriation	Budget estimate	Committee recommendation	Senate Committee recommendation compared with (+ or -)	
				2014 appropriation	Budget estimate
Public safety officer benefits:					
Death benefits	81,000	71,000	71,000	- 10,000	
Disability and education benefits	16,300	16,300	16,300		
Subtotal	97,300	87,300	87,300	- 10,000	
Total, Office of Justice Programs	1,643,300	1,556,500	1,609,300	- 34,000	+ 52,800
Community oriented policing services:					
COPS programs	214,000	274,000	224,000	+ 10,000	- 50,000
Total, State and Local Law Enforcement Activities	2,274,300	2,253,000	2,263,300	- 11,000	+ 10,300
Total, title II, Department of Justice	27,736,559	27,973,534	27,996,816	+ 260,257	+ 23,282
TITLE III—SCIENCE					
Office of Science and Technology Policy	5,555	5,555	5,555		
National Aeronautics and Space Administration					
Science	5,151,200	4,972,000	5,200,000	+ 48,800	+ 228,000
Aeronautics	566,000	551,100	551,100	- 14,900	
Space technology	576,000	705,500	580,200	+ 4,200	- 125,300
Exploration	4,113,200	3,976,000	4,367,700	+ 254,500	+ 391,700
Space operations	3,778,000	3,905,400	3,830,800	+ 52,800	- 74,600
Education	116,600	88,900	108,000	- 8,600	+ 19,100
Cross agency support	2,793,000	2,778,600	2,778,600	- 14,400	
Construction and environmental compliance and restoration	515,000	446,100	446,100	- 68,900	
Office of Inspector General	37,500	37,000	37,500		+ 500

Total, National Aeronautics and Space Administration	17,646,500	17,460,600	17,900,000	+ 253,500	+ 439,400
National Science Foundation					
Research and related activities	5,741,398	5,739,460	5,771,170	+ 29,772	+ 31,710
Defense function	67,520	68,000	67,520		— 480
Subtotal	5,808,918	5,807,460	5,838,690	+ 29,772	+ 31,230
Major research equipment and facilities construction	200,000	200,760	200,760	+ 760	
Education and human resources	846,500	889,750	889,750	+ 43,250	
Agency operations and award management	298,000	338,230	307,000	+ 9,000	— 31,230
Office of the National Science Board	4,300	4,370	4,370	+ 70	
Office of Inspector General	14,200	14,430	14,430	+ 230	
Total, National Science Foundation	7,171,918	7,255,000	7,255,000	+ 83,082	
Total, title III, Science	24,823,973	24,721,155	25,160,555	+ 336,582	+ 439,400
TITLE IV—RELATED AGENCIES					
Commission on Civil Rights					
Salaries and expenses	9,000	9,400	9,400	+ 400	
Equal Employment Opportunity Commission					
Salaries and expenses	364,000	365,531	365,000	+ 1,000	— 531
International Trade Commission					
Salaries and expenses	83,000	86,459	85,000	+ 2,000	— 1,459
Legal Services Corporation					
Payment to the Legal Services Corporation	365,000	430,000	400,000	+ 35,000	— 30,000
Marine Mammal Commission					
Salaries and expenses	3,250	3,431	3,431	+ 181	
Office of the U.S. Trade Representative					
Salaries and expenses	52,601	56,170	55,000	+ 2,399	— 1,170

COMPARATIVE STATEMENT OF NEW BUDGET (OBLIGATIONAL) AUTHORITY FOR FISCAL YEAR 2014 AND BUDGET ESTIMATES AND AMOUNTS RECOMMENDED IN THE BILL
FOR FISCAL YEAR 2015—Continued
[In thousands of dollars]

Item	2014 appropriation	Budget estimate	Committee recommendation	Senate Committee recommendation compared with (+ or -)	
				2014 appropriation	Budget estimate
State Justice Institute					
Salaries and expenses	4,900	5,121	5,121	+ 221	
Total, title IV, Related Agencies	881,751	956,112	922,952	+ 41,201	- 33,160
TITLE V—GENERAL PROVISIONS					
NTIA, public telecommunications facilities, planning and construction (rescission)	- 8,500			+ 8,500	
Commerce, Departmental Management, Franchise Fund (rescission)		- 2,906	- 2,906	- 2,906	
DOJ, Working Capital Fund (rescission)	- 30,000	- 54,000	- 54,000	- 24,000	
DOJ, Assets Forfeiture Fund (rescission)	- 83,600	- 193,000	- 193,000	- 109,400	
Federal prisoner detention (rescission)		- 122,000	- 122,000	- 122,000	
Violence against women prevention and prosecution programs (rescission)	- 12,200	- 12,200	- 12,200		
Office of Justice programs (rescission)	- 59,000	- 59,000	- 59,000		
COPS (rescission)	- 26,000	- 26,000	- 26,000		
Total, title V, Rescissions	- 219,300	- 469,106	- 469,106	- 249,806	
Grand total	61,403,600	61,928,166	62,167,092	+ 763,492	+ 238,926
Appropriations	(61,622,900)	(62,397,272)	(62,636,198)	(+ 1,013,298)	(+ 238,926)
Rescissions	(- 219,300)	(- 469,106)	(- 469,106)	(- 249,806)	
(By transfer)	117,000	132,164	125,000	+ 8,000	- 7,164

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